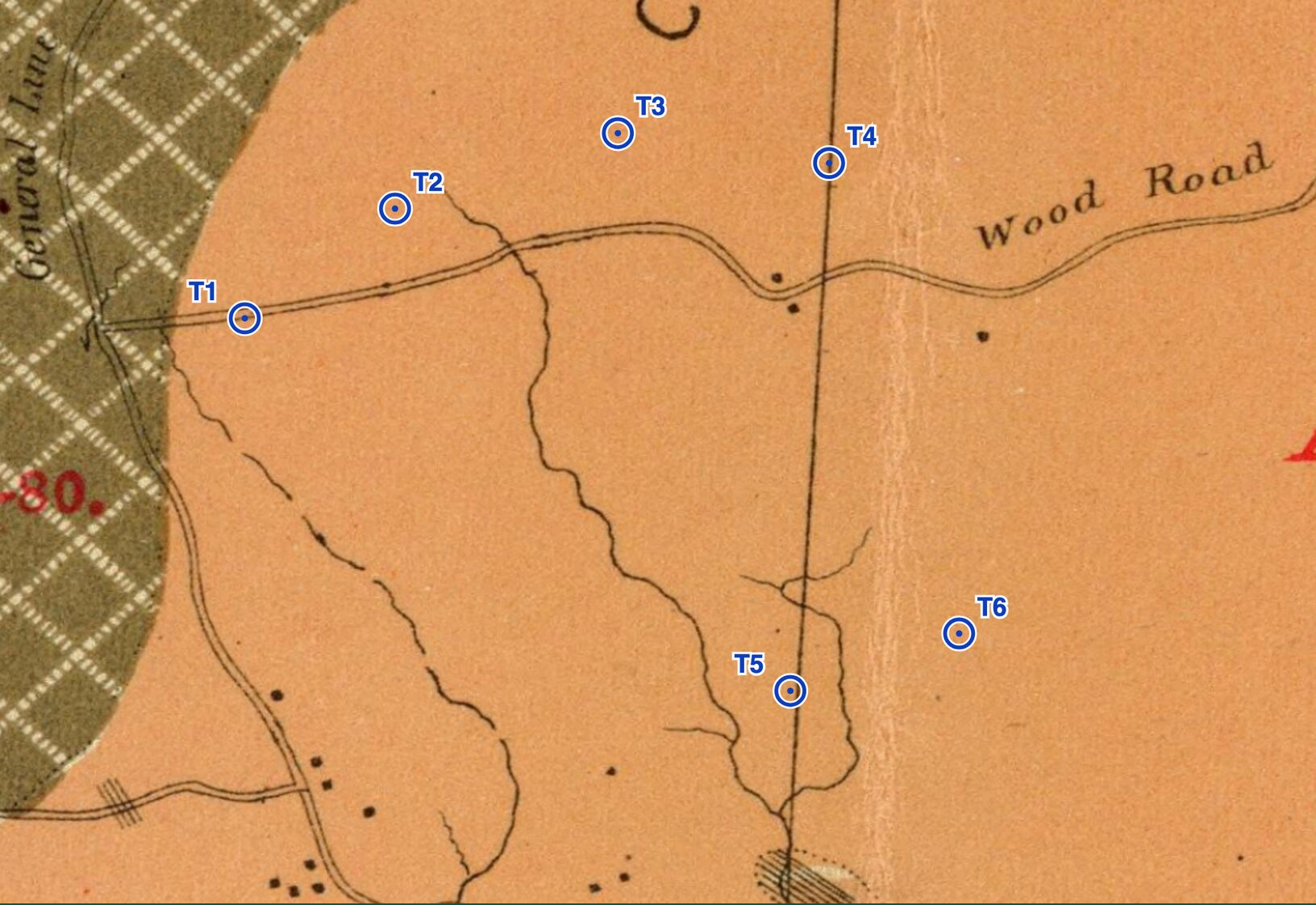




A residents' guide • Creignish-Queensville, Inverness County

Rhodena Wind

What residents can lawfully do to stop, delay
or put conditions on a six-turbine wind project

Forty-seven ideas, each with an honest rating of the work it takes, the
difference it can make and when to do it. Built from public records, with
sources, uncertainties and limits marked.

Cover: a provisional overlay of the developer's 2024 turbine layout on
Hugh Fletcher's 1884 map; final positions may change. Map image: David
Rumsey Map Collection, David Rumsey Map Center, Stanford University
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licence; overlay added.

Public edition • version 1

Facts as of 27 September 2026. Free to share.

About this guide

This guide sets out what residents of Creignish, Queensville and the surrounding area can lawfully do about the Rhodena Wind project: to stop it if that proves possible, to delay it, or to put conditions on it. It is written for neighbours, not lawyers.

What the project is. ABO Energy plans up to six wind turbines, 42 MW in all, on the ridge above Creignish and Queensville in Inverness County, Nova Scotia. The Province approved it with conditions on 6 January 2025. ABO has said it expects to bid it into the Province's Green Choice bidding round, which closes on 14 January 2027.

The honest summary. No single step in this guide is likely to stop Rhodena. Many steps together can slow it, make it prove what it claims, and put protections in place in case it is built. Each idea says how much it can do, in plain words.

How it was made. The guide restates a research plan prepared for local residents in September 2026. Each section of that plan was checked against primary sources wherever possible (the approval, ABO's registration documents, the call for bids, the county's bylaw, the laws themselves) and reviewed adversarially, finding by finding, before its wording was agreed. Where a fact rests on a news report or on desk work (a map overlay, a calculation), the text says so. Where nobody has confirmed something, it says "not verified" or "unconfirmed".

Facts are as of 27 September 2026. Some things move (addenda to the call for bids, the grid queue, ABO's announcements, the Province's project page): check them again before relying on them. Dates marked "about" are approximate.

Words on this page

Condition a rule attached to an approval or permit. Breaking a condition of Rhodena's environmental approval is an offence.

ABO ABO Energy, the developer: the German renewable-energy group behind Rhodena. Its Canadian company, ABO Energy Canada Ltd. (ABO Wind Canada Ltd. until May 2024), holds the approval; the German parent company is the one restructuring.

MW megawatt: a measure of generating capacity. Rhodena is up to 42 MW: six turbines of up to 7 MW.

Green Choice the Province's renewable-power bidding program. Round 1 selected Rhodena in Jan 2025, but ABO declined to sign; round 2 opened on 10 Sept 2026.

Approval a regulator's permission. In this book "the approval" means Rhodena's environmental approval of 6 Jan 2025; other approvals, such as for a wetland, are named.

Addendum a formal change: to the call for bids, issued by the administrator.

Queue a list of items waiting their turn. In this book, usually the grid operator's posted list of connection requests (as of 27 Sept 2026, dated 15 June 2026). D1's queue is the list of planned information requests.

Not legal advice; free to share. When a fresh decision is made, such as an extension of the start deadline, get legal advice fast (**B14**). As of the research date, nothing in the plan had been filed, sent or posted.

Words on this page

Extension extra time allowed under a particular rule. For Rhodena's start deadline, the Minister may grant one at ABO's written request, with no public notice. Information-request deadlines have their own extension rules (D1).

Also on this page: **ABO** ABO Energy, the developer

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Words on this page

Support letter a letter backing the bid: from a local government, group or community. Each is worth half a point, up to 4 of 100.

Bid administrator the firm running the bidding. Power Advisory LLC for round 2. It checks and scores bids, and may verify claims with third parties.

Also on this page: **ABO** ABO Energy, the developer

Old growth old forest: stands that have grown for a long time without major disturbance.

LLC limited liability company: as in Power Advisory LLC, the bid administrator.

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Words on this page

Judicial review asking a judge to review a decision: for reasonableness. The deadline is the earlier of 25 days after you're told (weekends and court-closed days don't count) and 6 months after the decision.

Setback a minimum distance: between a turbine and something else: a home, a property line, a road or a stream.

Clean-up bond proposed financial security for removal: that the county could call if an owner fails to take the turbines down. The current bylaw requires a plan, not a bond.

Information request a request for a public body's records: under the access law (FOIPOP in Nova Scotia): a \$5 application fee, and processing fees may follow.

Ice throw ice shed from turning blades. The assessment estimates up to 421.5 m for its modelled turbine.

FOIPOP Freedom of Information and Protection of Privacy. Nova Scotia's access-to-information law. A FOIPOP request asks a public body for records it holds: a \$5 application fee, and processing fees may follow.

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Words on this page

Shadow flicker the flashing shadow of turning blades.

The approval's limits: 30 hours a year and 30 minutes a day at any home or camp.

How to use this book

Start with three sections: the bottom line, the priority plan (twenty steps in order) and the key dates. Then read the chapters you can help with. Chapters A to G each hold a group of ideas; every idea has a code, like **B1**, used for cross-references. Chapter H lists what won't work. At the back: what not to say, the project facts, the 1884 map, a glossary and the sources.

Each idea follows the same pattern:

- **What you can do**, in a sentence or two;
- **Why it might help**, and how much, honestly;
- **How to do it**, step by step;
- **When**, and **Who** does it;
- **Where this comes from:** the formal references (sections of laws, conditions of the approval, pages of ABO's documents) kept out of the main text. You'll need these to write a precise information request or letter.

Who's who. Dan, who compiled the research, keeps the records work: information requests, questions to officials, letters, and reading what comes back. "The group" means the residents' group, which does the legwork. "A volunteer" means anyone who takes one of the jobs in chapter G.

Names used for short:

- **ABO:** ABO Energy, the developer. ABO Energy Canada Ltd. holds the approval; its German parent company is restructuring.
- **The approval:** Rhodena's environmental approval of 6 January 2025, and **the conditions** attached to it.
- **The Department:** Nova Scotia's Department of Environment and Climate Change, which issued the approval; **the assessment branch** is its environmental assessment branch.
- **ABO's registration:** the environmental assessment documents ABO filed in 2024.

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Condition** a rule attached to an approval or permit · **Approval** a regulator's permission · **Information request** a request for a public body's records

- **The call for bids:** the Province's Green Choice round 2 call. **The administrator** is the firm running it, Power Advisory. **The contract** is the 25-year power contract a winner signs with NS Power.
- **The planning commission:** the Eastern District Planning Commission, which handles Inverness County's development permits.
- **The final layout:** the final turbine choice and positions ABO must file before building roads. There is no date for it yet.

The footer on every page ("Words on this page") explains each new word the first time it appears in the book, and spells out every abbreviation on the page, every time.

Ratings are judgments, not probabilities. The next page shows how to read them.

Words on this page

NS Power Nova Scotia Power: the province's electric utility (legally Nova Scotia Power Inc.). Winning bidders sign 25-year contracts with it.

Also on this page: **ABO** ABO Energy, the developer

Development permit the county's planning permit for a large turbine: issued by the Development Officer. It lapses if work doesn't start within 12 months.

How to read an idea

Every idea in chapters A to G opens with this header. The ratings are judgments, not probabilities. Read the words first.

B1

Environment

Suggested action

The start deadline: about 6 January 2027

Do first

Work required

Low

to check

Potential difference

Medium

Public opinion

High

Chance of stopping

Low

When Act now; check again about 8 Dec and 7 Jan

Who Dan; the group

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

A near-term deadline and a clear request for conditions are easy to explain. Say “start by about 6 January unless extended in writing”, never “the approval expires”.

Work required: how much work it takes. More filled means more work.

Potential difference: how much it could change scrutiny, conditions, design, timing or the bid. A few rate another payoff: information, financial protection or credibility. Protective: it helps if the project is built.

Public opinion: its potential to change understanding or views. Our own judgment; the reason is under each header.

Chance of stopping: of preventing the project, not just delaying it. Almost every idea is low: no single step is likely to stop Rhodena.

When and Who: a suggested window, Sept 2026 to July 2027. Ideas that wait for an undated event say “When triggered · date unknown”.

Suggested work window

Carries on after July 2027

When triggered Undated event

Research date, 27 Sept 2026

About 6 Jan 2027 (start deadline) and 14 Jan 2027 (bids due)

Suggested action is the plan's own verdict, in plain words.

Meter scale

Very low

Low

Low-medium

Medium

Medium-high

High

Very high

Unknown, uncertain or not rated

Kinds of idea (chapter)

Bidding · A

Environment · B

County · C

Records · D

Roads and site · E

Aviation · F

Community · G

Words on this page

Also on this page: **Condition** a rule attached to an approval or permit · **Approval** a regulator's permission

The bottom line

No single step is likely to stop Rhodena

Councils and residents have little room:

- Home setbacks are capped at 4× the turbine height (more only for noise or flicker), and council policy may not weigh visual impact. In 2025 the Minister cut the county's new setbacks to fit (C5, C6).
- A permit that meets the bylaw must be issued; council has no approval vote (C3; What not to say).
- The provincial board ordered West Hants to approve a wind agreement it had refused (C5), and courts defer to Ministers: a 2024 challenge to another Nova Scotia wind approval failed (B14).
- The 2025 approval has no statutory appeal, and the court-review deadline passed by July 2025; a judge extending it is a long shot (H). Opposition letters cost ABO no points (A1).

The project's real weaknesses

- **Price and grid.** Price is 50 of 100 points. Rhodena's 2024 grid study gave a non-binding estimate of \$20.1 million to connect 42 MW (part refundable), more if lines need upgrading; round 2 needs a new study. ABO pays, so costs can hurt the bid through its price, which the group can't see (A5).
- **Money.** ABO's German parent company is restructuring under a standstill with its lenders to 30 November 2026. The bidder must show financial capacity or support; Rhodena's investor is unnamed on ABO's page (A4).
- **Land.** A desk check on the county parcel map shows the 2024 layout needs property-line setback waivers, mostly from the Crown, or a variance (C3). Roads and lines on Crown land need an easement, which is considered only after a contract is signed (E1).

Words on this page

Standstill a temporary agreement with financing partners: during a restructuring. ABO's parent company's runs to 30 Nov 2026.

Waiver giving up or excusing a requirement. For setbacks, a neighbour's written agreement to a smaller setback (a wind lease of 19 years or more, or, at the county's discretion, a binding easement). For information requests, a fee waiver excuses processing fees.

Variance a lawful, limited adjustment of a bylaw rule: such as a setback, allowed under the bylaw. Owners nearby get notice and can appeal a granted variance to council.

Crown land land owned by the Province: managed by Natural Resources. Round 2 bars turbines on it.

Easement a right to use someone else's land: for a road or power line, or to allow a smaller setback. Roads and lines on Crown land need one from Natural Resources.

Also on this page: ABO ABO Energy, the developer · MW megawatt

- **The start deadline.** Work must start by about **6 January 2027** unless the Minister extends in writing. ABO's page estimates construction in 2028–30, so expect an extension request or early site work. Early work counts as a start, but normally needs 30 days' notice (by about **7 December 2026**) and the pre-start plans first (**B1, B2**). A missed start doesn't automatically cost ABO the 7 approval points: the call for bids asks whether the design "has received" an approval by the bid deadline (the administrator decides), and a 4.0 questionnaire also earns them (**B1**).

The strategy

1. **Get the decisive records first**, by information request, with a short email the same day where timing matters: the approval's status, the county permit file, any final layout (**B1, C1, B4, D1**).
2. **Stack small, legitimate disadvantages**: no support letters (**A1**); documented discrepancies to the administrator, if it will take them (ask by **8 October, A3**); ask the Minister for new bird and bat surveys, and a six-turbine limit, with any extension (**B1**).
3. **Push every documented defect through the correct process**. Get legal advice fast on any fresh decision; an extension needs no public notice (**B13, B14**).
4. **Get protections in place in case it's built**: a clean-up bond, bat curtailment, lighting controls, a liaison committee seat, and well baselines (**C5, B6, F2, G1, B9**).

Stay credible and safe

- Claim only what documents show (What not to say).
- Never allege a breach before the deadline passes, from an empty website, or without checking written variations (**B2, B13**).
- Never call ABO insolvent, or say it plans 18 turbines (**G2**). Never speak for the Mi'kmaw partners (**G6**).
- Don't post exact nest, den, hibernation-site or lichen locations, the heritage department's site records, or lists of likely archaeological sites (**B8, B10–B12**).

Words on this page

Curtailment slowing or stopping turbines: at set times, for example on nights in the bat season.

Also on this page: **ABO** ABO Energy, the developer

The priority plan

Twenty steps in priority order. Dan keeps the records work; the group does the legwork. “Idea” points to the full explanation in chapters A to G.

- 1 Email the Province's environmental assessment branch, copying its Port Hawkesbury office: where does the start deadline stand? Ask to be told of any extension or change. File the information request for the approval records (drafted and ready to file) the same day.

Who Dan When Now Idea **B1, B14, D1**

- 2 Request the Eastern District Planning Commission's permit file, and, from the county (a separate body), its support letters, presentations and the Province's 2025 notice on the wind bylaw. The same day, email the planning commission for the official zone of each turbine site and lot.

Who Dan When Now Idea **C1, C2, C4, C6, D1**

- 3 Ask the bid administrator (only at greenchoice@poweradvisoryllc.com) whether, how and by when it takes factual material from residents; join its mailing list. The same week, file an information request with the Energy department for its records on how the administrator handles outside information.

Who Dan When By 8 Oct Idea **A3, D1**

- 4 Keep an engagement log: dated ABO mail and notices, a weekly web archive of ABO's page, ABO's usual channels.

Who The group

When Now; notice due by **9 Oct**, posting by **26 Oct**; open house (an earlier qualifying one may count) and accuracy to **14 Jan**

Idea **A2**

- 5 Correct the recruitment post using chapter G's fixes, then post it.

Who Dan When Now, before anything is posted Idea **G7**

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Extension** extra time allowed under a particular rule · **Information request** a request for a public body's records · **Approval** a regulator's permission · **Support letter** a letter backing the bid · **Bid administrator** the firm running the bidding

- 6** Put one or two nearby residents forward for the community liaison committee; ask for its terms of reference, members and minutes.

Who The group **When** Now **Idea** G1

- 7** Council delegation (10 working days' notice, 10 minutes): no support letter; asks to the Minister; a status report from the planning commission; a staff report on security for removal and restoration, such as a bond.

Who The group

When Now. Dates unconfirmed: about **29 Sept** for 15 Oct; **22 Oct** or about **4 Nov** for a decision about 3 Dec

Idea C4, C5

- 8** Ask council, councillors, the MLA, the MP and local groups to hold back support letters. Explain; don't pressure.

Who The group **When** Oct-Dec (letters can be added until **14 Jan**) **Idea** A1

- 9** One written email to ABO: no more than six turbines; land rights beyond the layout; the size of its new grid request; who will bid, own and invest; whether it will seek the Minister's written consent for any transfer of the environmental approval (including a change of control); renewed aviation letters.

Who Dan and a volunteer **When** Oct; again at the committee **Idea** G2, A4, F1

- 10** Information requests to Energy (the round 1 report), Natural Resources (the Crown easement, setback waivers, the species and wetland data, its comments on the wildlife and adaptive-management plans, bat-site records, the lynx map) and Environment (wetland criteria).

Who Dan **When** Oct **Idea** D1

Words on this page

MLA member of the Legislative Assembly: your provincial representative.

MP member of Parliament: your federal representative.

Also on this page: **ABO** ABO Energy, the developer

Interconnection request an application to connect to the grid. Each gets a study of what the grid needs and what it costs.

-
- 11** Archaeology: an information request for the heritage department's survey reports and acceptance letters. The same day, email the heritage department the location questions and offer the 1884 map comparison privately.
Who Dan **When** Oct **Idea** B10, D1
-
- 12** Bat hibernation sites: ask about the 8 old mine openings the assessment listed (Port Hood about 26 km away, Whiteside about 27.5 km, Little River about 19 km) and 4 plugged ones: Natural Resources' records by information request; emails to researchers, the mine-openings program and the Wildlife Division. No site visits. Also request the 2025 lynx core-habitat map.
Who Dan (requests); a volunteer (emails) **When** Oct–Nov **Idea** B11, B12, D1
-
- 13** Ice throw near turbine 1: a letter to the assessment branch (copy Public Works) about General Line Road and snowmobile Trail 104; talk to the snowmobile club and fire departments.
Who Dan (letter); a volunteer (club, fire departments)
When Now; recheck when the final layout is filed **Idea** E3
-
- 14** Scope an independent ecology desk review; get a capped quote.
Who Dan **When** Before Dec **Idea** B5
-
- 15** Letter to the Minister: tie any extension to a new year of bird and bat surveys and the six registered turbines; ask for operating rules that reduce bat deaths from the first night of operation (preventive curtailment). Group letters to match.
Who Dan (letter); the group (letters)
When After the first reply or records, whichever comes first; before about 6 Jan
Idea B1, B6, G2
-

Words on this page

Hibernaculum a place where bats hibernate: often a cave or old mine (plural: hibernacula). Disturbing one occupied or habitually occupied by endangered bats is an offence.

Core habitat the areas a recovery plan says a species needs most. Identified, not legally designated, for lynx in 2025.

-
- 16** Watch ABO's announcements; re-run the free company-registry search.
Who Dan and a volunteer
When Registry monthly and before 14 Jan; ABO around and after **30 Nov**
Idea **A4, D3**
-
- 17** Grid: watch the queue for a new request on line L-6537; compare the new study with the 2024 one (IR713).
Who Dan
When Queue now; study from **26 Nov** ; ask the grid operator if none is posted by mid-Dec
Idea **A5**
-
- 18** Dated checks: a short email to the assessment branch and an information request the same day. Has a start notice arrived? Any extension or change? Then request the yearly status tables due 31 Jan.
Who Dan
When About **8 Dec** and about **7 Jan** (due about 7 Jan and 6 Feb, later if extended); Feb for the tables
Idea **B1, B14, D1**
-
- 19** Site watch from public roads (dated photos, no trespassing); look for eagle nests once the leaves are down.
Who The group **When** Nov–Jan **Idea** **B1, B12**
-
- 20** The fact-check package: send it by the administrator's process, or in Dec if it gives none; add any update on the approval's status after 6 Jan.
Who Dan **When** Build Oct–Dec; update before **14 Jan 2027** **Idea** **A3**
-

Words on this page

IR713 interconnection request 713: NS Power's 31 May 2024 study of connecting “Rhodena Wind” (42 MW) to line L-6537.

Commencement starting work. Site preparation on any part of the project counts. It needs 30 days' written notice, unless the Department varies the timing in writing.

Also on this page: **ABO** ABO Energy, the developer · **MW** megawatt · **NS Power** Nova Scotia Power

Concordance table ABO's yearly status report: on each approval condition, due each 31 January until the Department releases ABO in writing.

Leaf-off when the leaves are down: and nests are easiest to see (the plan's nest search is Nov–Jan).

Key dates

From 27 September 2026 to 2030. Rust marks the two priority deadlines. Open dots are dates still to be confirmed; grey dots have passed; square marks are observation windows, not deadlines.

Already passed	●	NAV CANADA's aviation letter lapsed on 7 Apr 2026, and the Department of National Defence's no later than 11 Sept 2026, unless renewed. Registration for the new bidding round closed on 17 Sept 2026; who registered isn't public. Do: Ask ABO about renewals (F1). Watch for a posted list of registered bidders (A3).
About 29 Sept unconfirmed	○	Deadline to ask for a delegation slot at a possible 15 Oct council meeting (10 working days ahead). Do: Confirm the meeting and the deadline with the Council Administrator now (C4).
30 Sept 2026	●	Deadline for bidders' grid-connection requests. Do: Watch the next queue posting for a wind request on the line Rhodena would use, of up to 105 MW, not just about 42 MW. The posted queue is still dated 15 June (A5).
8 Oct	●	Last day for questions and comments on the call for bids. Only registered bidders may ask questions; “interested parties” may report errors or ambiguities. Do: Ask the administrator whether, how and by when it takes residents' factual material; join its mailing list (A3).
9 Oct	●	ABO's notice to nearby communities is due (20 business days after the call opened; the filed contract skips 30 Sept, when banks are closed). Do: Log mail and ABO's other channels. Allege nothing until the date passes and the final contract and any addenda are rechecked (A2).
22 Oct unconfirmed	○	Delegation request for 5 Nov, so council can decide by about 3 Dec, before 6 Jan. Do: Confirm all dates with the Council Administrator (C4).
26 Oct	●	ABO's public posting of contact and project details is due (30 business days, also skipping Thanksgiving). ABO's page already appears to meet it. Do: Archive ABO's page weekly (A2).

Words on this page

NAV CANADA the company that runs Canada's civil air navigation. It reviews tall structures for effects on flight routes and airport approaches.

Business days days banks are open: under the filed contract, so weekends and holidays don't count.

Also on this page: **ABO** ABO Energy, the developer · **MW** megawatt

29 Oct	●	Scheduled last day for changes (addenda) to the call for bids; later ones are allowed. Do: Keep checking for addenda until bids close (A3, C4).
About 4 Nov unconfirmed	○	Delegation request for 19 Nov, so council can decide by about 3 Dec. Do: Confirm all dates with the Council Administrator (C4).
Nov – Jan observation window	□	Observation window: leaves are down. Do: Look for eagle nests (B12). Watch the site from public roads, with dated photos (B1).
26 Nov target	●	Target date for grid-study results to bidders. Do: Check NS Power's study-report list from 26 Nov; posting lags (A5).
30 Nov	●	ABO's German parent company's standstill with its financing partners runs to this date. Do: Check ABO's announcements around and after it (A4).
Dec – Mar observation window	□	Observation window: snow. Do: Look for lynx tracks 1–3 days after 10 cm or more of new snow (B12).
About 7 Dec	●	Last day for ABO's 30-day written notice of a start by 6 Jan, unless the <u>Department</u> agrees otherwise in writing. Do: About 8 Dec, email the assessment branch to ask whether a notice arrived, and file the dated information request the same day (due about 7 Jan, later if extended; B1, B2, D1).
15 Dec	●	Latest date for grid-study results that keeps the 14 Jan bid date. Do: If nothing is posted by mid-Dec, ask the grid operator when it will be (A5).
31 Dec	●	Bidders must have contacted the provincial departments about their approvals and permits. Do: None needed; the administrator judges each bidder's approvals plan (B1).
About 6 Jan 2027	●	The environmental approval's start deadline, unless the Minister extends it in writing. Do: Letters before it; site watch; about 7 Jan, a dated email and information request (due about 6 Feb, after bids close, later if extended; B1). An extension starts court-review clocks: get legal advice at once (B14).

Words on this page

The Department Nova Scotia Environment and Climate Change: which issued the approval. Its environmental assessment branch handles changes.

Also on this page: **NS Power** Nova Scotia Power · **ABO** ABO Energy, the developer

14 Jan 2027, 3 pm Atlantic	●	Bids are due, unless the date is moved. Do: Send the fact-check package before (A3). Support letters can be added until then (A1). From then until the contract is signed, a change in who controls the bidder needs the administrator's prior written consent. If the bidder, or a company controlling it, is listed on a recognized stock exchange, a change caused by share trading needs only notice within 10 business days, plus answers to the administrator's reasonable questions (A4).
31 Jan 2027	●	ABO's yearly status table on each condition, and its monitoring summary, are due each 31 Jan until the Department releases it in writing. Do: The first information request gets any filed before it is received; request the 2027 ones in February, before 1 April (D1; already drafted).
Mar – May observation window	□	Observation window: eagle breeding season (Feb–July). Do: Check whether nests found are in use, from 200 m or more away (B12).
1 Apr 2027	●	The new information-access law takes effect. Requests with no decision by then stay under the old rules. Do: File now for records that already exist; later records need new, dated requests (D1).
1 Apr – 30 Sept, each year	●	The nesting period ABO said it would clear outside of, “generally from April 1 to September 30”. Do: Dated photos of any clearing, from public roads. Check the wildlife plan first; report a discrepancy, not a breach (B13).
6 May 2027 target	●	Target date for notifying the winning bidders. The written decision is due within 7 days of selection. Do: Watch the announcements. A winner must sign and post security within 20 business days after it is sent the contract (A6).
June 2027 observation window	□	Observation window: Canada warbler season. Do: Dawn recordings in wet, shrubby woods; keep the audio (B12).
About 5 July 2027	●	The administrator's final report to the Minister is due, 60 days after the written decision if that goes out on 6 May. Do: Request it from the Energy department under the new law (A6).

Words on this page

Also on this page: ABO ABO Energy, the developer · **Support letter** a letter backing the bid · **Bid administrator** the firm running the bidding · **Business days** days banks are open · **Concordance table** ABO's yearly status report · **Condition** a rule attached to an approval or permit · **The Department** Nova Scotia Environment and Climate Change · **Information request** a request for a public body's records

31 Dec 2030

● Latest scheduled start of commercial operation allowed by the call for bids; ABO targets 2030.

Do: Does the grid build still fit? (**A3**, **A5**)

After any fresh decision (an extension, amendment, permit or variance): Court review: the earlier of 25 days after you're told (weekends and court-closed days don't count, so about 5 weeks) and 6 months after the decision. An appeal by a person "aggrieved" runs 30 days from the decision: for some provincial approvals, such as a wetland approval, to the Minister; possibly for an extension or change, to a Supreme Court judge. A granted variance: notified owners have 14 days from receiving the notice to appeal to council.

Do: Get legal advice at once. Ask the assessment branch in writing to tell you of any extension or change. An information request doesn't stop these clocks (**B14**).

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Extension** extra time allowed under a particular rule · **Variance** a lawful, limited adjustment of a bylaw rule · **Judicial review** asking a judge to review a decision · **Approval** a regulator's permission · **Information request** a request for a public body's records

A

Chapter A • 7 ideas

The bidding round

The Province's second Green Choice bidding round closes on 14 January 2027, and ABO has said it expects to bid. Residents don't vote on bids, and opposition letters cost ABO no points. But what residents do or don't sign counts, the administrator may check ABO's claims with third parties, and the bidder must show who will pay for the project.

	Idea	Work	Difference	Opinion	Stopping	Page
A1	Ask local groups to hold back support letters	Low	Low-medium	Medium	Low	21
A2	Keep a dated log of ABO's community notices	Low	Low-medium	Low	Low	23
A3	A fact-check package for the bid administrator	Medium	Medium if a real discrepancy exists	Low	Low	25
A4	Find out who will own and pay for it	Low to monitor	Medium	Medium-high	Low-unknown	28
A5	Watch the grid queue and the new grid study	Low	Unknown	Low	Unknown	31
A6	After selection: records and contract checks	Low	Low-medium	Low	Low	34
A7	Check public funding claims, only if relevant	Medium	Low unless a defect is proved	Low	Low	36

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Green Choice** the Province's renewable-power bidding program • **Bid administrator** the firm running the bidding • **Support letter** a letter backing the bid • **Queue** a list of items waiting their turn

A1

Bidding

Suggested action

Do

Ask local groups to hold back support letters

♂ Work required

Low

🎯 Potential difference

Low-medium

💬 Public opinion

Medium

⊖ Chance of stopping

Low

When Oct-Dec; letters count until 14 Jan

Who The group

▼

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating: Asking councils and community groups to hold back is a visible local conversation, but the ask itself is quiet and technical.

What you can do

Ask local councils, representatives and community groups not to write letters supporting ABO's bid, or to wait until residents' questions are answered.

Why it might help

- Each **support letter** is worth half a point, up to **4 points out of 100**. Letters count from “local governments and/or local groups or communities”. “Local” isn’t defined, and the administrator’s published answers left open whether individual councillors, the MLA or the MP count, so treat them as possible.
- **Opposition letters don’t cost ABO points**. Round 1 gave 3 points for no “substantial local opposition”; round 2 dropped that. Holding back support is the direct lever.
- **The limit**: holding back lowers ABO’s score only if it ends up with fewer than 8 qualifying letters, and ABO can look beyond the campaign’s reach (Mi’kmaw support counts).

How much it can do: low to medium.

How to do it

1. Ask council, your councillor, the MLA and MP, community associations, the rec centre, fire departments, churches and tourism businesses to decline, or to wait until residents' questions are answered.

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **MLA** member of the Legislative Assembly · **MP** member of Parliament · **Support letter** a letter backing the bid · **Bid administrator** the firm running the bidding

- 2. Explain; don't pressure.** A group can clarify or withdraw its own letter; don't try to "withdraw" someone else's.
- 3. Watch council agendas.** Council has authorized support letters by recorded motion before (Horton Solar, May 2022). A letter can also follow a direction to staff, with no motion recorded (July 2026). Posted minutes to 30 July 2026 show none for Rhodena.
- 4. Know what may already exist.** The Strait Area Chamber of Commerce's letter was "in the final review stage" on 24 June 2024. Whether it was sent, or still stands, is open. The call for bids sets no date limit, so old letters can be reused.
- 5. Leave two things alone:** First Nations (their decision; see **G6**), and the county's zoning confirmation, which is a separate factual letter, not a support letter.

When October to December. Letters can be added until bids close on **14 January 2027**.

Who The group.

Where this comes from Green Choice RFP II s.4.3(f) (support letters, 0.5 each to a maximum of 4) and s.4.3(e) (zoning letter); FAQ v.02 item 16; round 1 scoring ("substantial local opposition"); EARD Table 6.2 (Chamber letter); council minutes of 5 May 2022 (Horton Solar) and 16 July 2026, item 11.

Words on this page

RFP request for proposals: the Province's call for bids; here, Green Choice round 2 (RFP II, 10 Sept 2026).

FAQ frequently asked questions: the administrator's published answers (FAQ v.02, 16 Sept 2026); it doesn't change the RFP.

Also on this page: **ABO** ABO Energy, the developer

EARD Environmental Assessment Registration Document: ABO's 2024 filing that registered Rhodena for assessment: the project description, studies and appendices.

A2
Bidding
Suggested action

Keep a dated log of ABO's community notices

♂ Work required

Low

🎯 Potential difference

Low-medium

💬 Public opinion

Low

⊖ Chance of stopping

Low

When Now to 26 Oct; then to 14 Jan **Who** The group

Why this opinion rating: A dated log is evidence for the bid administrator, not a public message; it matters only if it shows a real, documented gap.

What you can do

Keep a dated, factual log of how ABO tells nearby communities about its bid, so that any real gap can be shown with evidence.

Why it might help

The call for bids requires ABO's proposal to show, with dated evidence, that it:

1. told communities in “close proximity” (not defined) that it intends to bid, **by 9 October**;
 2. publicly posted contact information and project details, **by 26 October**;
 3. named a lead contact;
 4. offered an in-person open house or public meeting before bids close. With the approval in hand, the April 2024 open houses may count if the design and layout haven’t changed significantly;
 5. kept public information accurate, current and available through several channels, including one that isn’t on the internet.
- These are pass/fail requirements, but the administrator can waive irregularities, ask ABO for more information, or accept a bid anyway. **Rejection isn’t automatic.**

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Bid administrator** the firm running the bidding · **Approval** a regulator's permission

- ABO's page already names a lead contact, gives project details and says it will bid (since October 2025). Expect the posting and the lead contact to be met; focus on the notice and on accuracy. In May–June the page promised “Summer 2026” mailouts and an open house; now it says “future open houses, mailouts”, with no dates.

How much it can do: low to medium. A failure matters only if it's real, documented and material.

How to do it

1. **Photograph any ABO mail** with the date it arrived. Record the community, not your address.
2. **Log ABO's usual channels too:** Neighbourhood Mail, the *Oran* and the *Reporter*, the Strait Area Chamber e-newsletter and the Creignish Recreation Centre's Facebook page.
3. **Save ABO's page** to the Wayback Machine every week. Note stale statements: its Q&A still says “an environmental assessment will be undertaken”.
4. **One empty mailbox proves nothing.** Canada Post doesn't deliver company flyers to homes with a “no flyers” note, and a notice sent before 10 September may count (the rule says “no later than”).
5. **Count the days carefully.** The dates are 20 and 30 business days after 10 September. The contract filed with the Energy Board counts only days banks are open, so 30 September and Thanksgiving are skipped. Recheck the final contract and any addendum (scheduled by 29 October; later ones are allowed) before saying anything is late.
6. **Don't allege a failure** before the date passes, or from the website alone. Send a documented gap through the fact-check package (A3).

Words on this page

Neighbourhood Mail Canada Post's unaddressed flyer service: not delivered to homes with a “no flyers” sign.

Wayback Machine a free web archive: (web.archive.org) that saves dated copies of web pages.

Also on this page: **ABO** ABO Energy, the developer

Q&A questions and answers: the question-and-answer section on ABO's page.

When	Now to 26 October for the notice and the posting; to 14 January for the open house and accuracy.
Who	The group.
Where this comes from	RFP II s.2.7(a)(i)–(v) (engagement), s.4.2(a)(viii) and (b) (pass/fail), s.5.3(b) and s.5.7 (waivers, clarification), s.3.5(c) (later addenda); Engagement form, Exhibit A; FAQ v.02 items 10 and 11; EARD s.6.2.4 (ABO’s channels); ABO project page (read 27 Sept 2026).

A3

Bidding

Suggested action

Do, narrowly

A fact-check package for the bid administrator

Work required

Potential difference

Public opinion

Chance of stopping

Medium

Medium

Low

Low

if a real discrepancy exists

When

Ask by 8 Oct; build Oct–Dec; before 14 Jan

Who

Dan

Why this opinion rating:

It goes to the administrator, may be shown to ABO, and must say “please verify”, never accuse.

What you can do	Build one careful, factual table comparing ABO’s public claims with the public record, and send it to the bid administrator, if and how the administrator will take it.
Why it might help	- The administrator may verify bid information “with any third party”, and may re-evaluate or disqualify a bid for incorrect or misleading information. But it judges the bid on the proposal, sets no process for outside material, and may let ABO clarify. The package can only prompt a check. There’s no public route yet. Round 2 publishes none; in round 1 the administrator took project comments until the bid deadline. After 17 September only registered bidders may ask <i>questions</i>, but

Words on this page

Also on this page: RFP request for proposals · **FAQ** frequently asked questions · **EARD** Environmental Assessment Registration Document · **ABO** ABO Energy, the developer · **Waiver** giving up or excusing a requirement · **Addendum** a formal change · **Bid administrator** the firm running the bidding

“interested parties” may still report errors or ambiguities by 8 October.

How much it can do: medium, but only if a real discrepancy exists.

How to do it

1. **First, by 8 October:** email greenchoice@poweradvisoryllc.com (the only allowed address), in general terms. Will it take factual material from residents, how, and by when, including a later update on the approval's status? Ask to join its update mailing list. Don't mark the email confidential; it may be posted. The administrator is a private contractor, not a body covered by FOIPOP, so this stays an email. The same week, file an information request with the Energy department for its records on how the administrator handles outside information.
2. **Build one table.** Columns: the rule; ABO's dated public claim; the primary record; the discrepancy, if any; what to check; what's still unknown.
3. **Add a row only if the record supports it:**
 - **The approval** (7 points): does it fully represent the bid design (up to 6 turbines, 42 MW, the registered layout)? Is it still live after the start deadline of about 6 January 2027? The call for bids is silent on a lapsed approval; the administrator decides. If it rejects the approval, only a perfect 4.0 questionnaire score earns the 7 points.
 - **Zoning** (2 points): a county letter or certificate confirming as-of-right zoning for every turbine and connection lot. On a desk overlay, a detached piece of the lot holding turbines 5 and 6 touches the edge of the coastal zone where only small turbines are allowed (within map error; **C2**). The administrator is weighing an alternative criterion, so keep checking addenda until bids close.
 - **Access:** turbine lots need title records, plus the owner's letter where ABO isn't the owner (mandatory). The 2 site points

Words on this page

As-of-right allowed under the zoning rules: by permit, without a separate discretionary planning decision.

Also on this page: **FOIPOP** Freedom of Information and Protection of Privacy • **ABO** ABO Energy, the developer • **MW** megawatt

need every road and line on private land with rights secured, or on existing public roads. The 2024 registration put roads and lines on “a mix of Crown land and private land”, and Crown easements are considered only after a contract is signed. Ask whether any stretch still crosses Crown land off an existing public road, and how the plan still reaches operation by 31 December 2030 (mandatory). ABO’s timeline targets 2030.

- **The liaison committee** (1 point): the point needs a *formed* committee of nearby community members, with terms of reference. ABO’s spring 2026 update still welcomes volunteers and says it will meet “once up and running again”. How long a committee has existed, and efforts to form one, don’t score. A gap in meetings is a question for the Department (G1).
 - **The bidder and its money**: whether ABO registered by 17 September, which company bids, who backs it, and whether the Minister’s consent to a transfer is needed (A4).
 - **Engagement**: A2’s log, only if it shows a documented gap.
- 4. Keep it safe.** Public records only; parcel numbers, not owners’ names; “please verify”, never “ABO misrepresented”. ABO may see it, and it may be released under FOIPOP.

When

Ask by **8 October**; build October to December. Use the administrator’s process and date if it gives one. If not, send it in December and add any update on the approval’s status after 6 January, before bids close on **14 January 2027**.

Who

Dan.

Where this comes from

RFP II s.3.4(a)–(c) (questions; errors and ambiguities by 8 Oct; greenchoice@poweradvisoryllc.com), s.3.2(b)(ii) (mailing list), s.3.12(a) (release), s.4.2(b), s.4.3(b), s.5.5, s.5.7(a), (c), (d), (j); s.4.3(e)(iv) (EA points), (e)(v) (zoning and site points), (f)

Words on this page

EA environmental assessment: the Province’s review of a project’s likely effects before it can go ahead. Rhodena’s was approved with conditions on 6 Jan 2025.

Also on this page: ABO ABO Energy, the developer • **FOIPOP** Freedom of Information and Protection of Privacy • **RFP** request for proposals

(CLC point); s.2.2, s.2.3(b)(v)(A), s.2.9, s.2.11, s.4.2(a)(v) and (x); FAQ v.02 items 12, 15, 34, 35; archived round 1 FAQ (Dec 2024); EARD s.2.1; approval conditions 3.2, 3.5, 3.9, 9.3; **D1** #10.

A4

 Bidding

Suggested action

Do

Find out who will own and pay for it

 Work required

Low

to monitor

 Potential difference

Medium

 Public opinion

Medium-high

 Chance of stopping

Low-unknown

When

Monthly to 14 Jan; ABO's pages around 30 Nov

Who

Dan and a volunteer

start about 6 Jan • bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating: “Who will own it?” is one of the four public messages and needs no technical background; it must never slide into calling ABO insolvent.

What you can do

Keep track of who will own, bid for and pay for Rhodena, using the public registry and ABO’s own announcements, and ask ABO directly.

Why it might help

- The administrator must exclude a bid unless it is satisfied the bidder has “the financial capacity or support” to build and operate the project. An investor or lender can supply the support.
- **ABO’s German parent company is restructuring** under a standstill with its lenders that runs to **30 November 2026**. Since July it has agreed to sell its Polish and Hungarian subsidiaries and its Argentine projects, “focusing on core markets”. No English ABO release or announcement since 2 April mentions Canada (checked 27 September).

Words on this page

CLC community liaison committee: a committee of local residents the approval requires ABO to keep; advisory only.

Also on this page: **FAQ** frequently asked questions • **EARD** Environmental Assessment Registration Document • **ABO** ABO Energy, the developer

28

- **Selling projects is normal for ABO, not a red flag.** On 2 April 2026 it announced the sale of the rights to Papoqji'jg, a 63 MW New Brunswick project with a 2025 power contract, to Eolectric. Rhodena's page still leaves its investor and First Nations partner(s) unnamed.
- **The company registry** (free search, 27 September 2026):
 - ABO Energy Canada Ltd., which holds the approval, is active. It filed a change of directors and officers on **20 August 2026**.
 - Rhodena Wind Inc. (incorporated 2024) is active and shares a director with it. It filed a change to its share structure and an increase in share capital on **24 September 2026**. The free view doesn't show shareholders or what changed. **Which company will bid is not verified.**
- **The consent trail:**
 - Transferring the approval needs the **Minister's written consent**. Selling a controlling interest, or moving the approval from a parent to a subsidiary or affiliate, counts as a transfer. Moving it to Rhodena Wind Inc. would need consent; a stake that leaves control and the approval in place would not. Whether a change at the German parent counts is unclear.
 - ABO must copy registry changes to the Department within **5 days**. The 20 August change is one. Don't assume it wasn't sent.
 - Bids can't be assigned. From the bid deadline to contract signing, the bidder can't change control, directly or indirectly, without the administrator's prior written consent. The exception: if the bidder, or a company controlling it, is listed on a recognized stock exchange, a change caused by share trading needs only notice within 10 business days and answers to the administrator's reasonable questions. A breach

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **MW** megawatt · **Approval** a regulator's permission · **The Department** Nova Scotia Environment and Climate Change · **Bid administrator** the firm running the bidding · **Business days** days banks are open

may disqualify the bidder. The winner can't substitute another party at signing.

- The proposal security (financial security posted with the bid) is **\$35,000 per MW**, about **\$1.47 million** at 42 MW. Financing earns up to **4 points**; missing them costs the points, not the bid, but the financial test above still applies.

How much it can do: medium. Chance of stopping the project: low, or unknown.

How to do it

1. Check ABO's announcements and press pages around and after **30 November**.
2. Re-run the free company-registry search (both companies, and any new "Rhodena" name) monthly and before 14 January. Copies of filed documents cost \$12.45 each (optional).
3. Ask ABO in writing which company will bid, who owns it, who the investor is, and whether it will seek the Minister's consent to a transfer.
4. Dan's information request to the Environment department asks for any consent records and ABO's copy of the 20 August registry change.
5. In the fact-check package (**A3**), ask how the administrator will check financing support, and any gap between the bidder and the approval holder. The administrator can contact financing parties itself.
6. **Never call ABO insolvent or bankrupt.** The parent is restructuring; ABO says Rhodena has an unnamed investor. Ask who will own and finance it.

When

Monthly, and before 14 January; ABO's pages around and after 30 November.

Who

Dan and a volunteer.

Words on this page

Proposal security financial security posted with a bid: \$35,000 per MW, about \$1.47M at 42 MW; it can be drawn if a winner doesn't sign.

Also on this page: **MW** megawatt • **ABO** ABO Energy, the developer

Where this comes from

Renewable Electricity Regulations s.35C(2)(b); Green Choice Program Regulations s.13(1); ABO ad hoc announcements (to 31 July 2026) and press releases (2 Apr 2026); RJSC free search (27 Sept 2026); approval conditions 3.9 and 3.10; Environment Act s.41B; RFP II s.5.2, s.3.10(a)(iii), s.3.9(d)(ii), s.4.3(e)(ii), s.2.12(a)(iii), s.5.7(l); Financing Form, Exhibits A–D.

A5
Bidding
Suggested action

Watch the grid queue and the new grid study

♂ Work required

Low

🎯 Potential difference

Unknown

💬 Public opinion

Low

⊖ Chance of stopping

Unknown

When The queue now; study results from 26 Nov
Who Dan

Why this opinion rating: Technical, and the group can't see ABO's price, so it can't honestly claim grid costs will sink the bid.

What you can do

Watch the public list of grid-connection requests and the new grid study for Rhodena, and compare them with the 2024 study.

Why it might help

- ABO must file a valid grid-connection request by **30 September 2026**, for as-available service only. A completed study must come with the bid. Results are targeted for **26 November**; if they arrive after 15 December, the 14 January bid date moves.
- **Rhodena's own 2024 study** (NS Power, 31 May 2024) names "Rhodena Wind": 42 MW, six 7 MW turbines. It found:
 - overloads on four lines and on the transformer at Port Hastings. The fixes relied on changes to automatic grid-protection schemes that need a regional reliability body's approval. If those fail, line upgrades add about **\$37.8 million** (no contingency);

Words on this page

RJSC Registry of Joint Stock Companies. Nova Scotia's company registry; a free search shows status, directors and dated filings.

Also on this page: **ABO** ABO Energy, the developer · **RFP** request for proposals · **NS Power** Nova Scotia Power · **MW** megawatt

- in the one stressed case studied (Wreck Cove at maximum, heavy Cape Breton export, one outage), only **1.7 MW** before the transformer overloads. That isn't a yearly forecast;
- a preliminary, non-binding estimate of about **\$20.1 million** to connect (with a 25% contingency; not counting sales tax, some equipment and stability fixes), paid by the developer, with the network-upgrade share refundable.
- That study isn't in the latest posted list, and it predates this round, so it can't count. Round 2 needs a new one.
- **The grid test in the bidding comes late.** The grid operator tests whether each project's power can be delivered on the 2030 system, in rank order, with the project at 90% output in high-wind cases. A configuration that fails is removed. A pass doesn't guarantee connection, cost or date. No work on these lines or the transformer is in the 2026 ten-year system outlook.
- **Costs act through price.** ABO pays for its own connection. Price is 50 of 100 points, and a price over 1.5 times the weighted average of ranked bids is rejected. Costs can hurt the bid, but the group can't see ABO's price, so **don't claim they will kill it.**

How much it can do: unknown.

How to do it

- 1. Watch the next posting** of the connection list for a wind request on line L-6537, as-available service, dated after 15 June. Don't filter on 42 MW: a 42 MW bid can rest on a request of up to 105 MW. Don't search by county: the study index lists the 2024 study under "Cape Breton". The list won't name ABO before a connection agreement; confirm who it is from the study report. The posted list is still dated 15 June, so it proves nothing yet about a September filing.
- 2. From 26 November, check NS Power's study-report index.** Reports are posted after the results meeting and can name the project (the 2024 one did). Posting lags: the index was last

updated 31 March 2026. If nothing is up by mid-December, ask the grid operator (interconnect@ieso-ns.ca) when it will be.

3. **Compare the new study with the 2024 one.** Is the Port Hastings transformer still the limit? Were the protection-scheme changes approved? Does the 2024 study's 24–36-month grid build (after funding and a cleared right-of-way) still fit the 31 December 2030 operation deadline? Put real discrepancies in the fact-check package (A3).
4. Pay an engineer only if the new study shows a constraint the bid may misstate, and the administrator accepts outside material.

When

The list now; the study from 26 November.

Who

Dan.

Where this comes from

RFP II s.2.8(a)–(b), s.3.3(a) and (c), s.4.2(a)(ix) and (v), s.4.3(c)–(d), s.4.5(b) and (d), s.2.3(b)(ii) (A); FAQ 56; IR713 feasibility study (31 May 2024) s.6, s.6.2, s.11; IESO-NS transmission queue (15 June 2026); GIP s.3.4; deliverability methodology s.2 and s.4.3; 2026 10-Year System Outlook, Table 9; older study IR644.

Words on this page

IESO-NS Independent Energy System Operator (Nova Scotia): the province's independent grid operator. It keeps the connection queue and tests whether bids' power can be delivered.

GIP Generator Interconnection Procedures: the published rules for connecting generators to the grid.

IR644 interconnection request 644: an older 2022 study of 102.6 MW on L-6537; it names no developer.

Also on this page: RFP request for proposals • FAQ frequently asked questions • IR713 interconnection request 713 • MW megawatt

A6

Bidding

Suggested action

Later

Work required

Potential difference

Public opinion

Chance of stopping

Low

Low-medium

Low

Low

When

After the selection decision (target 6 May 2027): request the report; if ABO is selected, watch signing and security

Who

Not assigned yet (records: Dan)

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

Mostly records and watching after a decision; little to show the public until then.

What you can do

After the selection decision, get the administrator’s final report, whoever wins. If ABO is selected, also watch its signing deadline and security.

Why it might help

- The administrator must give the Minister of Energy a final report within **60 days** after its written decision, which is due within 7 days of selection. It covers a comparison of the bids’ economics, the reasons for the selection, and contract prices and sizes, including averages. If notice goes out on the **6 May 2027** target, the report is due by about **5 July 2027**. Individual prices may be withheld as third-party business information. No published round 1 report was found.
- A selected bidder must sign the contract and post performance security (\$35,000 per MW in the filed contract, like the proposal security) within **20 business days** after the administrator sends it the contract. If it doesn’t, it may be disqualified and its proposal security drawn. In round 1, only two of six selected projects signed (ABO’s Rhodena page).

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **MW** megawatt · **Bid administrator** the firm running the bidding · **Proposal security** financial security posted with a bid · **Business days** days banks are open

- After signing, transfers of the contract, including indirect ones, generally need NS Power's consent; transfers to an affiliate or a lender are excepted.
- NS Power must tell the Minister and the Energy Board of a contract termination within **30 business days**, and report transfers, assignments and terminations by **31 January** each year. The Minister may ask the supplier for progress, local-benefit and technical reports: good targets for information requests.
- Only NS Power or a bidder can appeal a selection, to the Energy Board, within **30 days after receiving** the written decision, for errors of law, jurisdiction or natural justice. **Residents have no appeal there.**

How much it can do: low to medium.

How to do it

1. Ask for the round 1 report now, in the Energy information request (**D1**).
2. Request the round 2 report from the Energy department under the new access law (in force 1 April 2027).
3. Watch the administrator's announcements and ABO's page for signing.

When

After the selection decision (target 6 May 2027). The report is due 60 days after the written decision: about 5 July 2027 if the decision goes out on 6 May.

Who

Not assigned yet. It is records work, which Dan keeps.

Where this comes from

Renewable Electricity Regulations s.35C–35D; RFP II s.3.10(a) and s.3.3; filed PPA s.16.2–16.3; Green Choice Program Regulations s.15, s.22, s.23; Electricity Act s.28(4); new FOIPOP Act (Bill 150, in force 1 Apr 2027).

Words on this page

PPA power purchase agreement: the 25-year contract under which a winning bidder sells electricity to NS Power.

Also on this page: **NS Power** Nova Scotia Power • **ABO** ABO Energy, the developer • **RFP** request for proposals • **FOIPOP** Freedom of Information and Protection of Privacy

A7

Bidding

Suggested action

Check public funding claims, only if relevant

Only if relevant

♂ Work required

Medium

🎯 Potential difference

Low

unless a defect is proved

💬 Public opinion

Low

⊖ Chance of stopping

Low

When Ask ABO now; check disclosures after any award

Who Dan and a volunteer

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

Relevant only if a documented misstatement turns up; opposition alone is no funding veto.

What you can do

Ask whether ABO's bid relies on federal financing or grants, and act only if you find a documented misstatement.

Why it might help

- The call for bids encourages bidders to use Canada Infrastructure Bank financing, tax credits and a federal clean-power fund (SREPs); bidders can ask the bank about its products now. The bank's standard offers are for bidders *awarded* a contract. The fund's money is for selected projects, after due diligence, and is owed only under a signed agreement.
- The bid must list expected government funding, but bids aren't public. The bank must withhold information it gets about proponents, so a federal information request to it would likely return little.
- The federal grants and contributions disclosure shows nothing for Rhodena, ABO or Community Wind Farms (27 September 2026), but it lists awards only, not applications or bank loans.
- The contract filed for the Energy Board's approval has no exit if the bank's or the fund's money falls through; the June draft's exit clause was removed.

Words on this page

SREPs Smart Renewables and Electrification Pathways Program. Natural Resources Canada funding for clean-power projects.

Also on this page: **ABO** ABO Energy, the developer

NRCan Natural Resources Canada: the federal natural resources department.

- **Opposition alone is no funding veto.**

How much it can do: low, unless a defect is proved.

How to do it

1. Ask ABO whether the bid relies on the bank or the fund, with the investor question (A4).
2. After an award, check the federal disclosure and the bank's announcements.
3. Check the final contract once the Board rules.
4. Send a funder only a *documented* misstatement (for example, on the approval's status).

When

Ask ABO now; check the disclosures after an award.

Who

Dan and a volunteer, with the email to ABO.

Where this comes from

RFP II s.1.5; Financing Form s.4; Canada Infrastructure Bank Act s.28; Access to Information Act s.24 and Sch. II; federal grants and contributions disclosure (27 Sept 2026); Energy Board matter M13042 (filed PPA) and the June draft PPA.

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **RFP** request for proposals · **PPA** power purchase agreement · **Approval** a regulator's permission

B

The environmental approval and its conditions

 Chapter B • 15 ideas

The 2025 approval has no statutory appeal, and the usual deadline for court review has passed (see **B14** and chapter H). But it comes with conditions: a start deadline, steps ABO must take before work, and powers the Department keeps to ask for more. This chapter is about using those, on the record, and about the wildlife, water and heritage evidence behind them.

	Idea	Work	Difference	Opinion	Stopping	Page
B1	The start deadline: about 6 January 2027	Low to check	Medium	High	Low	40
B2	Track each step ABO must take before work starts	Low	Medium	Low	Low	45
B3	Find out how the wildlife agencies' concerns were settled	Low-medium	Medium	Medium	Low	48
B4	Watch for changes to the turbine design	Low to compare	Medium if a real change	Low-medium	Low	51
B5	An independent ecology review	Medium it costs money	Medium-high for operating rules; low-medium for siting	Low	Low	54
B6	Ask for operating rules that reduce bat deaths from day one	Low to ask	Medium	Medium	Low	56

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **Judicial review** asking a judge to review a decision • **The Department** Nova Scotia Environment and Climate Change

	Idea	Work	Difference	Opinion	Stopping	Page
B7	Wetlands and streams	Low for records; medium for the technical check	Medium high leverage on local design	Low–medium	Low	58
B8	Roads, lynx, old growth and lichens	Medium	Medium–high for design	Medium	Low	61
B9	Test your well before any work	Low	Protective	Low	Low	63
B10	Archaeology and the 1884 settlement map	Low desk check done	Low–medium local avoidance, testing, or moving a pad or road segment	Medium	Very low	65
B11	Old mine openings and hibernating bats	Very low a few inquiries	Low–medium none confirmed; already top risk category	Low	Low	68
B12	Record species at risk, carefully	Medium	Medium only if new, verified and near the footprint	Low–medium	Low	71
B13	Use the law's complaint tools, only on documented facts	Low if facts exist	Medium	Low	Low	74
B14	Court review of a fresh decision	High	High potentially	Low–medium	Low	76
B15	Federal routes, only on a specific trigger	High	Low in general	Low	Low	78

Words on this page

Also on this page: **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **Old growth** old forest • **Judicial review** asking a judge to review a decision

B1
 Environment
Suggested action

[**Do first**](#)

The start deadline: about 6 January 2027

Work required

Low

to check

Potential difference

Medium

Public opinion

High

Chance of stopping

Low

When **Act now; check again about 8 Dec and 7 Jan**

Who **Dan; the group**

Why this opinion rating: A near-term deadline and a clear request for conditions are easy to explain. Say “start by about 6 January unless extended in writing”, never “the approval expires”.

What you can do

Find out where the start deadline stands, get the records that show it, and ask the Minister to attach conditions to any extension: new bird and bat studies, and a limit to the registered project (up to six turbines and 42 MW), with any change reviewed first.

Why it might help

The approval says ABO must **start work within two years** of 6 January 2025, so by about **6 January 2027**, unless the Minister extends that in writing. ABO has to ask in writing, and the Minister must find the request “valid and reasonable”; no published criteria were found. ABO’s own web page estimates engineering and construction in 2028–30, so expect either a request for an extension or some early site work before the deadline.

- **It is not an expiry date.** Neither the rule nor the approval says the approval lapses. But the provincial environment law calls this the period “during which a proponent can act upon the approval”, and an older Department guide, since replaced, said missing the time frames without an extension made the project “null”. Missing the date without an extension would break a

Words on this page

Also on this page: **MW** megawatt · **ABO** ABO Energy, the developer · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit · **Extension** extra time allowed under a particular rule

condition of the approval. How the Department would then treat the approval is an open question, worth asking.

- **Early site work counts as a start**, on any part of the project. But before starting, ABO must give 30 days' written notice (by about 7 December 2026 for a 6 January start) and meet the requirements for plans, species information and a complaints contact; some plans must be in place rather than filed. Road work has more requirements, including the final turbine layout and updated noise and flicker modelling. The Department can change the timing in writing, or consent to plans in phases; work may then go only as far as the completed phases (**B2**).
- **An extension needs no public notice or comment period**. So letters have to arrive before any decision. The Department has posted an extension on a project's web page before (a spaceport project at Canso, 2021), so keep watching Rhodena's page too.
- **The link to the bidding is weaker than it looks**. The bid scoring gives 7 points to a bid whose main design "has received" an environmental approval with conditions by the bid deadline, if the approval is "wholly representative" of that design; the bid administrator decides whether it applies. Rhodena's approval dates from January 2025, and a questionnaire score of 4.0 also earns the 7 points. The administrator also judges each bidder's "viable path" to its approvals, which bidders with no approval yet can pass. So a missed start doesn't automatically cost ABO points.

How much it can do: a medium effect, and a low chance of stopping the project on its own. The real value is in the conditions an extension could carry.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **The Department** Nova Scotia Environment and Climate Change • **Shadow flicker** the flashing shadow of turning blades • **Extension** extra time allowed under a particular rule • **Bid administrator** the firm running the bidding

How to do it

- 1. Ask and request on the same day.** Dan emails a short status question to the Department's environmental assessment branch and its Port Hawkesbury office (the office the approval names as its contact), and files an information request (FOIPOP) the same day. The email can offer to narrow or withdraw the request if the records are simply sent. It also asks how the Department would treat the approval if the date passed with no work and no extension, whether it would accept a late request, and to be told of any extension or change.
- 2. What the request asks for:** any extension request, decision and reasons; ABO's start notice, and what the Department counts as a start; ABO's yearly status tables on each condition, due each 31 January; and any written permission to change the timing or file plans in phases.
- 3. Check again on set days.** About 8 December (has a start notice arrived?) and about 7 January, Dan sends a dated email and files a dated request the same day, each for records created or received since the previous request. Those requests aren't due until about 7 January and 6 February, later if extended, so for 6 and 14 January the emails, the Province's project page and the site watch are what count.

Words on this page

Also on this page: **FOIPOP** Freedom of Information and Protection of Privacy · **ABO** ABO Energy, the developer · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit · **The Department** Nova Scotia Environment and Climate Change · **Information request** a request for a public body's records · **Extension** extra time allowed under a particular rule · **Commencement** starting work · **Concordance table** ABO's yearly status report

4. **Write to the Minister** after the first reply or the first records, whichever comes first. Ask that any extension come with a new year of bird and bat baseline studies before construction (the approval already lets the Department require them). Ask also that it state that it covers only the registered project, up to six turbines and 42 MW, with any change going to the assessment branch first. The points to make:
- Natural Resources found bird-survey coverage “poor, particularly near Turbine 5 and Turbine 6”, and asked for breeding-bird surveys “prior to turbine construction”. The federal environment department found no point-count station (a fixed bird-counting spot) at any turbine location.
 - The bird counts are from 2022 only; the radar and bat recordings from 2022–23. They would be 5–8 years old if construction follows ABO’s 2028–30 estimate.
 - Over 70% of the bat calls recorded were from migratory species. In May 2023 the national committee that assesses wildlife (COSEWIC) assessed all three migratory bats as Endangered. That assessment doesn’t put them on the federal or provincial legal lists.
 - Recent approvals require “an additional year of baseline” bird and bat studies before operation (Kmtnuk 2023, Clydesdale Ridge 2024, Eigg Mountain and Ocean Lake 2026). Rhodena’s does not.

Group members send their own letters, in their own words, to match.

5. **Watch the site from public roads**, November to January: dated photos, no trespassing. If work starts, check the start rules and any written permission before saying anything is wrong.

Words on this page

Baseline a dated record of how things are now: so later changes can be shown.

COSEWIC Committee on the Status of Endangered Wildlife in Canada: the national scientific committee that assesses species. Its assessment alone doesn't make a species legally protected.

Also on this page: MW megawatt • ABO ABO Energy, the developer

Migratory bats hoary, eastern red and silver-haired bats: COSEWIC assessed them Endangered in May 2023. As of Sept 2026 they are not on the federal or Nova Scotia legal lists.

Clearing now and building in 2028 is the gap the federal fisheries and environment departments and Natural Resources warned about; the fisheries department said site preparation “too far in advance” may harm fish habitat.

When	Now. The email and request right away; dated checks about 8 December and about 7 January; the letter to the Minister as soon as the first reply or records arrive, before any extension is decided (don't wait for January); the site watch November to January.
Who	Dan does the records and the letter to the Minister. The group writes letters and watches the site.
Where this comes from	Environmental Assessment Regulations s.27 (start within 2 years; extension) and s.2(2) (“commence” includes site preparation); approval conditions 1.2, 3.2, 3.3, 3.4, 3.5, 3.12–3.13, 3.19, and the before-work and before-road-work items (4.1, 5.2–5.3, 6.1–6.2, 8.2, 9.1–9.2, 10.1, 11.1); Environment Act s.49(1)(o); superseded 2017 Department guide; Green Choice RFP II s.4.3(e)(iv) (7 EA points; 4.0 questionnaire), s.2.6(a) and s.4.2(a)(vii) (viable path); Comments Part 1 (Natural Resources, 11 Dec 2024; ECCC, 28 Nov 2024; DFO); EARD ss.7.4.4–7.4.5 (survey years; bat calls); Kmtnuk, Clydesdale Ridge, Eigg Mountain and Ocean Lake approvals; Canso Spaceport extension (2021).

Words on this page

ECCC Environment and Climate Change Canada: the federal environment department. Its Canadian Wildlife Service advises on birds and species at risk.

DFO Fisheries and Oceans Canada: the federal fisheries department; it decides whether work near fish habitat needs a federal authorization.

Also on this page: RFP request for proposals • EA environmental assessment • EARD Environmental Assessment Registration Document

B2

Environment

Suggested action

Track each step ABO must take before work starts

Do

Work required

Potential difference

Public opinion

Chance of stopping

Low

Medium

Low

Low

When

Now; dated checks Dec and Jan; then at each step

Who

Dan; the group

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

Careful records work; it can't be used to allege a breach until a documented step is missed.

What you can do

Build a dated table of every step the approval requires ABO to take before work starts, before road work, before turbines go up and before operation, and when each step was met.

Why it might help

Before any work (construction or site preparation):

- 30 days’ written notice; for a start on 6 January 2027, that’s by about 7 December 2026;
- a sediment and erosion control plan;
- species and wetland data (to Natural Resources only) and a wildlife plan (to the Department, Natural Resources and the federal environment department);
- a complaint plan and a Mi’kmaq communication plan, developed and in place, and a complaint contact named to the Department;
- a contingency plan.

Before building or upgrading roads:

- the final turbine choice and positions, with updated noise (including baseline) and flicker modelling that must

Words on this page

Also on this page: ABO ABO Energy, the developer · Approval a regulator's permission · Condition a rule attached to an approval or permit · Commencement starting work · The Department Nova Scotia Environment and Climate Change · Baseline a dated record of how things are now · Shadow flicker the flashing shadow of turning blades

“demonstrate compliance” with the 40 dBA and 30-hour / 30-minute limits (G3). A change from the registered design goes to the assessment branch first (B4);

- a surface-water plan;
- archaeology testing completed for the areas of higher potential that can’t be avoided (also before related ground disturbance). The results go to the heritage department and the Department before construction.

Before altering a wetland: a wetland alteration approval. Any project work or vegetation removal within 30 m of a stream or wetland needs written authorization.

Before turbine construction (not necessarily before clearing): an adaptive management plan.

Before operation: a bird and bat mortality program (to Natural Resources and the federal environment department only).

Monitoring runs at least 2 years from operation.

Each 31 January, until released in writing: ABO’s yearly status table on each condition, and a monitoring summary.

- **“Submit” is not “get approved”.** Only the wetland approval and the 30 m authorization need the Department’s permission; other permits still apply. A filing must still meet its condition (the final-turbine filing must show compliance; archaeology testing must be complete). The complaint and Mi’kmaq plans must be in place before work, but go to the Department only on request, so it may not hold them. The Department can vary a timeline in writing, or consent in writing to a plan in phases; work may then go only as far as the completed phases. **Check all of this before alleging a breach.**
- **Where the dates come from.** Nothing is posted on Rhodena’s project page after the approval (checked 27 September 2026); that is not evidence of a breach. Across about 70 Nova Scotia wind

Words on this page

dBA A-weighted decibels: the usual measure of sound as the human ear hears it. The approval’s limit at homes is 40 dBA.

Also on this page: ABO ABO Energy, the developer

project pages, none shows a start notice, a yearly status table, or a wildlife, water, erosion, complaint or contingency plan filed after approval. Later postings are rare: two extension notes (2009, 2010) and two layout changes (Digby, 2010; Mersey River, 2023). So recheck Rhodena's page if the layout changes, and get the dates from records.

- **The link to the start deadline (B1).** If ABO starts work by about 6 January 2027 to meet the deadline, the notice and the seven before-work items must come first. If that work is road building or upgrading, the final turbine choice is needed too. ABO's project page (undated Q&A, read 27 September 2026) says the model is not finalized.
- **If a step is missed** (dated work before the required step, with no written variation): breaking a condition is an offence, and doing the step late doesn't erase it, so use **B13**. The law's main tools are charges and orders, which can stop a specific activity. A missed step alone is unlikely to end the project.

How much it can do: medium.

How to do it

1. **Build the table:** each step's trigger, who receives it, the date it was met (and the record that shows it), and when the work it must come before began.
2. **Get the dates from records.** The first information request to the Department and the dated follow-ups in December and January (**D1**); add non-compliance notices, monitoring summaries, written releases, archaeology results and inspection records, and cover the Port Hawkesbury office. Natural Resources for the species data and, nearer operation, the mortality program. The federal environment department for the wildlife, adaptive and mortality plans (a federal information request).
3. **Get the dates of work from the site watch (B1).**

When

Now; dated checks about 8 December and 7 January; then at each step.

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Q&A** questions and answers · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit · **Commencement** starting work · **Concordance table** ABO's yearly status report · **Extension** extra time allowed under a particular rule · **Information request** a request for a public body's records · **The Department** Nova Scotia Environment and Climate Change

Who

Dan does the records; the group records the site-watch dates.

Where this comes from

Approval conditions 1.2, 3.3, 3.4, 3.5, 3.6, 3.7, 3.12–3.14, 3.20, 4.1, 5.1–5.3, 6.1–6.4, 7.1, 7.3, 8.2, 9.1–9.2, 10.1, 11.1; EA Regulations s.2(2); Environment Act s.158(f) and s.125(1)(a); Nova Scotia EA registry (about 70 wind project pages, checked 27 Sept 2026); **D1** #1, #4, #11–#12.

B3

Environment

Find out how the wildlife agencies' concerns were settled

Work required

Low-medium

Potential difference

Medium

Public opinion

Medium

Suggested action

Do

Chance of stopping

Low

When

Now; again after any start date passes

Who

Dan

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

The Province's own words, coverage “poor, particularly near Turbine 5 and Turbine 6”, are quotable; the rest is technical.

What you can do

Get the records that show how the provincial and federal wildlife agencies' concerns about birds and bats were dealt with, and ask the Department to require bird surveys covering the final layout.

Why it might help

The concerns (agency comments, posted on the project page):

- The federal environment department: the Alberta bat-risk benchmark ABO used is “inappropriate for this project”; the rate should have used August to early-September nights, not the whole season.
- Federal: radar showed considerable night activity in the zone the blades sweep, especially in fall. It urged advance commitments

Words on this page

Also on this page: **EA** environmental assessment · **ABO** ABO Energy, the developer · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit · **The Department** Nova Scotia Environment and Climate Change

to feathering, higher cut-in speeds and shutdowns at peak migration.

- Natural Resources: migration paths “cannot be inferred by diurnal counts alone”. It wanted the wildlife plan to include measures such as shutdowns or higher cut-in speeds.
- Natural Resources: survey coverage is “poor, particularly near Turbine 5 and Turbine 6”. Do breeding-bird surveys before turbine construction, focused on modelled species-at-risk habitat. Federal: no bird-count station at any turbine site, or on the road east of turbines 5 and 6.
- Federal: map bat maternity-roost habitat and keep turbines and roads out of it.
- Natural Resources: bat detectors missed early May (they started on 13 May 2022 and 24 May 2023). Minimize work during the bat-active period, from early May to the end of October, rather than ABO’s proposed 1 April to 30 September window.
- Natural Resources: assess connectivity and cumulative habitat loss, especially for lynx (4.75 km of new road).

Where they stand on paper:

- No approval condition names these concerns. ABO must follow what it filed before the approval, but no ABO response is posted. Otherwise they fall to the plans due before work starts, chiefly the wildlife plan, and before turbines (adaptive management). Mortality monitoring runs at least 2 years from the start of operation. The Department can require more at any time.
- ABO’s registration offered no preventive curtailment. Its monitoring “may include” bat adaptive management if significant mortality is found, and breeding-bird surveys after construction. Its bird field surveys are from 2022 only (incidental sightings continued to 2024). Radar, night flight-call recorders and bat detectors ran 2022–23.

Words on this page

Feathering turning the blades edge-on: so they barely spin in low wind.

Cut-in speed the wind speed at which a turbine starts producing power. Below it, the blades can be feathered so they barely turn.

Also on this page: ABO ABO Energy, the developer

- The Department's 2025 wind checklist says projects "should conduct two years of bird and bat surveys covering the entire project area before starting operation". **Five of the six** wind approvals since November 2025 require an extra year of bird and bat studies before operation. Rhodena's January 2025 approval has no such condition.
- The comments were advice. The federal department left sufficiency to the Province, and says bats fall under provincial authority. **A gap supports a request, not a breach claim.**

How much it can do: medium.

How to do it

1. **Records by information request, with no informal step first;** questions by email.
2. **Ask for:** for each concern, which submission dealt with it, before or after the approval, and what Natural Resources and the federal department said; any bird field surveys near turbines 5 and 6 since 2022; the monitoring summaries; and the agencies' comments on the wildlife and adaptive-management plans. The federal department's own files need a federal request, if needed.
3. **By email** (it asks for a decision, not a record): will the Department require bird surveys covering the final layout, especially turbines 5 and 6, before turbine construction, as Natural Resources advised?
4. **The plans may not exist yet.** A request reaches only records already held. So after any start notice, file a new request once the notified start date has passed, when the before-work plans should all be in (for a 6 January start, about 7 January); the adaptive-management plan needs a later one.

When

Now; again after any start date passes.

Who

Dan.

Words on this page

Also on this page: **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit •

Information request a request for a public body's records • **The Department** Nova Scotia Environment and Climate Change • **Commencement** starting work

Where this comes from

Comments Part 1 (ECCC, 28 Nov 2024, [PDF](#), pp.52, 55–56, 58, 63; Natural Resources, 11 Dec 2024, [PDF](#) pp.34, 36–37); approval conditions 1.7, 2.2, 3.19, 3.20, 6.2–6.4; EARD s.7.4.4.4, 7.4.4.6, 7.4.5.4–7.4.5.6, 7.4.5.9; NSECC 2025 wind checklist; Aulds Cove approval conditions 6.4–6.5; **D1** #1 (request 1, parts 3, 5, 6), #4, #12; federal ATIP.

B4

Environment

Suggested action

Watch for changes to the turbine design

♂ Work required

Low

to compare

🎯 Potential difference

Medium

if a real change

💬 Public opinion

Low-medium

⊖ Chance of stopping

Low

When

Baseline now; compare at each new disclosure

Who

Dan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

start about 6 Jan · bids 14 Jan

Why this opinion rating: A turbine taller than 200 m would be news if documented; today this is a baseline table.

What you can do

Build a baseline table of the registered design now, and compare every new ABO disclosure against it.

Why it might help

The rules:

- Any proposed “expansion, modification, or relocation of any aspect of the Project” compared with the registration goes to the assessment branch first. It may ask for more information or a new assessment. A new assessment is not automatic.
- Before road work, ABO must submit its final turbine choice and positions, with updated flicker and noise modelling (including baseline noise) that shows compliance. It goes to the Port Hawkesbury office. It’s a submission, not an approval.

Words on this page

PDF Portable Document Format: the file format; a “PDF page” is the page number in the file, not the printed one.

NSECC Nova Scotia Environment and Climate Change: the provincial department that issued Rhodena's approval and enforces its conditions.

ATIP access to information and privacy: the federal version of an information request, made to a federal department.

Also on this page: **ECCC** Environment and Climate Change Canada · **EARD** Environmental Assessment Registration Document · **ABO** ABO Energy, the developer

The registered envelope. ABO modelled only one turbine, the Nordex N163 (118 m hub, 163 m rotor, 199.5 m to the blade tip). Its registration also lists alternatives: 4.5–7 MW, 110–140 m hub, 150–180 m rotor. Surveys covered 200 m around each turbine and 25 m either side of roads, “to allow design flexibility”. The final-turbine rule expects a final pick, but nothing exempts a pick or a move within these from the change rule. The assessment branch decides.

Where a real change could show:

- **A tip over 200 m.** The public notice says “up to 200 m tall to the tip of the blade”, and ABO sized the setbacks for a 200 m turbine. The largest listed hub with the largest rotor would reach about 230 m, though the registration states no tip height for them. The bird radar study set its rotor zone at 200 m “based on the proposed turbine height”; on spring peak nights, a greater share of targets flew higher.
- **Pads, roads or lines outside the surveyed buffers.**
- **The substation.** One drawing puts it just west-south-west of turbine 6; the noise model puts it about 1 km north-north-east. The baseline itself is unclear.
- **Noise.** The one receptor within 2 km models at **39.4 dBA**, including a 35.1 dBA background value, against the **40 dBA** limit. The Department’s reviewer warned it “could exceed 40 dBA” if the background is higher. A different turbine can move noise and flicker either way (**G3**).

Past cases point to conditions, not a stop. Mersey River (2023, a near-identical change condition) moved some turbines, roads and its line corridor. One area of high archaeological potential fell within the new line layout, so the Minister amended its archaeology condition; the registry shows no second registration. Kemptown (2014) moved the whole project 3–4 km and re-registered.

Words on this page

Hub height the height of the rotor’s centre: 118 m for the modelled turbine.

Tip height the height to the top of a blade: when it points straight up; up to 200 m registered.

Receptor a home or camp where the noise and flicker limits apply: permanent or seasonal. ABO modelled a list of them; the nearest, receptor A, is about 1.2 km away. The limits apply at any such place, not only those on the list.

Also on this page: **ABO** ABO Energy, the developer • **MW** megawatt • **dBA** A-weighted decibels

How much it can do: medium, if there's a real change.

How to do it

- 1. Build the baseline table now** from ABO's registration:
 - turbine model, MW, hub, rotor and tip height;
 - pad coordinates;
 - about 4.75 km of new road, collector lines, the substation and the 138 kV connection;
 - wetlands: 14 or fewer altered (about 1.22 ha); 3 potential wetlands of special significance to avoid, one in a proposed pad (**B7**);
 - noise and flicker inputs: sound power, operating mode, baseline noise, receptors.
- 2. Add to the status email (B1):** has anything been filed under the change rule or the final-turbine rule? Which tip height and substation site apply? The information request filed the same day asks for those filings, and for anything filed before the approval that isn't posted.
- 3. Compare each ABO disclosure with the baseline:** the posting for the bid (**A2**), open houses, the county permit file (**C1**), the final-turbine submission. ABO must keep its bid confidential until the process ends and the selections are announced, unless the administrator authorizes disclosure in writing; the target for notifying winners is 6 May 2027.
- 4. If a documented difference appears,** ask the assessment branch for a written view on whether it's a change, and send the facts through the fact-check package (**A3**). The administrator decides whether the approval fully represents the bid.

When

Baseline now; compare at each new disclosure.

Who

Dan.

Words on this page

kV kilovolt: a thousand volts. Rhodena would need a new 138 kV line.

Wetland of special significance a wetland with extra protection. Use by a threatened or endangered species can support that classification; the Department decides. Altering one is harder, not impossible.

Also on this page: ABO ABO Energy, the developer • MW megawatt

Where this comes from

Approval conditions 1.2, 1.7, 3.5, 4.1, 7.1; EA Regulations s.3(2); registration notice; EARD s.3.1, 3.2.1, Tables 3.3–3.4, Drawings 2.3A–H, Appendices K–L, s.7.4.5.5, 7.4.5.9; Comments Part 1, item 8; Mersey River amendment (Environment Act s.41A); Kemptown (2014); RFP II s.3.12(d), s.3.3, s.4.3(e)(iv); Environmental Risk form s.3; **D1** #1 (request 1, parts 4–6).

B5

🌿
Environment

Suggested action

An independent ecology review

♂ **Work required**

Medium

it costs money

🎯 **Potential difference**

Medium-high

for operating rules; low-medium for siting

💬 **Public opinion**

Low

⊖ **Chance of stopping**

Low

When Scope and quote before December

Who Dan

▼

start about 6 Jan • bids 14 Jan

SeptOctNovDecJanFebMarAprMayJuneJuly

20262027

Why this opinion rating: An expert memo written for regulators; its value lies in what they do with it.

What you can do

Hire an independent specialist for a short desk review of ABO's bird and bat studies, and send the memo to the regulators.

Why it might help

The written brief for the specialist should cover:

- the agencies' concerns (**B3**), and whether later plans answered them;
- **a table in ABO's 2022 bat report** where migratory passes exceed total passes, for 13–31 May (**7 vs 6**) and 15–31 October (**2 vs 1**). Its rows also leave out 1–14 August, so they don't add up to the 139 total. Ask for a corrected table. The 2023 table adds up;
- **no bat detector at rotor height.** The microphones sat 4.6–10 m up. The 2023 report gives their range as up to 30 m for low-frequency calls and 10 m for high-frequency calls. The rotor zone is about 36–200 m, and no detector was in it. At best, the 10 m detector could hear low-frequency calls from the lowest few

Words on this page

Also on this page: **EA** environmental assessment · **EARD** Environmental Assessment Registration Document · **RFP** request for proposals · **ABO** ABO Energy, the developer · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit

metres of it. Radar showed “considerable” night activity in the rotor zone, but it was analysed as birds and can’t tell bats apart;

- **coverage near turbines 5 and 6.** Natural Resources called bird-survey coverage “poor” there; the federal department found no point counts at any turbine site. By our calculation, the nearest bat detector was about **0.8 km from turbine 6** and **1.1–1.2 km from turbine 5** in both years. ABO says the sites stayed representative after review “in consultation with” the Province’s Environment and Natural Resources departments, but quotes neither;
- **the data’s age:** the bat and radar data are from 2022–23, and ABO targets operation in 2030;
- the old mine openings (**B11**).

Keep it honest. Recorded activity was low (**0.14 and 0.18** passes per detector-night), so frame the table as a quality issue, not proof of high risk. The stronger points: the federal department said low activity is “insufficient to conclude” the risk to at-risk bats is low, and no bat detector was placed in the rotor zone.

How much it can do: medium to high for operating rules; low to medium for where turbines go.

How to do it

1. Get a capped quote from an independent specialist with no current work for ABO, its consultant Strum, or Ausenco.
2. Ask for a short memo: which conclusions still stand, which gaps would change siting or operating rules, and an operating-rules package for **B6**. No field season until the expert says which decision it would change.
3. Send the memo to the assessment branch, Natural Resources’ Wildlife Division and the federal department. Ask the Department to use its powers: updated plans, more studies or mitigation, and a third-party review at ABO’s cost. Residents can’t trigger that review, or bill ABO for their own expert.

When

Scope it and get a quote before December.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Approval** a regulator’s permission • **Condition** a rule attached to an approval or permit • **The Department** Nova Scotia Environment and Climate Change

Who	Dan.
Where this comes from	EARD Appendix H (2022 bat report p.8, Table 3.3; 2023 report pp.6, 14), Appendix K, s.7.4.4.4, pp.208–209; Comments Part 1 (ECCC comment 15; PDF pp.34, 55, 63); approval conditions 3.18, 3.19, 4.2.

B6

Environment

Suggested action

Ask

Work required

Potential difference

Public opinion

Chance of stopping

Low

Medium

Medium

Low

to ask

When

Now, before the wildlife plans are filed

Who

Dan; the group

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

The wildlife agencies already recommended preventive operating rules. That gives residents a concrete request, although the details are technical.

What you can do	Ask the regulators to require bat-safe operating rules (curtailment) from the first night of operation, not only after dead bats are found.
Why it might help	The ask: - nightly curtailment through the bat season: a raised cut-in wind speed, with the blades feathered below it. Migratory-bat peaks were June–July in 2022 and September–October in 2023, so a late-summer-only window would miss part; - shutdowns tied to weather, peak migration or bat detection; deterrents where proven;

Words on this page

Also on this page: **EARD** Environmental Assessment Registration Document · **ECCC** Environment and Climate Change Canada · **PDF** Portable Document Format · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit · **Curtailment** slowing or stopping turbines · **Cut-in speed** the wind speed at which a turbine starts producing power · **Feathering** turning the blades edge-on

- mortality monitoring (at least 2 years), corrected for searcher efficiency, scavenging and unsearched area, with a pre-set rule to tighten or ease the settings, reported in the yearly table;
- independent checks of turbine operating logs (the Department can make ABO pay for a third-party review).

The regulators already recommended this. The federal Canadian Wildlife Service rates the project “Category 4” (“Very High” sensitivity, its level for turbines over 150 m). It advised committing, before impacts occur, to higher cut-in speeds, feathering and shutdowns based on weather and peak migration. Natural Resources’ Wildlife Division asked for “seasonal or detection-based shutdown systems” and higher cut-in speeds.

The gap in the published record. The approval names no curtailment; the adaptive-management condition asks only for a “decision-making process”. ABO’s bat mitigation covers clearing, lighting and habitat; operating changes come only through a contingency plan “if post-construction monitoring identifies significant bat mortality”. ABO’s consultant would decide “if curtailment is required” after monitoring. No wildlife or adaptive-management plan is posted; ask for the drafts (**B3, D1**).

Evidence. A 2024 review of six North American facilities estimated that a 5.0 m/s cut-in cuts bat deaths by about 62% on average (33–79% expected at one site in one year). For hoary bats, Rhodena’s most-recorded species, it was about 48% (Whitby and others, 2024). “About 80%” is a high-end figure. In a Pennsylvania trial over 75 summer and fall nights, a 5.0 m/s cut-in across the facility would have cost about 0.3% of yearly output (Arnett and others, 2011). A longer season costs more; ask ABO for a Rhodena estimate.

Keep it honest. Activity is low, and ABO’s consultant cites about 0.24 bat deaths per turbine per year in Atlantic Canada. The case is the agencies’ precautionary advice for bats COSEWIC assessed as Endangered, not a forecast of mass deaths.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **COSEWIC** Committee on the Status of Endangered Wildlife in Canada • **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **The Department** Nova Scotia Environment and Climate Change • **Cut-in speed** the wind speed at which a turbine starts producing power • **Feathering** turning the blades edge-on • **Curtailment** slowing or stopping turbines

How much it can do: medium.

How to do it

1. Send the ask to the assessment branch and Natural Resources' Wildlife Division. Copy the federal Canadian Wildlife Service; in November 2024 it said it had no permits or approvals for the project and that the Province manages bats.
2. Ask before the wildlife plan (due before work starts) and the adaptive-management plan (due before turbine construction).
3. Add it to the letter to the Minister (**B1**). Group letters can make the same ask.

When

Before the wildlife plans are filed; with the letter to the Minister.

Who

Dan writes the letter; the group writes letters to match.

Where this comes from

Comments Part 1 (PDF pp.36, 52, 55, 58); approval conditions 3.19, 3.20, 4.2, 6.2–6.4; EARD pp.197–198; 2023 bat report p.14; Whitby et al. (2024); Arnett et al. (2011).

B7

Environment

Wetlands and streams

Suggested action

Records now; check the final layout

♂ Work required

Low

for records; medium for the technical check

🎯 Potential difference

Medium

high leverage on local design

💬 Public opinion

Low-medium

⊖ Chance of stopping

Low

When

Records now; re-measure when the final layout is filed (date unknown)

Who

Dan

▼

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

Local and specific, but species details must stay off social media.

What you can do

Get the wetland and stream permits and decisions, and check the final layout against the streams and the three special wetlands.

Words on this page

Also on this page: **PDF** Portable Document Format · **EARD** Environmental Assessment Registration Document · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit

Why it might help

- **What the assessment mapped:** 36 wetlands and 26 watercourses. Up to 14 wetlands (about 1.22 ha, a conservative estimate) and up to 11 watercourses may be altered: five by new crossings (including Lamey Brook) and six at existing road crossings to be upgraded.
- **Permits needed** (status not public): wetland alteration approvals; an approval, or for qualifying culverts and bridges a notification, for each crossing that alters a watercourse; and written authorization for any work, refuelling or vegetation removal within 30 m of a stream or wetland.
- **Three potential wetlands of special significance**, all with Canada warbler (endangered in Nova Scotia). ABO says they “can be avoided during detailed design”; the Department decides. ABO puts one “in a proposed turbine pad”: a drawing outlines it about 40 m from turbine 4, yet ABO’s table (which assumes 120 m × 120 m pads) shows no alteration. Ask for the turbine 4 pad footprint.
- **Special significance is not an automatic veto.** The policy allows a “necessary public function”, which includes electrical supply infrastructure. Since 2023, unpublished Department guidance limits the species-at-risk test to threatened or endangered species (per CBC). Canada warbler qualifies (it is also threatened federally).
- **The county’s stream setback is 60 m**, measured from the tower base. It covers turbines; roads fall under the 30 m rule.
 - As modelled, **turbine 5 is about 50 m from Lamey Brook** on ABO’s field map (73 m on the provincial stream map), though ABO’s table says 60 m was applied. It’s a drawing measurement: ask the planning commission to verify it. A compliant layout needs turbine 5 moved, or a lawful variance (C3).

Words on this page

CBC Canadian Broadcasting Corporation: CBC News, the public broadcaster.

Also on this page: **ABO** ABO Energy, the developer

- Turbine 6 is about 25 m from a mapped wetland, inside the 30 m buffer. ABO's table already counts about 0.43 ha of loss there.
- **The federal fisheries department** decides, work by work, whether a federal authorization is needed. It said crossing designs, fish passage and fish habitat in wetlands were not yet specified (14 November 2024).

How much it can do: medium, with high leverage on the local design.

How to do it

- 1. Records** (in the first information request): wetland and watercourse applications, approvals and notifications; 30 m authorizations; the special-wetland decisions. A separate request asks for the current criteria for special wetlands, including the unpublished 2023 guidance.
- 2. Ask the Department** to require current wetland evaluations (its guide expects them within 12 months but may accept older ones) and the micro-siting its Water Branch advised. Press for the avoidance ABO says is possible.
- 3. When the final turbine positions are filed**, re-measure turbines 4 to 6, and check the crossings in the surface-water plan and the applications. Raise gaps with the Department and the planning commission (C3).
- 4. Keep species details off social media (B12).**

When

Records now; re-measure at the final layout.

Who

Dan.

Where this comes from

EARD s.7.3.3.5–7.3.3.6, Tables 3.3, 7.20, 7.37, Drawings 7.13A and 7.13C; approval conditions 3.5, 3.7, 4.1, 5.1–5.2; Activities Designation Regulations s.5A–5B; Wetland Conservation Policy pp.12, 18; CBC (29 Sept 2023); Blue Felt Lichen Management Plan (2025) p.26; county wind LUB s.4.4(e) and Part 6; DFO comment (14 Nov 2024); **D1** #1 (request 1, part 7) and #13.

Words on this page

LUB land-use bylaw: a county's zoning rules. Inverness has a separate wind-turbine LUB (2012, amended Sept 2025).

Also on this page: **ABO** ABO Energy, the developer • **EARD** Environmental Assessment Registration Document • **CBC** Canadian Broadcasting Corporation • **DFO** Fisheries and Oceans Canada

B8

Environment

Suggested action

Records now; review before road work

Roads, lynx, old growth and lichens

♂ Work required

Medium

🎯 Potential difference

Medium-high

for design

💬 Public opinion

Medium

⊖ Chance of stopping

Low

When

Records now; review before road work (date unknown)

Who

Dan

▼

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

Lynx and old forest matter to many people, but exact locations stay private.

What you can do

Get the road and wildlife plans before road work, and check the roads against lynx habitat, the old-growth stand and the lichen buffers.

Why it might help

- **Cumulative effects.** The assessment left land habitat, plants and animals out of its cumulative-effects review, reasoning that much of the clearing would be logged anyway. Natural Resources asked for a connectivity and cumulative analysis, “in particular for Canada Lynx”.
- **Roads:** 4.75 km of new road plus about 5 km of existing road, not the “nearly 70%” existing that ABO’s website claims.
- **Lynx** (endangered in Nova Scotia):
 - Natural Resources said the new roads allow through-travel that can let coyotes into lynx habitat, and that mitigation is “required”. Provincial practice favours dead ends and blocking or decommissioning roads. ABO limits access only “if deemed necessary” after collisions rise.

Words on this page

Decommissioning taking something out of service. Here, usually taking the turbines down and restoring the site at the end of the project's life; for roads, closing and restoring them.

Also on this page: **ABO** ABO Energy, the developer

- The assessment's winter tracking (12 transects, 2022–23) found no lynx sign, and the older lynx management area (2012 practices) is 2.7–4 km away.
- **But the 2025 provincial lynx recovery plan, newer than the assessment, maps modelled core habitat about 0.5–1.5 km from the turbines, to the north, west and south** (desk overlay, approximate). It names wind projects as a possible threat. It identifies core habitat but doesn't legally designate it.
- **Old growth:** six stands overlap the assessment area; one surrounds turbines 1, 2, 5 and 6, on private land. The no-clearing commitment covers Crown land only. On private land ABO commits to “clearing only the area necessary”.
- **Lichens:** blue felt lichen has two occurrences on private land (to be avoided) and three on Crown land within the Province's 100 m buffer; frosted glass-whiskers has four on private land. Neither is covered by the provincial ban on disturbing endangered and threatened species (which covers lynx, but not these), and since 2023 neither makes a wetland “special”. Protection rests on ABO's commitments and the wildlife plan.

How much it can do: medium to high, for the design.

How to do it

1. In the first information request: the plans due before road work (final placement, surface water) and before work starts (erosion, wildlife).
2. Check the roads against through-road links, the 2025 core habitat, the old-growth stand and the lichen buffers.
3. Ask Natural Resources which of its recommendations reached the wildlife plan, and whether it applied the 2025 lynx plan (**B3**).
4. Don't publish lichen locations.

When

Records now; review before road work.

Who

Dan.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **Core habitat** the areas a recovery plan says a species needs most • **Old growth** old forest • **Crown land** land owned by the Province • **Information request** a request for a public body's records

Where this comes from

EARD Table 14.2, s.7.4.1, s.7.4.2.6; Natural Resources comments (11 Dec 2024); 2025 Nova Scotia lynx recovery plan, Figure 4; Endangered Species Act ss.13, 16–17; approval conditions 2.2, 4.1, 5.2–5.3, 6.2; **D1** #1.

B9 **Environment**

Suggested action

Test your well before any work

Before any work

Work required

© **Potential difference**

Public opinion

⊖ Chance of stopping

Low

Protective

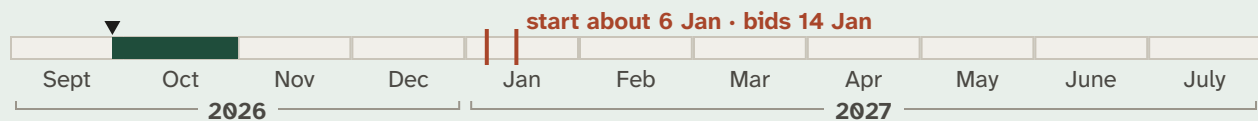
Low

Low



When Ask now; test before construction (date unknown)

Who Households near the site



Why this opinion rating: Well testing protects individual households; the results remain private, so it has little direct public reach.

What you can do

If you live near the site or on General Line Road, get your well tested before construction, and ask ABO to offer checks.

Why it might help

- **No automatic tests.** Blasting is “not anticipated”. If it’s needed, ABO will notify landowners and survey wells within **800 m** of the blast under the Department’s pre-blast procedure. The Water Branch asked for field checks of those wells, and no blasting within 800 m of homes where possible.
- **Wells:** the assessment counts 101 drilled wells within 2 km of the study area, only one within 800 m of the assessment area. Its source, the provincial well-log database, holds few dug wells (about 5% of records; the nearest is about 8 km from the turbines) and no springs, so nearby dug wells and springs aren’t counted. General Line Road, the planned access route, has homes.
- ABO must replace water supplies “lost or damaged resulting from Project operations, as authorized and required by the

Words on this page

Also on this page: **EARD** Environmental Assessment Registration Document · **ABO** ABO Energy, the developer ·

Approval a regulator's permission · **Condition** a rule attached to an approval or permit · **The Department** Nova Scotia Environment and Climate Change

Department.” A dated baseline shows what changed; it doesn’t prove the cause on its own.

- An active quarry (Rhodena Quarry) adjoins the study area. A baseline helps separate its effects from the project’s.

What it does: protects your household if the project is built.

How to do it

1. **Households nearest the site and on General Line Road:** test before construction. Bacteria plus a metals package through Nova Scotia Health costs about \$155–175 a well; Strait Richmond Hospital in Cleveland takes both. Keep the report, the well log, water-level notes and dated foundation photos. Results stay private.
2. **Ask ABO in writing** to offer baseline quality and quantity checks to those households, and to field-check all water supplies, including dug wells and springs, before any blasting.
3. **Ask the Department** whether the water-replacement condition covers construction as well as operation.

When

Ask now; test before construction.

Who

Households nearest the site and on General Line Road. The written asks aren’t assigned yet.

Where this comes from

EARD s.7.2, s.8.2.2, Table 14.1; approval conditions 2.2 and 5.5; Water Branch comment (Comments Part 1).

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **EARD** Environmental Assessment Registration Document · **Approval** a regulator’s permission · **Condition** a rule attached to an approval or permit · **The Department** Nova Scotia Environment and Climate Change · **Baseline** a dated record of how things are now

B10

Environment

Suggested action

Do

Archaeology and the 1884 settlement map

Work required

Low

desk check done

Potential difference

Low-medium

local avoidance, testing, or moving a pad or road segment

Public opinion

Medium

Chance of stopping

Very low

When Ask now; compare at final design (date unknown)

Who Dan

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating: The 1884 map with the turbines on it is shareable and striking for people with roots here; lists of likely sites are not.

What you can do

Ask the heritage department what ABO's archaeologists found and tested, share the 1884 map comparison with it privately, and compare the final layout when it's filed.

Why it might help

- **What the assessment found.** ABO's archaeologists assessed the site in 2022, 2023 and 2024. The 2024 fieldwork recorded **2 cellars**, **2 possible cellars** and **9 areas** of high or moderate potential. The heritage department counted 8 areas and accepted avoidance, or recording and testing where avoidance isn't feasible. ABO says no sites lie within the new roads, and that sites beside existing roads to be upgraded can be avoided by widening on the other side.
- **The rules.** On any archaeological or fossil find, work stops and the heritage department is called; for a possible Mi'kmaw find, also the Mi'kmaq representatives it advises. Before road work or ground disturbance, any area of higher potential from the 2024 fieldwork that can't be avoided must be tested, with the results

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit

going to the heritage department **and** the Department before construction. ABO also promised a new assessment for any disturbance outside the assessed areas, and the approval requires the project to follow its registration.

- **The 1884 map.** On Dan's provisional fit of Hugh Fletcher's 1884 Geological Survey map, which shows roads, buildings and landholders' names, ABO's 2024 turbines and roads sit among roads and building marks of the time.
 - The fit is provisional: checks against modern roads and streams are off by 5 to about 180 m, with no tested error bound.
 - The turbines and roads are ABO's 2024 design, not the final layout.
 - The map was compiled from surveys for reports dated 1879–84, so a mark's date is uncertain. A mark is a map symbol, not a cellar hole, and says nothing about what remains today.
- **Sharing.** The 1884 map with the turbines can be shared (see "Project facts and the map"). The detailed comparison goes privately to the heritage department, never into public posts (looting risk), and so do its site records and maps.

How much it can do: low to medium: local avoidance, testing, or moving a pad or road segment. Chance of stopping the project: very low.

How to do it

1. **Records by information request** (no email first): the reports from all three phases, with sensitive location details removed, and the heritage department's acceptance letters. Expect locations to be withheld.
2. **Questions by email** to the heritage department's Special Places program (SPP@novascotia.ca), the same day: which historic maps were used; 8 areas or 9; and whether any recorded feature

Words on this page

Hugh Fletcher the Geological Survey of Canada geologist: whose 1884 Cape Breton map sheets show roads, streams and buildings.

Also on this page: **ABO** ABO Energy, the developer

or area lies beside the roads to be built, widened or upgraded.
Offer the 1884 comparison privately.

- 3. **At final design**, compare the pads, roads, junctions and any widening with the 1884 map. Before construction, file a new request to the Department for the test results.
- 4. **If work threatens archaeological remains**, recorded or not, tell the heritage department at once. The Minister may stop the work for 30 days, and Cabinet can extend that for a site survey and salvage.
- 5. **No digging, metal-detecting or searching for sites**. That needs a heritage research permit, and even a permit needs the landowner's consent. Knowingly altering remains without one is an offence.

When Ask now; compare at final design.

Who Dan.

Where this comes from EARD s.9.1–9.4, p.248, p.262; Heritage Research Permits [A2022NS129](#) and [A2024NS150](#); Comments Part 2, p.21; approval conditions 2.2, 4.1, 8.1–8.2; Special Places Protection Act ss.8, 9, 12, 13; FOIPOP s.19; **D1** #9; Hugh Fletcher, Geological Survey of Canada, Cape Breton sheet 19 (1884).

Words on this page

A2022NS129 heritage research permit (2022): the permit for ABO's earlier archaeology work.

A2024NS150 heritage research permit (2024): the permit for ABO's 2024 archaeology fieldwork.

Also on this page: **EARD** Environmental Assessment Registration Document · **FOIPOP** Freedom of Information and Protection of Privacy · **ABO** ABO Energy, the developer

B11

Environment

Suggested action

Do, but don't oversell

Old mine openings and hibernating bats

♂ Work required

Very low

a few inquiries

🎯 Potential difference

Low-medium

none confirmed; already top risk category

💬 Public opinion

Low

⊖ Chance of stopping

Low

When **October–November**

Who **Dan; a volunteer**

▼

start about 6 Jan • bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating: No hibernation site is confirmed and the plan says don't oversell; if bats are found, the location stays private.

What you can do

Ask whether the old mine openings the assessment listed as possible bat hibernation sites have ever been checked for bats. Don't oversell it.

Why it might help

- **The assessment** says there are no *known* hibernation sites within 25 km of the study area. It relied on a 2007 study, with records up to 2005, before white-nose syndrome, which had no bat records from any Cape Breton cave or mine and said many hibernation sites “must remain to be discovered”; and on Natural Resources’ October 2022 word that none were known within 60 km. Hibernation sites have since been identified on the island (the nearest federal critical-habitat square is about 70 km northeast); the assessment’s table leaves them out.
- **Of 131 mine openings** within 25 km of the study area, the assessment lists 8 that “could potentially support overwintering habitat” (over 30 m deep, and not recorded as filled, capped, plugged or flooded): two coal adits and three slopes at **Port Hood Mines**, one shaft at Little River Reservoir, and two slopes at Whiteside.

Words on this page

White-nose syndrome a fungal disease of hibernating bats. Bat records from before it may be out of date.

- **Checked on 27 September 2026** against the Province's abandoned-mine database:
 - Distances from the nearest turbine (2024 layout; approximate): Port Hood Mines about 25.9–26.4 km; Whiteside about 27.5 km; Little River Reservoir about 19 km, the only one of the 8 within 25 km of a turbine. So the Port Hood sites are **just outside 25 km** of the turbines, and inside it only from the study-area boundary.
 - No field visit or hazard rating is recorded for the five Port Hood and two Whiteside openings (original depths 35–215 m). Inspectors visited 11 *other* Port Hood openings in October 2023 (all recorded as filled). So the database can't say whether these seven are still open. "No visit recorded" is about mine safety, not proof that no bat survey was done.
 - Seven of the 8 are on private land.
 - The nearest recorded opening is about 7 km from the turbines (a 6 m pit), so the database gives no ground-hazard angle at the site, though it is not a complete record.
- **The same consultant screened differently a year later.** Its December 2025 assessment for Aulds Cove also counts a 30 m coal adit about 12 km from the nearest Rhodena turbine, and three Port Malcolm openings about 23 km away. Rhodena's screen left them out; all four have plug records. Whether such plugs keep bats out is a question for the Wildlife Division.
- **Why the effect is limited.** The 25 km screen came from the 2021 wind guide; the 2025 checklist asks for potential bat habitat "in or near the project site", with no set distance. Rhodena is already in the top risk category, because its turbines exceed 150 m. A confirmed hibernation site would not by itself stop the project. It could support curtailment (**B6**) and more surveys.

How much it can do: low to medium.

Words on this page

Also on this page: **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **Hibernaculum** a place where bats hibernate • **Curtailment** slowing or stopping turbines

How to do it	1. Information request to Natural Resources for the records behind its 2022 “none within 60 km” answer, and any bat checks of the 8 since white-nose syndrome. By email (it needs a view, not a record): ask the Wildlife Division whether the four plugged openings count. 2. Ask bat researchers the same, starting with <u>ACAP</u> Cape Breton, which the 2018 federal recovery strategy says had monitored “known and potential hibernacula” on the island since 2013. 3. Ask the Province’s mine-openings program whether the seven uninspected openings are still open, and that any closure be checked for bats first. 4. Nobody enters or visits. Most are on private land, two on residential lots. Unassessed openings are dangerous, and disturbing a hibernation site used by endangered bats is an offence. If bats are confirmed, keep the location out of public posts.
When	October to November.
Who	Dan (the request); a volunteer (the emails).
Where this comes from	EARD s.7.4.4.3, Table 7.58, pp.185–186, Appendix H; Moseley (2007); 2018 federal recovery strategy; <u>NS</u> abandoned mine openings database, version 9 (June 2024); Strum Consulting, Aulds Cove EARD (Dec 2025), Table 7.62; 2021 NS wind guide; 2025 NSECC wind checklist; EARD s.4.1; Endangered Species Act s.13(1)(c) and s.22; D1 #4.

Words on this page

ACAP Atlantic Coastal Action Program: ACAP Cape Breton; a 2018 federal recovery strategy says it has monitored known and potential bat hibernation sites since 2013.

NS Nova Scotia: the province.

Also on this page: **EARD** Environmental Assessment Registration Document · **NSECC** Nova Scotia Environment and Climate Change

B12

Environment

Suggested action

Record species at risk, carefully

Seasonal; lynx map now

♂ Work required

Medium

© Potential difference

Medium

only if new, verified and near the footprint

🗨 Public opinion

Low-medium

⊖ Chance of stopping

Low

When Lynx map now; find nests Nov-Jan, check use Mar-May; lynx tracks Dec-Mar; warblers June

Who Volunteers; Dan (lynx map)

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

start about 6 Jan · bids 14 Jan

Why this opinion rating: Volunteers can take part, but exact locations stay private and repeat sightings add little.

What you can do

Volunteers can record new, verified evidence of species at risk near the turbine sites and roads, and send it privately to the right agencies.

Why it might help

- **Already on record:** Canada warbler in three wetlands (one at a proposed pad; ABO expects the design to avoid all three), other listed birds, and bald eagles. Winter 2022–23 lynx surveys found no tracks or scat. **Repeat sightings add little;** breeding evidence, or use of a spot near the final pads or roads, can still matter.
- **What would matter:**
 - a hibernation site (**B11**);
 - verified lynx sign on or near the ridge. Lynx is **endangered** under Nova Scotia’s endangered-species law (listed 2002), which bans disturbing the animal or its den;
 - listed birds breeding near turbines 5 and 6. Natural Resources called survey coverage there “poor” and asked for pre-construction breeding-bird surveys to inform the wildlife

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit · **Hibernaculum** a place where bats hibernate

plan. No condition names them; the records requests should show whether they were required;

- a threatened or endangered species using a wetland near the final pads or roads. That can make it a wetland of special significance: harder, not impossible, to alter. Since 2023, vulnerable or special-concern status alone doesn't count. The Department decides (**B7**);
- any eagle nest within **400 m** of a pad or road, even one that looks unused. The provincial wildlife law bans disturbing any bird's nest without a permit. Natural Resources' 2012 eagle-nest practices (written for forestry) set zones out to 400 m and a **February–July** breeding season; its comments asked for nest buffers.
- **New since the approval: the 2025 lynx recovery plan.** It names proposed Cape Breton wind projects and roads as threats, and maps lynx “core habitat”. A rough desk overlay of that map puts the turbine sites **about 0.5–1.5 km** outside a mapped patch in the Creignish Hills that wraps round them on the north, west and south. At about 200 m per pixel, it can't show whether any pad or road touches core habitat. The plan identifies core habitat but doesn't designate it; that needs a regulation and a Royal Gazette notice, and none was found as of 27 September 2026.

How much it can do: medium, but only if the evidence is new, verified and near the footprint.

How to do it

- 1. Now (desk work):** request the core-habitat map layer from Natural Resources (**D1**). Use it in the letter to the Minister if it arrives in time; the plan's map will do otherwise. Once the final footprint is filed, ask Natural Resources by email whether it meets core habitat.
- 2. How to record:** dated GPS photos, tracks with a ruler in the frame, or recordings. Send them to the Atlantic Canada Conservation Data Centre, Natural Resources' regional biologist and, for federally listed species, the Canadian Wildlife Service.

Words on this page

GPS Global Positioning System: satellite positioning, as in a phone's location.

3. **Keep locations private.** iNaturalist and eBird are public. On iNaturalist, set geoprivacy to “Obscured” and keep landmarks out of photos; “Obscured” or “Private” can still leak through photos, notes and nearby open posts. On eBird, log a general location, not the exact spot, or wait until the birds have left. Hiding a checklist hides the species, but its date and location may still show.
4. **Seasons:**
 - eagle nests: find them in leaf-off, November to January; check use in March to May from 200 m or more away;
 - lynx tracks: December to March, 1–3 days after 10 cm or more of new snow. Lynx prints are about 9–12 cm wide in snow, round and blurred by fur; bobcat prints about 5–7 cm and crisper;
 - Canada warbler: June at dawn, in wet, shrubby woods. Keep the audio; the Merlin app only suggests an identification. A bird singing at the same spot a week or more apart counts as probable breeding.
5. **Rules:** public roads, open Crown land, or private land with the owner’s permission. No playback, bait or approaching nests or dens. Never enter mine openings. Don’t publish exact locations of nests, dens or hibernation sites.

When

Eagle nests November to January (use March to May); lynx December to March; warblers in June; the lynx map now.

Who

Volunteers; Dan requests the lynx map.

Where this comes from

EARD (Canada warbler records; 2022–23 lynx transects); Endangered Species Act ss.13, 16–17; Wildlife Act s.51; Natural Resources eagle-nest practices (2012); 2025 lynx recovery plan, Figure 4; eBird breeding code S7; **D1** #4; the research plan’s corrections to the volunteer kit (Task 9).

Words on this page

Also on this page: **EARD** Environmental Assessment Registration Document • **Approval** a regulator’s permission •

Condition a rule attached to an approval or permit • **Leaf-off** when the leaves are down • **Crown land** land owned by the Province • **Hibernaculum** a place where bats hibernate

B13 Environment

Suggested action

Use the law's complaint tools, only on documented facts

Hold until facts exist

Work required

Low



if facts exist

Potential difference

Medium



Public opinion

Low



Chance of stopping

Low



When Only when a documented fact exists

Who Whoever documents the fact

When triggered • date unknown

Why this opinion rating: Reports go to the regulator and need documented facts. New evidence can support changes even without a breach.

What you can do

If a dated, documented fact shows a condition was broken, or new evidence appears, use the provincial environment law's tools. Not before.

Why it might help

The breach route. Breaking an approval condition is an offence.

- Complain first to the Department's Port Hawkesbury office, as the Department advises. If that fails or the breach continues, **any person** can apply for a formal investigation. It may need a solemn declaration; wilfully false information is an offence.
- The Minister must report on progress within **90 days**, and can drop the investigation only with written reasons.
- On reasonable grounds of a past or expected breach, the Minister can order a specified activity to stop. An order shutting down the whole undertaking needs a likely *irreparable* adverse effect.

The new-evidence route (no breach needed).

- The easiest ask: the approval lets the Department require updated plans, extra studies, monitoring or mitigation at any time.

Words on this page

Also on this page: **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **The Department** Nova Scotia Environment and Climate Change

- A formal amendment of the approval needs an adverse effect that “has occurred or may occur”, or must concern monitoring, reporting or a standard. Anyone can ask, with evidence; ABO’s own request is a separate ground. An amendment is a fresh decision (**B14**).

Facts that would qualify (dated, from public roads):

- work before the 30-day notice or a required before-work plan (check phased consents and written variations first; **B2**);
- clearing in the nesting period ABO said it would avoid, “generally from April 1 to September 30”. Check the wildlife plan first, and report it to the Department as a discrepancy, not a breach;
- wetland work without an approval;
- new evidence, such as a hibernation site (**B11**) or lynx (**B12**).

Never allege a breach before a deadline passes, or from an empty website (**B2**).

How much it can do: medium.

How to do it

- 1. Document the fact:** dated photos and notes, from public roads.
- 2. Check first:** the relevant plan, any phased consent and any written variation.
- 3. Complain** to the Port Hawkesbury office.
- 4. If that fails or the breach continues,** apply for a formal investigation.
- 5. For new evidence,** ask the Department to use its power to require more studies, monitoring or mitigation.

When

Only when there is a documented fact.

Who

Whoever documents the fact.

Where this comes from

Environment Act s.41A, s.115, s.116, s.125(1)(a), s.126, s.158(e)–(f); approval conditions 1.2, 2.2, 3.3, 3.7, 3.12–3.13, 3.18–3.19, 6.2; EARD s.7.4.5.9.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **EARD** Environmental Assessment Registration Document •

Approval a regulator's permission • **Condition** a rule attached to an approval or permit • **The Department** Nova Scotia Environment and Climate Change • **Hibernaculum** a place where bats hibernate

B14 Environment

Suggested action

Court review of a fresh decision

Get legal advice fast

Work required

High



Potential difference

High



potentially

Public opinion

Low-medium



Chance of stopping

Low



When Within days of any extension, change or permit

Who Dan, with a lawyer

When triggered • date unknown

Why this opinion rating: A court challenge can attract attention, but success is uncertain and usually means the decision is reconsidered.

What you can do

If the Minister grants an extension or changes the approval, or the county issues a permit or a variance, get legal advice fast: the deadlines are short.

Why it might help

Which decision, which route:

- **A Minister's extension, an amendment of the approval, or the county permit:** court review (judicial review) is the likely route. The approval decisions themselves can't be appealed, and only the applicant can appeal a permit refusal. The provincial environment law's 30-day appeal may also cover an extension or amendment; it runs from the decision date, so plan to the earliest deadline.
- **An approval such as a wetland alteration:** a person "aggrieved" can appeal to the Minister within **30 days of the decision**, then to the Supreme Court within 30 days.
- **A granted county variance:** notified owners have **14 days** from receiving notice to appeal to council.

The court-review deadline is the earlier of **25 days** after you're told of the decision and **6 months** after it's made. The 25 days exclude

Words on this page

Also on this page: **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **Judicial review** asking a judge to review a decision • **Extension** extra time allowed under a particular rule • **Variance** a lawful, limited adjustment of a bylaw rule • **Development permit** the county's planning permit for a large turbine

weekends and court-closed days, so about 5 weeks. Extensions are at a judge's discretion; don't rely on one.

The catch: an extension needs no public notice (**B1**), and the 6-month limit runs anyway. Ask the assessment branch in writing, with the first status email, to tell you of any extension or amendment. The later checks are the dated emails and requests of about 8 December and 7 January (**B1**). Those requests are due about 7 January and 6 February, later if extended: possibly after a 30-day appeal period from the decision date has run. **An information request doesn't stop any of these clocks.**

Standing: a genuine local group can get public-interest standing.

The odds. Review asks whether the decision was reasonable, and a 2024 court challenge to another Nova Scotia wind project's approval failed. A win usually means the decision is remade. Filing doesn't stop work. Seek a stay with the motion for directions unless a judge orders other timing; a judge can grant an interim stay until then. Costs normally follow the result.

How much it can do: potentially high. Chance of stopping the project: low.

How to do it

1. **Now:** ask the assessment branch in writing to tell you of any extension or amendment (with the **B1** email).
2. **As soon as a consequential decision is known,** get targeted legal advice. East Coast Environmental Law's free inquiry line gives general information only.

When

Within days of any extension, change or permit.

Who

Dan, with a lawyer.

Words on this page

Standing the right to bring a case: A genuine local group can get public-interest standing.

Stay a court order pausing a decision: while a case is heard. Filing a case doesn't stop work by itself.

Where this comes from EA Regulations s.27(2); Environment Act s.41A, s.137, s.138(1)(d)–(e), s.138(2); MGA s.236(3) and s.247(3); Civil Procedure Rules 2.03, 7.05, 7.29, 77.03(3), 94.02; *Ecology Action Centre*, 2023 NSCA 12 (standing); *Higgins Mountain*, 2024 NSSC 27.

B15

Environment

Federal routes, only on a specific trigger

Work required

High

Potential difference

Low

in general

Public opinion

Low

Suggested action

Only on a specific trigger

Chance of stopping

Low

When

Only on a specific trigger

Who

Not assigned

When triggered · date unknown

Why this opinion rating:

Onshore wind requests have been refused; only a specific trigger justifies one.

What you can do Keep the federal options in reserve for a specific trigger; don't lead with them.

Why it might help

- The federal impact assessment agency said on 7 November 2024 that the project, as proposed, is not on its project list. Its wind entries are offshore or boundary-water only, so more onshore turbines wouldn't trigger them.
- **Designation.** The federal Minister can designate a project that “may cause adverse effects within federal jurisdiction” (for example, on migratory birds or fish), or effects tied to a federal approval or funding. Whether other processes can handle them is a factor. A reasoned answer is due in 90 days, but the clock can be paused.
 - Since 27 March 2026, a Canada–Nova Scotia co-operation agreement has Canada rely on provincial processes for mainly provincial projects, including on these requests. The power to designate remains.

Words on this page

MGA Municipal Government Act: the provincial law that governs councils, planning, permits and municipal records.

NSCA Nova Scotia Court of Appeal: used in case citations.

NSSC Supreme Court of Nova Scotia: the province's main trial court; used in case citations.

Also on this page: EA environmental assessment

78

- Onshore wind requests have been refused, including ABO's own Smoky River project in Alberta (September 2024) and Madawaska in Quebec (February 2025). The federal registry shows no Rhodena request (27 September 2026).
- Designation is barred once work has “substantially begun”, or once a federal authority has used a power that could let the project proceed.
- **The federal species law's bans don't reach listed land species** (little brown and northern myotis, tri-colored bat) on non-federal land unless Ottawa orders it. They do reach endangered or threatened migratory birds on any land, such as Canada warbler (threatened). Hoary, eastern red and silver-haired bats are on neither the federal nor the Nova Scotia list.
- **Nova Scotia's endangered-species law is the key law** for little brown and northern myotis, tri-colored bat, lynx and Canada warbler. It protects places “occupied or habitually occupied”, including a “hibernaculum or den”. Permits are only for conservation science or human health or safety.
- **Migratory bird rules:** no killing or harassing migratory birds, or disturbing their nests. Most nests lose protection once they hold no live bird or viable egg. Empty pileated woodpecker and great blue heron nests need written notice to the federal department 36 and 24 months ahead, and must stay unused. The rules set no clearing dates; ABO's clearing commitment is provincial (**B13**).

How much it can do: low, in general.

How to do it

1. Use a federal route only on a specific trigger, such as documented effects on migratory birds or fish, or a federal approval or funding.
2. Report suspected harm to migratory birds or their nests to the federal environment department.

When

Only on a specific trigger.

Who

Not assigned.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **Hibernaculum** a place where bats hibernate

Where this comes from	Impact Assessment Act s.9(1), (2)(d), (4)–(5), (7); Physical Activities Regulations items 44–45; Impact Assessment Agency letter (7 Nov 2024, Comments Part 1); Canada–Nova Scotia co-operation agreement (27 Mar 2026); Species at Risk Act s.34; NS Endangered Species Act s.13(1)(c) and s.14(1); Migratory Birds Regulations, 2022, s.5(1)–(2) and Sch. 1.
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Words on this page

Also on this page: **NS** Nova Scotia · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit

C

Chapter C • 6 ideas

The county: permit, bylaw and council

Council has no vote on the turbine permit, and the Province has capped what county rules can require. But the county's permit file is a public record, its setbacks still have to be met or lawfully relaxed, and council can put residents' questions on the record and ask for a clean-up bond.

	Idea	Work	Difference	Opinion	Stopping	Page
C1	Get the county's permit file	Very low	High for information	Low	Low directly	82
C2	Get the official zone of each turbine site in writing	Very low one email	Low now; medium if turbines move off these lots	Low	Low	84
C3	Check the layout against the county's setbacks	Low desk check; medium for the file	Medium	Low–medium	Low unless setback relief can't be had	86
C4	Go to council: a delegation and a resolution	Low–medium	Low–medium	High	Low	89
C5	Ask council to require a clean-up bond	Medium	Medium reaches Rhodena only if in force before the permit it is built under	Medium–high	Low	92
C6	Why the Province changed the county's wind rules	Low	Low	Low–medium	Low	95

Words on this page

Also on this page: **Setback** a minimum distance • **Clean-up bond** proposed financial security for removal

C1 County

Suggested action
Do now

Get the county's permit file

♂ Work required

Very low

🎯 Potential difference

High

for information

💬 Public opinion

Low

⊖ Chance of stopping

Low

directly

When Now Who Dan

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

A records request; what it finds may matter later.

What you can do

Request the county's development-permit file for Rhodena from the planning commission.

Why it might help

- The Development Officer keeps applications, permits, orders, inspections and their papers as “public records of the County”. The Eastern District Planning Commission does this for the county.
- **The status is unknown.** A turbine permit this early is unlikely: ABO plans construction for 2028–30, and a permit lapses if work doesn’t start within 12 months. Council minutes from July 2025 to 30 July 2026 have no Rhodena item, but that can’t settle it.
- A zoning letter from the planning commission (\$50) confirming as-of-right zoning earns **2 bid points**, so one may exist before bids close on 14 January 2027.

How much it can do: high, for information. Its chance of stopping the project directly is low; the real stop question is C3.

Words on this page

Development Officer the planning official: at the planning commission who issues development permits. A permit that meets the bylaw must be issued; council has no vote.

Also on this page: **ABO** ABO Energy, the developer

How to do it

- 1. File an access request with the planning commission** (the county rules mirror FOIPOP), with no informal step first. Ask for:
 - the application and permit status, dates, file number, parcel numbers and the bylaw version applied;
 - any zoning confirmation, certificate or property status report;
 - any notice that the application is incomplete, and any site plan, drawings, conditions, expiry and renewals;
 - variances and setback waivers, with the leases or easements relied on (**C3**);
 - a document index;
 - any applications or permits for roads, the substation and lines.
- 2. Send the zoning email (C2) the same day.** It can offer to withdraw the request if the planning commission simply sends the file. Whether roads, the substation and lines need their own permits is a question for that email.
- 3. Confidential third-party details may be severed; ask for the rest.**

When

Now.

Who

Dan.

Where this comes from

Inverness wind LUB s.2.2, s.2.4–2.5, s.2.9.1; MGA Part XX (s.461, s.465(1), s.481) and s.245(1); RFP II s.4.3(e)(v); Plan Inverness LUB s.4.1.1 and s.4.2.1(f); **D1** #2.

Words on this page

Also on this page: **FOIPOP** Freedom of Information and Protection of Privacy · **LUB** land-use bylaw · **MGA** Municipal Government Act · **RFP** request for proposals · **Condition** a rule attached to an approval or permit · **Variance** a lawful, limited adjustment of a bylaw rule · **Setback** a minimum distance · **Waiver** giving up or excusing a requirement · **Easement** a right to use someone else's land

C2

County

Suggested action

Get the official zone of each turbine site in writing

Work required

Very low

one email

Potential difference

Low

now; medium if turbines move off these lots

Public opinion

Low

Chance of stopping

Low

Do now, with the permit request

When

Now; recheck when the final layout is filed (date unknown)

Who

Dan

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

A technical check.

What you can do

Email the planning commission for the official zone of each turbine site and each project lot, in writing.

Why it might help

- **A desk overlay puts all six turbines in the general rural wind zone**, where large turbines need a development permit. Turbine 1 is about **300 m (± 50 m)** from the edge of the coastal zone, where only small domestic turbines are allowed; the others are 780 m or more away. The lot holding turbines 1–4 stays about 100 m or more from the coastal zone; a detached piece of the lot holding turbines 5–6 touches its edge (within map error). Only the planning commission can confirm the boundary.
- The planning commission’s public map has no Inverness wind-zone layer. Get each turbine’s and each lot’s zone in writing, and recheck at the final layout.
- **A zoning letter may not settle the 2 bid points.** The criterion covers the grid-connection lots too, and “As-of-Right Zoning” excludes “other discretionary planning approval”. Whether

Words on this page

Also on this page: **Development permit** the county's planning permit for a large turbine · **As-of-right** allowed under the zoning rules · **Approval** a regulator's permission

discretionary setback waivers (C3) count is a question for the fact-check package (A3).

How much it can do: low now; medium if turbines move off these lots.

How to do it 1. One email, sent the same day as the permit-file request (C1).
 2. Recheck when the final layout is filed.

When Now; recheck at the final layout.

Who Dan.

Where this comes from County wind zoning map (Sept 2025); wind LUB s.4.2(b) (GR-1, permit) and s.5.2 (UTE-1, domestic turbines only); RFP II s.4.3(e)(v) and Appendix A (“As-of-Right Zoning”); EDPC public GIS; desk overlay of the county map on provincial road data (27 Sept 2026; well-fitting variants gave 250–320 m).

Words on this page

GR-1 the general rural wind zone: the county wind zone where large turbines are allowed with a development permit. All six turbines plot in it on an unofficial desk overlay; the planning commission must confirm.

UTE-1 the coastal wind zone: the county wind zone along the coast where only small domestic turbines are allowed.

Also on this page: LUB land-use bylaw · RFP request for proposals

EDPC Eastern District Planning Commission: the regional planning office that does Inverness County's planning; its Development Officer issues development permits.

GIS geographic information system: mapping software and data.

C3 County
Suggested action

Check the layout against the county's setbacks

Work required

Low

desk check; medium for the file

Potential difference

Medium

Public opinion

Low-medium

Chance of stopping

Low

unless setback relief can't be had

When Now; again when the final layout is filed (date unknown)

Who Dan

The timeline shows months from Sept 2026 to July. A dark green bar covers the first half of September and all of October. A red vertical line marks January, with text above it indicating 'start about 6 Jan · bids 14 Jan'.

Why this opinion rating: The desk map suggests setback relief is needed. The official file may show lawful waivers or a variance, so this is a question to verify.

What you can do

Check the turbine layout against the county's property-line and stream setbacks, and ask the planning commission how any relief would be granted.

Why it might help

Property lines are the main constraint. Since 11 September 2025 the setback from property lines is 10 m plus the turbine height (ground to the tip of an upright blade), measured from the tower base: about **209.5 m** for the modelled turbine. ABO’s assessment used **128 m** (10 m plus the 118 m hub height). Even the old “rotor height” rule gave about 173 m.

A desk check of the 2024 layout (county parcel map, not a survey):

- Turbines 1–4 stand on one private lot, turbines 5–6 on another. **Turbines 2–6 are about 72–75 m from Crown land lines**, inside even 128 m. Turbine 1 is about 176–202 m from the road allowance, a private lot and Crown land: also short.
- No point on the turbine 5–6 lot is more than about 100 m from its edges; on the turbine 1–4 lot only one spot, near turbine 1, reaches about 210 m. So any layout of more than one such

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Setback** a minimum distance · **Waiver** giving up or excusing a requirement · **Variance** a lawful, limited adjustment of a bylaw rule · **Hub height** the height of the rotor's centre · **Crown land** land owned by the Province

turbine on these lots needs setback relief: waivers or a variance. (ABO's page says its planning is "within regulated setbacks": a question for the fact-check package.)

Waivers: a wind lease of the neighbouring land for 19 years or more, or an easement binding future owners (discretionary since 2025, and never over an owner who hasn't agreed in writing). Waivers carry no public notice.

- For Crown land, that means Natural Resources. ABO already needs a Crown easement for roads and lines, and the call for bids says easement applications are considered only after a contract is signed. Whether setback waivers wait too is unclear.
- At 72–75 m, an 81.5 m blade could swing over Crown land. Ask how that fits the call for bids' bar on any part of the generating facility being on Crown land (**A3**).

A variance: the bylaw contemplates setback variances. Ask the planning commission whether one could apply here. It can't if it "violates the intent" of the bylaw, and the county's planning strategy permits wind farms "provided that all of the turbines meet the setback requirements", with waivers for "consenting landowners". Unlike a waiver, a granted variance needs notice to owners within at least 30 m of the lot, who have **14 days from receiving it** to appeal to council.

Streams (60 m): ABO's own field map puts Lamey Brook about **50 m from turbine 5**, apparently inside the setback, and a stream about 65 m from turbine 6. The site plan must show watercourses and setbacks; check it, and the final layout.

Other setbacks look met: homes at 4× height, about 800 m, more if noise needs it (the closest home is 1.2 km away); spacing (closest pair 466 m); coastline (2.3 km); highways (60 m). **But** turbine 1 is about 190 m from General Line Road, which is listed as a provincial road, while ABO's assessment says the closest public road is 2.9 km

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Setback** a minimum distance · **Waiver** giving up or excusing a requirement · **Variance** a lawful, limited adjustment of a bylaw rule · **Easement** a right to use someone else's land · **Crown land** land owned by the Province

away and gives a 421.5 m ice-throw distance. Raise it through the fact-check package (**A3**) and **E3**.

A complete application needs a signed application; a site plan; specifications and CSA certification; a map of noise over 40 dBA; Transport Canada and NAV CANADA authorizations (**F1**); the environmental assessment; a habitat statement (compare **B12**); and a decommissioning plan. A survey can be required.

Process: a permit that meets the bylaw must be issued. Only the applicant can appeal, and only a refusal, so, variances aside, other people's route is court review (**B14**). A permit lapses if work doesn't start within 12 months; any deviation needs a new permit; and a permit issued on false or mistaken premises can be revoked.

How much it can do: medium. Chance of stopping the project: low, unless the needed setback relief can't be had.

How to do it

1. The desk check is done (above). Keep it as a question, not a charge: relief can be granted lawfully.
2. Request the waiver documents from the planning commission (in the **C1** request), and any request to Natural Resources for waivers over Crown land (**D1**).
3. Ask the planning commission whether a variance could apply, and to verify the turbine 5 stream distance.
4. At the final layout, check the site plan's streams and setbacks.

When

Now; again at the final layout.

Who

Dan.

Where this comes from

County wind LUB s.2.7–2.12, s.4.4(a), (c)–(e), (g), s.4.5.2 (it cites 4.4(d), apparently an old number), s.4.5.6, Part 6; MPS s.2.5, Policy R-6; MGA s.235(1)(b), s.236, s.246(1), s.247(3); EARD Tables 3.1 and 3.3, s.2.1, s.10.1.2, s.13.4, Drawing 7.13C; RFP II s.2.3(b)(v) and (v)(A); county parcel map (desk check, 27 Sept 2026); **D1** #2, #4.

Words on this page

CSA Canadian Standards Association: CSA Group, which certifies equipment.

MPS municipal planning strategy: a council's planning policy; bylaws must carry it out.

Also on this page: **dB**A A-weighted decibels • **NAV CANADA** the company that runs Canada's civil air navigation • **LUB** land-use bylaw • **MGA** Municipal Government Act • **EARD** Environmental Assessment Registration Document • **RFP** request for proposals

C4

 County

Suggested action

Do

 Work required

 Potential difference

 Public opinion

 Chance of stopping

Low-medium

Low-medium

High

Low







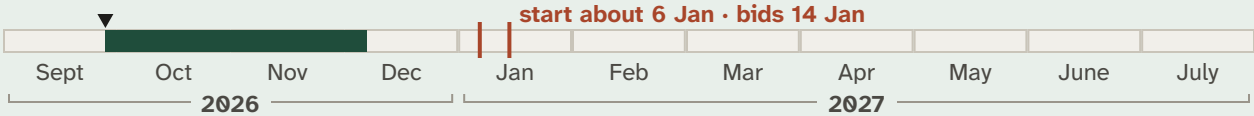


When

Request now; aim for a decision about 3 Dec; meeting dates unconfirmed

Who

The group



Why this opinion rating:

A delegation can bring residents' questions into a public meeting and attract local coverage. Council may refuse or defer it.

What you can do

Ask to present to council as a delegation, and ask council to pass a resolution of requests and records. Not a judgment on the permit.

Why it might help

What to ask for. Requests and records only; council hears variance appeals, so it shouldn't prejudge the permit.

1.

No municipal support letter for the bid, and any request for one decided by recorded motion.

2.

Ask the Minister, before any extension, for refreshed surveys, and to hold the project to the six registered turbines.

3.

Ask that any expansion beyond six turbines get a new environmental assessment. The Department decides; the approval says it “may require” one.

4.

A public status report from the planning commission: the application, the bylaw version, completeness, and any zoning confirmation for the bid (C1, C2).

5.

A staff report on a decommissioning bond (C5, E2).

The limits of the first ask.

It covers only the optional support letter (0.5 points each, up to 4). Don't target the planning commission's factual zoning confirmation (2 points).

Words on this page

Also on this page: **Variance** a lawful, limited adjustment of a bylaw rule · **Support letter** a letter backing the bid · **Extension** extra time allowed under a particular rule · **Approval** a regulator's permission · **Decommissioning** taking something out of service · **Clean-up bond** proposed financial security for removal

- Councillors' own letters may or may not count; the administrator's answers left it open (not verified). Ask each councillor too (**A1**). ABO's assessment records one councillor's support in May 2024; the same six councillors sit now.
- Keep checking for addenda until bids close (**14 January**, unless moved); 29 October is only the scheduled deadline for them. The administrator is considering a municipal support letter as an alternative to the zoning points where zoning isn't as-of-right (**C2**). None as of 27 September.

The process:

- The county's online form says **14 days** ahead and **10 minutes**; its 2011 policy says **10 working days** and 15 minutes. Go by 10 working days and 10 minutes, with a written presentation to the Council Administrator (the chief administrative officer). Council may refuse or defer.
- No resolution comes at the meeting where the delegation speaks unless two-thirds vote it urgent; it may come at the next council meeting. Formally, the Committee of the Whole only recommends.
- A councillor can also move it, or give notice of motion.

The timing (not confirmed: only 1 October is posted; these dates follow the first- and third-Thursdays pattern; confirm with the Council Administrator):

- For a decision about **3 December**, present in November: request by **22 October** (for 5 November) or about **4 November** (for 19 November).
- A 3 December presentation pushes the resolution to about 7 January, after the start deadline of about 6 January.
- Sooner is better: 15 October needs the request by about **29 September**.

The record. Community Wind presented on 3 March 2022 (about 18 turbines); ABO on 20 July 2023 (15) and 2 May 2024 (6). Posted

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Bid administrator** the firm running the bidding · **Addendum** a formal change · **Support letter** a letter backing the bid · **As-of-right** allowed under the zoning rules

minutes (2021 to July 2026) show no Rhodena support letter, but letters can issue by “direction to staff” (16 July 2026).

How much it can do: low to medium.

How to do it

1. Confirm the meeting dates and the deadline with the Council Administrator now.
2. Send the request, 10 working days ahead, with a written presentation.
3. Present for 10 minutes, covering the five asks.
4. Ask a councillor to move the resolution at the next meeting, or to give notice of motion.
5. Dan’s county request asks for any support letters, resolutions and past presentations (**D1**), with no informal step first.

When

Request now; aim for a decision by about 3 December.

Who

The group.

Where this comes from

MGA s.236–237; EA Regulations s.27(2) and s.11(3); approval condition 3.5; RFP II s.4.3(e)–(f), s.3.5(c); FAQ v.02 items 16 and 34; EARD Table 6.1; county delegation form; 2011 delegation policy; Bylaw 31 s.6; Proceedings Policy s.19 and s.32; council minutes (2021 to July 2026; 16 July 2026, item 11); **D1** #2.

Words on this page

Also on this page: **MGA** Municipal Government Act · **EA** environmental assessment · **RFP** request for proposals · **FAQ** frequently asked questions · **EARD** Environmental Assessment Registration Document · **Support letter** a letter backing the bid · **Approval** a regulator’s permission · **Condition** a rule attached to an approval or permit

C5

County

Suggested action

Do, through the council delegation

Ask council to require a clean-up bond

♂ Work required

Medium

© Potential difference

Medium

reaches Rhodena only if in force before the permit it is built under

🗨️ Public opinion

Medium-high

⊖ Chance of stopping

Low

When

Start now; a change takes months

Who

The group (with the delegation)

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

start about 6 Jan · bids 14 Jan

Why this opinion rating: “Who pays for removal?” is easy to understand. A new security rule could protect future large wind projects; whether it reaches Rhodena depends on timing.

What you can do

Ask council to change its wind rules so that a clean-up bond (financial security the county can call on to pay for removal) is required before any permit, for all future large wind projects.

Why it might help

Council has already pointed staff this way. On 6 July 2023 it directed them to use Cumberland County’s wind bylaw “for future changes (e.g. decommissioning of turbines ...)”. No security followed: the 2025 bylaw requires a decommissioning plan and removal after a year idle, but no bond. Ask council to finish the job.

Two working models:

- **A bond before the permit** (Colchester County, in force since 12 June 2025): at least 125% of the estimated removal cost, less scrap value, estimated by an engineer or other qualified person. The county can call it. Wind turbines stay allowed as-of-right: by permit, without a separate discretionary planning decision.
- **A development agreement** (Cumberland County): the same 125% bond, plus failure notices, a complaints process and a

Words on this page

Also on this page: **Clean-up bond** proposed financial security for removal · **Decommissioning** taking something out of service · **As-of-right** allowed under the zoning rules

compliance report. A development agreement may include security, is registered, and binds later owners, which matters if Rhodena is sold (A4). Don't copy Cumberland's 1,000 m home setback, which can exceed the 2025 cap.

- Either way, ask for the security **before the permit**, with cost updates, clear terms for calling it and a stated scope. ABO's assessment leaves site roads and turbine foundations to the landowner leases (E2).

The route is for the planning commission and the county solicitor.

A bylaw can set conditions before a permit only where the planning strategy provides for them. The wind strategy covers site plans and removal, but not security, so it may need amending. A strategy change goes to the Province, which can amend or refuse it; a bylaw-only change made under the existing strategy does not.

The regulations allow it. A plan may use development agreements; West Hants still requires them for wind farms. The 2025 limits: for projects of 2 MW or more, the home setback can't exceed the greater of 4× the height or the distance needed for the 40 dBA and flicker limits, and visual impact can't be a factor.

A development agreement is not a veto. It brings a public hearing and a council vote. The developer or an "aggrieved person" can appeal to the provincial board within **14 days** of the notice, only on whether council reasonably carried out its planning strategy. In May 2026 the board ordered West Hants to approve a wind development agreement it had refused. The protection is in the terms.

Timing for Rhodena:

- The permit status is unconfirmed; ask first (C1). A permit issued before the first hearing notice is protected if work starts within 12 months and is finished as permitted within a reasonable time.
- After that notice, a permit that conflicts with the change can't issue for **150 days**; then it must issue under the existing bylaw if

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **MW** megawatt · **dBA** A-weighted decibels · **Setback** a minimum distance · **Condition** a rule attached to an approval or permit · **Shadow flicker** the flashing shadow of turning blades

the change isn't in force. The 2025 wind amendments took about **eight months**, from the January 2025 notice to taking effect on 11 September. Start early.

- A county permit lapses unless work starts within 12 months. ABO's estimates put a possible award in spring 2027 and construction in **2028–2030**. So a change in force in 2027 could still reach Rhodena, unless ABO already holds a permit it keeps alive.

Frame it as fiscal protection for all future large wind projects: who pays for removal and restoration if an owner fails. The Province struck 2025 county setbacks that lacked “a clear rationale” (**C6**), so base each term on cost evidence. Keep it to what the county controls: General Line Road and Rhodena Road are provincial, so work in their rights-of-way needs a Public Works permit (**E1**), and aviation lighting is federal (**F2**).

How much it can do: medium, and it reaches Rhodena only if it is in force before the permit Rhodena is built under.

How to do it

1. Ask through the council delegation (**C4**, the fifth ask): a staff report on decommissioning security.
2. Point to the two models, and base each term on cost evidence.
3. Ask for the security before the permit, with cost updates, clear terms for calling it and a stated scope.

When

Start now; a change takes months.

Who

The group, with the council delegation.

Where this comes from

Council minutes, 6 July 2023; county wind LUB s.2.7.3(d), s.4.5.4; Colchester LUB s.8.9.1 and s.8.9.3; Cumberland MPS Policies 4-56A–B; county wind MPS Policy R-12 and s.2.7; MGA s.208, s.210(1), s.220(5)(j), s.227(1)(h), s.228(4), s.230, s.234, s.238(2)(b), s.246(3)–(4), s.247(2), s.249(1), s.250(1)(b); Minimum Planning Requirements Regulations s.6(b), s.14, s.15 (added by N.S. Reg. 51/2025); *Bear Lake Wind*, 2026 NSRAB 76 (26 May 2026, para 55 on West Hants).

Words on this page

N.S. Nova Scotia: used in regulation and case citations (N.S. Reg. 51/2025 is a Nova Scotia regulation).

NSRAB Nova Scotia Regulatory and Appeals Board: the provincial board that hears planning appeals (cases are cited as NSRAB).

Also on this page: **ABO** ABO Energy, the developer · **LUB** land-use bylaw · **MPS** municipal planning strategy · **MGA** Municipal Government Act

C6

County

Suggested action

Optional

Why the Province changed the county's wind rules

♂ Work required

Low

🎯 Potential difference

Low

💬 Public opinion

Low-medium

⊖ Chance of stopping

Low

When **Now, with the permit-file request** Who **Dan**

start about 6 Jan • bids 14 Jan

Sept Oct Nov Dec Jan Feb Mar Apr May June July

2026 2027

Why this opinion rating: “The Province overrode the county” resonates locally, but it won’t reopen the 2025 decision.

What you can do

Get the Province's reasons for cutting the county's 2025 wind setbacks.

Why it might help

- **The outline is public.** On 29 July 2025 the Minister approved the county's May 2025 wind amendments with changes. The home setback went from the greater of 1,500 m or 5× the height to **4× the height**; increases to **50 m** plus height (property lines and highways) and **2,000 m** (coast) were refused. The cover letter says the home setback broke the regulations' maximum, and that the other changes lacked "a clear rationale" or appeared to rest on "visual impact".
- The Provincial Director of Planning's earlier notice must give reasons, and it isn't in the posted package.
- **Use:** it shows what evidence the Province wants before it accepts local rules, which the bond ask (C5) needs. **It won't reopen the 2025 decision.**

How much it can do: low.

Words on this page

Also on this page: **Setback** a minimum distance · **Clean-up bond** proposed financial security for removal

How to do it	1. Ask the county, in a separate request filed the same day as C1, for the Provincial Director of Planning’s earlier notice, and the Municipal Affairs correspondence council logged on 3 July 2025. 2. Only if that is thin: an information request to Municipal Affairs for the staff review and its evidence. Advice can be withheld, but background information can’t be withheld as advice.
When	Now, with the permit-file request.
Who	Dan.
Where this comes from	MGA s.208(4)(b) and s.208(6); Municipal Affairs approval letter (30 July 2025); council minutes, 3 July 2025; Municipal Affairs file 09-11-0016; FOIPOP s.14(1)–(2); D1 #2 and #7.

Words on this page

Also on this page: **MGA** Municipal Government Act · **FOIPOP** Freedom of Information and Protection of Privacy · **Information request** a request for a public body's records · **Approval** a regulator's permission

 Chapter D • 6 ideas

D

Records and accountability

Most of the other ideas depend on records. This chapter is the plan for information requests, and for other public records (companies, land, donations and conflicts of interest), with the access rules for each.

	Idea	Work	Difference	Opinion	Stopping	Page
D1	Information requests: the records program	Low	Medium as an enabler	Low	Low directly	98
D2	Lobbying and political donations	Low mostly done	Low	Very low	Low	103
D3	Check the company registry every month	Low	Low-medium	Low	Low	105
D4	Look up land records for the turbine lots	Low-medium about \$7 a half-day in person	Low-medium medium if setback rights are missing	Low	Low	106
D5	Conflict of interest, only on documents	High	High only if a real interest exists	Low	Low	108
D6	Check the jobs and benefits claims	Low	Medium accountability	Medium	Low	109

Words on this page

Also on this page: **Information request** a request for a public body's records • **Setback** a minimum distance

D1

Records

Suggested action

File the first requests now

Information requests: the records program

Work required

Low

Potential difference

Medium

as an enabler

Public opinion

Low

Chance of stopping

Low

directly

When **Now; this fall; about 8 Dec and 7 Jan; later steps** Who **Dan**

Sept Oct Nov Dec Jan Feb Mar Apr May June July

2026 2027

Why this opinion rating: Requests themselves aren't news; what they turn up can feed the other messages.

What you can do

File a planned set of information requests for records that already exist, and dated follow-ups for records that will exist later.

Why it might help

The rules. The provincial access law is FOIPOP; the county and the planning commission follow a mirror set of rules in the municipal law.

- **\$5 per request.** The first 2 hours of search are free. After that, and for preparing records and removing protected information, up to **\$15 per half-hour**; photocopies up to 20¢ a page. A fee estimate comes first.
- Ask the Province to waive the search and preparation fees because the records concern the environment, a public-interest matter. The waiver doesn't cover the \$5. The municipal rules have no public-interest ground, so ask the county and the planning commission on fairness.
- **30 calendar days** to respond, counted once the request has enough detail and the fee is paid. The body can add 30 days, or more with the Commissioner's permission. With notice to a third party (for example ABO), release takes **up to 51 days** before any

Words on this page

Also on this page: **FOIPOP** Freedom of Information and Protection of Privacy · **ABO** ABO Energy, the developer · **Information request** a request for a public body's records · **Waiver** giving up or excusing a requirement · **Extension** extra time allowed under a particular rule

extension, and longer if the third party asks for a review. No answer in time counts as a refusal.

- **A review by the Information and Privacy Commissioner:** ask within **60 days of receiving the decision** (decision letters count from their own date, so use that to be safe). There's no deadline when the body never answered. The Commissioner only **recommends**. Reviews can take **up to four years** to be heard, but 93% of missed-deadline complaints got a decision within about 15 days (2024–25 report, the latest). Don't count on a review before January 2027.
- **A new access law takes effect on 1 April 2027** and replaces both sets of rules. Requests with no decision by then, and reviews already started, stay under the old rules. The new law allows **30 business days** instead of calendar days and closes Cabinet records for 15 years, but gives **3 free hours** for all work, not just search. The old deadline is shorter, so file now for records that exist.
- A request reaches only records the body holds or controls, and the first request's date range ends on the day it's received. Later records need new, dated requests: two this winter, then at later steps (**B2**), to whichever body holds them.

How to file:

- **Information requests first, for records.** Where the thing wanted is an existing record held or controlled by a public body and the legal timeline suits, file. Don't email first and request only if refused.
- **An email or letter stays first** for questions that need an answer or a view; for bodies outside the law (ABO, the bid administrator, NAV CANADA); for requests to act; for submissions; and for records already public or routinely released on request.
- **Where timing matters and records are also wanted,** send the short email and file the request the same day, offering to narrow

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **NAV CANADA** the company that runs Canada's civil air navigation • **Extension** extra time allowed under a particular rule • **Business days** days banks are open • **Information request** a request for a public body's records • **Bid administrator** the firm running the bidding

or withdraw the request if the records are simply sent. Where a later check is needed, plan a dated request or email, not “ask again”.

- **Check first:** the Province’s disclosure log (openinformation.novascotia.ca), Rhodena’s project page and posted council minutes. On 27 September 2026 the log’s published titles and descriptions showed nothing on Rhodena, Creignish or Green Choice; the only ABO entry is a 2021 Crown-land file at Jordan Bay. The log shows only released requests picked for posting, not pending ones.
- **Give details** (subject, dates, places, file numbers) so staff can find the records. Since March 2025 a request without them can be disregarded, but the body must help and let you add detail.
- **Ask for a fee estimate**, electronic records, removal of only the exempt parts, and phased release. Precise species and archaeological site locations may be withheld; ask for the rest.
- **Search terms:** Rhodena / ABO Energy Canada Ltd. / ABO Wind Canada Ltd. / Community Wind Farms Inc. / 40100-30-350 (the Province’s file number).

How much it can do: medium, as the tool that feeds the other ideas. Its chance of stopping the project directly is low.

How to do it

The request list. The private edition describes it in more detail; some requests are drafted and others still need wording.

#	To	For	When
1	Environment	The approval records; drafted and ready to file, in eight parts: any extension or amendment; the start; the yearly tables, monitoring summaries, timing permissions, non-compliance notices and inspections; changes, transfer consent and registry changes; the required plans and archaeology results; how the agency comments were resolved, plus unposted filings from before the approval and the date the knowledge study arrived; wetland and stream approvals, special-wetland decisions and 30 m authorizations; liaison committee records	Now , the same day as the status email
2	Planning commission and county (separate bodies, \$5 each)	The permit file and any setback waivers; support letters and resolutions; Rhodena, ABO and Community Wind agendas and presentations since 2021; the Province's 2025 wind-bylaw notice	Now , with the zoning email
3	Energy	Round 1: the administrator's final report, and records of ABO not signing; the payment record for an \$8,160 grant to ABO in 2024–25 (Energy paid the same sum to four other firms in 2025–26, so it looks routine)	October; round 2 later
4	Natural Resources	The Crown easement file; any request to waive the county setback over Crown land; the species data; the records behind its 2022 bat hibernation answer; the 2025 lynx core-habitat layer; its comments on the wildlife plans	October
5	L'nu Affairs	Consultation milestones and non-confidential summaries (respectful, factual)	Low priority
6	Public Works	Road permits; haul-route and bridge reviews	Once the route is known
7	Municipal Affairs	Records behind the July 2025 bylaw changes	Optional
8	Federal defence and transport departments	Renewed aviation letters and the final lighting decision	After the final layout

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Approval** a regulator's permission • **Extension** extra time allowed under a particular rule • **Setback** a minimum distance • **Waiver** giving up or excusing a requirement • **Support letter** a letter backing the bid • **Bid administrator** the firm running the bidding • **Easement** a right to use someone else's land • **Crown land** land owned by the Province • **Core habitat** the areas a recovery plan says a species needs most

#	To	For	When
9	Heritage department	Archaeology reports from 2022–24 and its acceptance letters	October, with the email
10	Energy	How the bid administrator handles outside information	Now
11	Environment	Dated follow-up (already drafted): records since request 1, with a short email the same day	About 8 December
12	Environment	Dated follow-up: records since request 11, with a short email; in February, the 31 January tables	About 7 January ; February
13	Environment	The current criteria for special wetlands	October

Timing against the decisions. These are response deadlines, not delivery dates. A request filed about 1 October is due about 31 October. Notice to ABO or another third party takes it to about 21 November; a 30-day extension, to about 30 November; both, to about 21 December. A fee estimate that must be paid first, a longer extension or a third party's review adds more.

- **The start deadline (about 6 January):** request 1 should answer before it; the dated follow-ups (due about 7 January and 6 February) won't. Until then, rely on the same-day emails, the project page and the site watch (**B1**).
- **Bids (14 January):** requests 1, 2, 4 and 10 should normally be in before the fact-check package goes in December. If one is late, send the package and add what it shows before 14 January (**A3**). Request 11 reaches only records held about 8 December, and arrives in time only if nothing delays it; request 12 comes after.
- **The final design:** no date yet. When it's due, request the final-turbine filing and the archaeology results, and file request 8 if it hasn't been filed sooner.
- **Cost:** requests 10 to 13 are five more \$5 requests (12 is two): \$25, plus any processing fees.

When

File 1, 2 and 10 now; 3, 4, 9 and 13 this fall; 11 and 12 on their dates.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Bid administrator** the firm running the bidding • **Extension** extra time allowed under a particular rule

Who	Dan.
Where this comes from	FOIPOP Act s.5(1), s.6A, s.7(1)(a), s.7(2)–(3), s.9, s.11 and s.11(7)(b), s.12, s.14, s.19, s.22–23, s.34, s.39–40; FOIPOP Regulations s.3(2) and s.6; MGA Part XX s.465(1), s.466A–467, s.471(7); Bill 150 s.20, s.26, s.32, s.146; OIPC guidance and 2024–25 annual report; disclosure log (checked 27 Sept 2026); 2024–25 Public Accounts; file 2021-01835-DNRR.

D2

Records

Suggested action

Background only

Lobbying and political donations

Work required

Low

mostly done

Potential difference

Low

Public opinion

Very low

Chance of stopping

Low

When

Any time; no deadline

Who

Not assigned (records: Dan)

start about 6 Jan • bids 14 Jan

SeptOctNovDecJanFebMarAprMayJuneJuly

20262027

Why this opinion rating: Background only: the searches so far found no document supporting wrongdoing. Donations or lobbying alone do not establish it.

What you can do	Know what has already been checked, and don't make claims without documents.
Why it might help	Lobbyist registries, searched 27 September 2026: no provincial entries for ABO, ABO Energy, ABO Wind, Community Wind, Rhodena or Power Advisory (other wind developers appear, so the search works). No federal registrations or communication reports for the first five names (from Codex's earlier review; not re-checked). An empty result proves little. The provincial law covers lobbying provincial officials on laws, policies, programs and grants. It doesn't cover council, or submissions on how a law

Words on this page

OIPC Office of the Information and Privacy Commissioner: the office that reviews information-request decisions in Nova Scotia; under the law in force on 27 Sept 2026 it recommends, it can't order.	DNRR Department of Natural Resources and Renewables: the provincial department's name on its 2021 file.
Also on this page: FOIPOP Freedom of Information and Protection of Privacy • MGA Municipal Government Act • ABO ABO Energy, the developer	

applies to the company, such as its environmental assessment. In-house staff register only if their lobbying, counting colleagues', adds up to 20% of one person's time.

- **Provincial donations:** only Nova Scotia residents may give, not companies, and party and riding-association reports name only those who gave that party or association \$200 or more in total in a calendar year. The 2024–25 reports of all four parties and their riding associations show no gift reliably tied to the project's named contacts (one small name match is unconfirmed). Earlier years, and the 2024 candidate returns, weren't searched.
- **Municipal candidates** each file with the county clerk within 60 days of polling day, naming every contributor of more than \$50 in total. Company donations aren't barred, so look for ABO and Community Wind too.
- **“Corrupt” or “bribe” talk:** no supporting document has been found in the searches so far. Donations or lobbying alone don't show wrongdoing. **Act only on documents.**

How much it can do: low. This is background.

How to do it

1. Anyone may inspect municipal candidates' disclosures in office hours and get copies at cost. **No information request needed.** Ask for 2020, the two 2022 special elections (Districts 1 and 2) and 2024.
2. Keep donors' home addresses out of anything you post.
3. Don't allege anything without a document.

When

Any time; no deadline.

Who

Not assigned. Records work is Dan's.

Where this comes from

Lobbyists' Registration Act s.2(1)(c) and (f), s.3(2)(b), s.6; Lobbyists' Registration Regulations s.5; Elections Act s.236 and s.240; Municipal Elections Act s.49A(8)–(8A), s.49B, Form 40; party and riding-association reports 2024–25; federal lobbyist registry (Codex).

Words on this page

Also on this page: ABO ABO Energy, the developer • **Information request** a request for a public body's records

D3

Records

Suggested action

Repeat monthly

Check the company registry every month

Work required

Low

Potential difference

Low-medium

Public opinion

Low

Chance of stopping

Low

When

Monthly, and before 14 Jan

Who

A volunteer

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating: Evidence behind the “who will own it” message, not a message by itself.

What you can do

Re-run the free company-registry search every month and note any change.

Why it might help

- The free Registry of Joint Stock Companies search shows status, directors, the agent and dated filings, not shareholders. Most filings cost \$12.45 to copy.
- **ABO Energy Canada Ltd.** (registry number 3342069; ABO Wind Canada Ltd. until May 2024) holds the approval. It filed a change of directors and officers on **20 August 2026**.
- **Rhodena Wind Inc.** (registry number 4627811), incorporated in June 2024, shares a director with ABO Energy Canada. On **24 September 2026** it filed a change in share structure and an increase in share capital.
- The 2022 Rhodena Wind Limited Partnership was dissolved in December 2024; its general partner was surrendered in January 2025.
- The bidder must be one “Person” (a company or partnership, not an unincorporated joint venture), registered with the Registry, controlling the project at the bid and at contract signing. **Which company will bid is not verified (A4).** Use all these names in the land-title search (**D4**).

How much it can do: low to medium.

How to do it	1. Each month, search “ABO Energy Canada”, “Rhodena” and any new name. Note status, directors, the agent and dated filings, and take screenshots. 2. Search once more before 14 January. 3. Send any change to Dan.
When	Monthly, and before 14 January.
Who	A volunteer.
Where this comes from	RJSC free search (27 Sept 2026); RFP II s.2.2.

D4

Records

Look up land records for the turbine lots

Suggested action

Do: the two turbine lots first

Work required

Low-medium

about \$7 a half-day in person

Potential difference

Low-medium

medium if setback rights are missing

Public opinion

Low

Chance of stopping

Low

When This fall

Who A volunteer

start about 6 Jan • bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

Registry work; private landowners' names never go public.

What you can do	Search the land registry for leases, options and easements on the two turbine lots, then on the other private lots.
Why it might help	• On the provincial parcel map, all six proposed turbine sites fall on two private lots: one for turbines 1–4, one for turbines 5–6. ABO’s registration lists 80 study-area parcels: 62 Crown, 18 private. • Cost: \$6.59 per half-day at a land registration office, plus \$1.24 a page. Property Online is \$99.65 a month plus tax.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **RJSC** Registry of Joint Stock Companies • **RFP** request for proposals • **Setback** a minimum distance • **Easement** a right to use someone else's land

106

- **Look for leases, options and easements** in favour of any company name in **D3**, or Community Wind (ABO's 2021 partner):
 - on the two turbine lots;
 - on the other 16 private lots. ABO ties project size partly to “available lands under contract”. Extra rights may serve roads and lines (which can earn bid points; **A3**), setbacks or layout changes. On their own, they don't prove expansion (**G2**);
 - on the neighbouring lots, mostly Crown. County setback waivers need a lease of 19 years or more, or a binding easement (**C3**). Crown rights are in **D1** and **E1**.
- **A blank register isn't proof there's no deal.** An unrecorded lease or option still binds the owner who signed it. The parcel map isn't conclusive on boundaries.
- **What the bid needs on title:** registers dated on or after 10 September 2026 for the generating-facility lots, including both turbine lots, and, if the bidder isn't the registered owner, the owner's unqualified letter that the bidder has a contractual right to buy, or to build, operate and maintain the project if selected. Leases aren't reviewed, and all needed land rights are due before construction. So a lease missing from the register isn't non-compliance by itself; raise a documented gap in rights through the fact-check package (**A3**).

How much it can do: low to medium; medium if setback rights are missing (**C3**).

How to do it

1. **The two turbine lots first.** Their parcel numbers are in ABO's registration (see “Where this comes from”).
2. Then the other private lots, then the neighbours.
3. Record what you find. Never post private landowners' names.

When

This fall.

Who

A volunteer with Property Online access, or near a land registration office.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Easement** a right to use someone else's land • **Setback** a minimum distance • **Waiver** giving up or excusing a requirement

Where this comes from

Provincial parcel map; EARD Table 3.1 (parcel numbers); ABO project FAQ; Land Registration Act s.21(2) and s.45; land registration fees; RFP II s.2.9; Access Rights form, Exhibit B; draft PPA s.7.1(p); county wind LUB s.4.5.2 and s.4.5.6.

D5

Records

Suggested action

Only on documents

Conflict of interest, only on documents

✎ Work required

High

🎯 Potential difference

High

only if a real interest exists

💬 Public opinion

Low

⚖️ Chance of stopping

Low

When

Only if a document shows an interest

Who

Any elector (not assigned)

📅 When triggered · date unknown

Why this opinion rating: Only on documents; an accusation without one would damage the group.

What you can do

If a document shows a councillor has a money interest in a Rhodena matter before council, use the conflict-of-interest law. Only then.

- Why it might help
- A councillor with a money (pecuniary) interest in a Rhodena matter before council, such as a support letter, an agreement or a bylaw change, must disclose it, withdraw (at an open meeting they may sit with the public), and not vote or try to influence it. Council doesn't issue the permit (C1).
 - The interest may be their own, through a company, employer or partner, or a spouse's, close relative's or household member's that they know or should know of. Interests shared with electors generally, or too remote to matter, don't count.
 - Free first step:** any elector may inspect the county's central record of disclosures, without fee.
 - Court:** an elector or the Attorney General may apply to a judge within **60 days** of learning the facts, and within 10 years. The remedy is against the councillor; the decision stands unless a judge voids it on the municipality's application within two years.

- **Code of conduct:** since October 2025 only a councillor on the same council can complain, and not on anyone else’s behalf, within 6 months of discovery. The county’s code names an independent investigator, and bars accepting “support in any form” from anyone with a development proposal before council.

How much it can do: high, but only if a real interest exists.

How to do it

1. Inspect the county’s record of disclosures (free).
2. Act only on documents, such as a recorded lease on an official’s or a relative’s land (D4).
3. Don’t publish private landowners’ names.

When

Only if a document shows an interest.

Who

Any elector; not assigned.

Where this comes from

Municipal Conflict of Interest Act ss.3–7 (incl. s.7(3)), s.9, s.10, s.13; N.S. Reg. 219/2024 s.7; county code of conduct s.10.

D6

Records

Suggested action

Do

Work required

Potential difference

Public opinion

Chance of stopping

Low

Medium

Medium

Low

Low

accountability

When

Ask now, before bids close

Who

Dan and a volunteer

start about 6 Jan • bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

ABO publishes job and community-fund claims. Asking for amounts, local jobs and enforceable commitments makes those claims easier to assess.

What you can do

Ask ABO to put its community-benefit and job claims in writing, with numbers, and check them against what’s scored and what’s binding.

Why it might help

- **Scored in the bidding** (16 points): Mi'kmaw ownership (6); social programs (5: a local capacity-building plan, 2; a local benefits agreement *or a "mature plan"* for one, 2; both province-wide, 1); and the weighted local share of spending before operation (5).
- **The contract** (the June draft, and the version filed with the Energy Board on 17 August 2026; no final yet):
 - a local-spending shortfall is paid to NS Power, not the community;
 - if ownership points were won, the Mi'kmaw share must be kept about 5 years past commercial operation, subject to lenders' rights;
 - neither version has a community-fund clause, and the contract gives the community no rights. A fund described in the bid may become a representation to NS Power. A breach is a default only if it materially harms, or could reasonably be expected to materially harm, NS Power's rights and interests under the contract or the seller's ability to perform, and isn't cured within 30 days of NS Power's notice (up to 90 if the seller shows it is diligently fixing it).
- **The community fund.** ABO "is committed to continuing sponsorships and donations... during each year of the Project's planning and operation", and says it has created a "significant Community Benefit Fund". No amount, recipient or term is published. The approval requires the project to follow its registration documents: ask the Department whether it treats this as a commitment.
- **Municipal tax is set by law, not voluntary:** \$5,500 per MW, indexed to inflation since 2005, then +1% a year. That's about **\$350,000 a year** for 42 MW at today's prices, and any project would pay it. ABO's lifetime "\$8–10M" (2024 brochure) is about this tax alone over 20–25 years.

Words on this page

Also on this page: **NS Power** Nova Scotia Power • **ABO** ABO Energy, the developer • **MW** megawatt • **Approval** a regulator's permission • **The Department** Nova Scotia Environment and Climate Change

- **Jobs:** 75–125 local construction jobs (2023, 15 turbines); 30–50 (2024, 6 turbines); now “approximately 80 jobs during development and construction”, not said to be local, plus 1–3 operating roles.
- ABO has funded the Creignish Recreational Centre, the West Bay and Port Hastings fire departments and the Ceilidh Groomers: context for support letters (**A1**), not wrongdoing.

How much it can do: medium, for accountability.

How to do it

1. **Ask ABO in writing** (with the **A4** email, or at the liaison committee): the fund’s counterparty, the amount a year, the term, whether it’s signed, and whether it binds a new owner. Ask also who can enforce it: as a rule, only a contract’s parties can. A sale generally needs NS Power’s and the Minister’s consent; neither mentions a fund.
2. Ask for the local share of jobs, and full-time equivalents.
3. Ask the Department whether it treats the fund as a commitment.
4. In messages, use plain numbers: the tax is set by law, whoever builds.

When

Ask now, before bids close.

Who

Dan and a volunteer.

Where this comes from

RFP II s.4.3(g); draft PPA v.01 s.2.8; filed PPA (Energy Board matter M13042, 17 Aug 2026) s.2.7, s.7.1(n), s.10.1(j), s.16.2–16.4, s.16.8(a), Art. 12; EARD s.6.2; approval conditions 2.2 and 3.9; Wind Turbine Facilities Municipal Taxation Act s.5; ABO mailouts (2023, 2024) and 2024 brochure; ABO project page.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **NS Power** Nova Scotia Power • **RFP** request for proposals • **PPA** power purchase agreement • **EARD** Environmental Assessment Registration Document • **Support letter** a letter backing the bid • **The Department** Nova Scotia Environment and Climate Change • **Approval** a regulator’s permission • **Condition** a rule attached to an approval or permit

E

Chapter E • 3 ideas

Roads, safety and clean-up

The roads are provincial and the trucks are many. The environmental approval and the county bylaw require plans for taking the turbines down, but no dedicated financial security; find out whether any exists through other arrangements. These ideas are about keeping costs and risks off the public.

	Idea	Work	Difference	Opinion	Stopping	Page
E1	Roads, trucks and the haul route	Low-medium	Medium	Medium	Low unless a needed right can't be had	113
E2	Who pays to take it down	Medium	Medium financial protection	Medium	Low	115
E3	Fire, ice throw and the snowmobile trail	Low	Medium for conditions	Medium	Low	117

Words on this page

Also on this page: **Approval** a regulator's permission • **Ice throw** ice shed from turning blades • **Condition** a rule attached to an approval or permit

E1 Roads and site

Roads, trucks and the haul route

Work required

Low-medium



© **Potential difference**

Medium



Public opinion

Medium



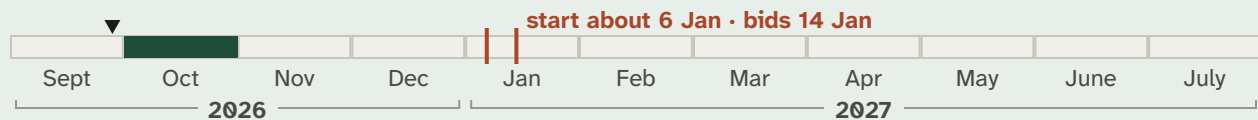
⊖ Chance of stopping

Low



unless a needed right can't
be had

When	Oct; again after any contract; photos before construction	Who	Dan; the group
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Why this opinion rating: The assessment anticipates 25–35 trucks a day, up to 50. The route and who pays for repairs are concrete concerns for nearby residents.

What you can do

Get the road permits and route records, take baseline photos of General Line Road before construction, and ask for a written agreement on road use and repair.

Why it might help

- **The roads are provincial.** Public Works calls General Line Road and Rhodena Road “provincially owned roads”. Road protection runs through Public Works, not council.
- **Route and load.** General Line Road is the named access route. The provincial road map shows **11.5 km** of unpaved road from Highway 105 to the stretch beside turbine 1: mostly one lane, the last 3 km “dry weather”, one bridge. Several homes are on it. Construction brings **25–35 trucks a day**, up to 50. ABO leaves the haul route to a logistics study by the turbine supplier; ask for the study and the current route.
- **Permits:** a special-move permit (Access Nova Scotia), access, highway right-of-way and pole-line permits, and a Crown easement. Each structure on a turbine route must be analysed.
- **Existing protections:** changes to the route are the bidder’s cost; ABO’s promise to reinstate modified roads binds it through the

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Baseline** a dated record of how things are now · **Easement** a right to use someone else's land · **Approval** a regulator's permission

approval; and the mover is liable for highway damage even with a special-move permit. No road-bond rule was found.

- **The right that could fail is the Crown easement.** Some roads and lines cross Crown land, and the approval gives no right to build on land ABO doesn't control. Natural Resources considers easement applications only after a contract is signed.
 - For the fact-check package (**A3**): the 2 site points need all roads and lines on private land or existing public roads. On the call for bids' wording, a Crown easement doesn't count; a public road through Crown land does. Unless ABO reroutes, it likely can't claim them. **Verify; don't assert.**
- **The goal is to keep road repair costs off the public, not obstruction.**

How much it can do: medium. Chance of stopping the project: low, unless a needed right can't be had.

How to do it

1. An information request to Natural Resources in October for any existing Crown-easement records (**D1**). File a new request after any contract is signed, since only then is the application considered.
2. Request the Public Works and Access Nova Scotia records once the haul route is known.
3. Before construction, take dated baseline photos of General Line Road, from the road.
4. Ask for a written road-use and restoration agreement, and for county consultation on transport.

When

October; again after any contract; photos before construction.

Who

Dan (the requests); the group (the photos).

Where this comes from

Public Works comment (22 Nov 2024); EARD s.2.1, s.8.2.2, s.8.3.2, s.8.3.4, Table 2.2; Nova Scotia Road Network; RFP II s.2.3(b)(v)(A), s.2.13(a)(iii) and (b)(ii), s.4.3(e)(v), Appendix D;

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **EARD** Environmental Assessment Registration Document · **RFP** request for proposals · **FAQ** frequently asked questions · **Approval** a regulator's permission · **Clean-up bond** proposed financial security for removal · **Easement** a right to use someone else's land · **Crown land** land owned by the Province · **Information request** a request for a public body's records · **Baseline** a dated record of how things are now

FAQ v.02 items 32 and 35; approval conditions 2.2 and 3.8; Weights and Dimensions of Vehicles Regulations s.11(6); **D1** #4 and #6.

E2 **Roads and site**

Who pays to take it down

 Work required

Medium



© **Potential difference**

Medium



financial protection

Public opinion

Medium



⊖ Chance of stopping

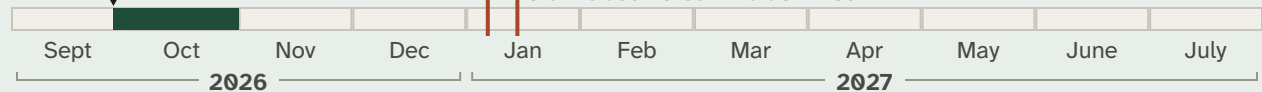
Low



When Ask now; again at any transfer

Who Dan; the group (with the council ask)

start about 6 Jan • bids 14 Jan



Why this opinion rating: The same public case as the council ask: who pays for removal if an owner fails.

What you can do

Ask what money, if any, is set aside to take the turbines down and restore the site, and push for real security.

Why it might help

Plans, not money:

- **The approval:** a reclamation plan two years before operation ends; reclamation to the Department's satisfaction; a repair-or-remove report after two idle years.
- **The county bylaw:** a plan with the permit application; removal after **one year** idle, and the site restored within 18 months.
- **The contract** (the standard form before the Energy Board since August 2026): decommissioning is the seller's "sole responsibility", and that survives termination. Performance security (**\$20,000 per MW** after operation starts) is held by NS Power for the seller's contract obligations, and released after the **25-year** term once accrued obligations are met. Decommissioning may come later: ABO expects at least 25-30

Words on this page

Also on this page: **FAQ** frequently asked questions · **MW** megawatt · **NS Power** Nova Scotia Power · **ABO** ABO Energy, the developer · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit · **The Department** Nova Scotia Environment and Climate Change · **Decommissioning** taking something out of service

years of operation. There's no dedicated county or landowner clean-up fund.

- The approval and the county bylaw require no security, and wind farms are not on the Province's mandatory security list.

Openings:

- Any transfer of the approval needs the Minister's consent, and the Minister may attach terms. Ask that any consent confirm who carries the reclamation conditions, and consider security.
- Push for security through council (**C4**, **C5**). Development agreements and site-plan approvals may include it. Whether a new rule could reach Rhodena is covered in **C5**.

This matters more given the ownership questions (**A4**). How much it can do: medium, as financial protection.

How to do it

1. **Ask ABO** what security exists: the amount, form, beneficiary, indexing and removal scope (ABO's assessment leaves the foundations and roads to the private leases), and what happens on insolvency or assignment.
2. **Check** the county permit file (**C1**) and the easement file (**D1**).
3. **If a transfer is sought**, ask the Minister to confirm who carries the reclamation conditions and to consider security.
4. **At council**: the bond ask (**C4**, **C5**).

When

Ask now; again at any transfer.

Who

Dan asks; the group takes it to council with the bond ask.

Where this comes from

Approval conditions 3.9 and 12.1–12.3; county wind LUB s.2.7.3(d) and s.4.5.4; filed PPA s.3.1(f) and s.6.1; EARD s.3.3.2–3.3.3; Activities Designation Regulations s.30; Environment Act s.41B(2); MGA s.227(1)(h) and s.231(4)(ka).

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **LUB** land-use bylaw • **PPA** power purchase agreement • **EARD** Environmental Assessment Registration Document • **MGA** Municipal Government Act • **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **Development permit** the county's planning permit for a large turbine • **Easement** a right to use someone else's land • **Clean-up bond** proposed financial security for removal

E3

Roads and site

Suggested action

Do

🔧 Work required

📍 Potential difference

🗨️ Public opinion

🛑 Chance of stopping

Low

Medium

Medium

Low

■ ■ ■ ■ ■

■ ■ ■ ■ ■

■ ■ ■ ■ ■

■ ■ ■ ■ ■

for conditions

When

Now; recheck when the final layout is filed (date unknown)

Who

Dan; a volunteer

start about 6 Jan · bids 14 Jan

Sept Oct Nov Dec Jan Feb Mar Apr May June July

2026 2027

Why this opinion rating:

The mapped road and trail proximity raises a concrete safety question. The present evidence does not establish a breach; check the final placement and the regulator's view.

- What you can do

Ask the Department to check ice-throw safety at General Line Road and snowmobile Trail 104 against the final turbine positions, and work with the snowmobile club and fire departments.
- Why it might help

- **Fire.** Local fire chiefs suggested road changes, which ABO adopted. A draft emergency plan went to the Port Hastings and West Bay Road fire departments in May 2024. Dry hydrants were only “considered”. A contingency plan covering fires and vehicle collisions is due before work starts (it’s in the first information request).
 - **Ice throw near turbine 1:**
 - ABO puts the maximum ice throw at 421.5 m for its model turbine; a bigger rotor or taller hub throws farther. It lists a 300 m setback from public roads.
 - It says the nearest public road is 2.9 km away, so road users face “no risk”; elsewhere it says 300 m. Mapped data put General Line Road, a provincial road, and snowmobile Trail 104 about 190–200 m west of turbine 1.

Words on this page

Also on this page: ABO ABO Energy, the developer · Ice throw ice shed from turning blades · Condition a rule attached to an approval or permit · The Department Nova Scotia Environment and Climate Change · Information request a request for a public body's records · Hub height the height of the rotor's centre · Setback a minimum distance

- ABO promises automatic icing shutdown, and warning signs on recreational or logging trails or roads in the danger zone, and says site use may be restricted in icing weather. Those promises were framed for trail users and site workers, with no public road in range. Ask how they will protect General Line Road and Trail 104.
- **Trails.** Snowmobile trails follow General Line, Rhodena and MacIntyre Mountain roads. ABO commits not to restrict public access to roads and trails except at active construction sites, subject to the possible icing restrictions above, and says all roads will be plowed in winter. Ask whether that includes General Line Road, which carries Trail 104, and agree winter arrangements with the snowmobile club.
- **Don't call it a breach** before seeing the final placement, and before the regulator says whether the 300 m applies to this dry-weather stretch. The mapped distance meets the county's 60 m highway setback, but that doesn't settle the environmental-approval question.

How much it can do: medium, for conditions.

How to do it

1. **A letter to the assessment branch**, copying Public Works as the road owner: has the final turbine placement been filed? Reconcile the road distances and the 300 m setback with it, and require an updated ice-throw assessment. Options: shutdown and restart rules, signs and a winter trail route agreed with the snowmobile club, or moving turbine 1. Ask whether the dry hydrants will be built.
2. **Request the final emergency plan** (water supply, exits) through the first information request if it's already held; if it's filed later, with a new dated request (**D1**).
3. **A volunteer talks** to the snowmobile club and the fire departments.

When

Now; recheck when the final placement is filed.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Setback** a minimum distance • **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit • **Ice throw** ice shed from turning blades • **Information request** a request for a public body's records

Who	Dan (the letter); a volunteer (the snowmobile club and fire departments).
Where this comes from	EARD Tables 3.3, 6.2 and 6.5, s.3.3.2, s.8.3.4, s.8.4.2, s.10.1.2–10.1.3, s.12.2.2, s.13.4, Drawing 2.3A; Nova Scotia Road Network; Snowmobilers Association map; approval conditions 2.2, 3.19, 4.1, 11.1; county wind LUB s.4.4(e).

Words on this page

Also on this page: **EARD** Environmental Assessment Registration Document · **LUB** land-use bylaw · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit

F

 Chapter F • 3 ideas

Aviation and night lighting

The 2024 aviation reviews give no basis for stopping Rhodena: the reviewers didn't object. Check that the letters are still current, and push for lighting protections: turbines this tall must be lit at night, and nothing yet binds ABO to the systems that keep the lights off or dimmed.

	Idea	Work	Difference	Opinion	Stopping	Page
F1	Are the aviation letters still current?	Low	Low-medium	Low	Low	121
F2	Make the night-lighting promise binding	Low	Medium for night impact	Medium-high	Very low	123
F3	Show what the lights would look like at night	Medium	Low	Medium-high	Very low	125

F1  Aviation

Suggested action

Are the aviation letters still current?

 Work required

Low



 Potential difference

Low-medium



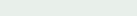
 Public opinion

Low



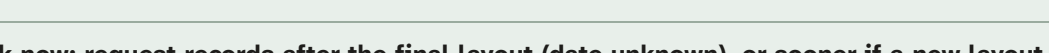
 Chance of stopping

Low



When Ask now; request records after the final layout (date unknown), or sooner if a new layout or turbine model is confirmed

Who Dan and a volunteer



Why this opinion rating: Lapsed letters on their own do not establish a breach or a bid defect. This is a check on whether the required letters are current.

What you can do

Ask ABO whether its aviation clearances were renewed, and whether they cover the final layout.

Why it might help

The 2024 aviation clearances were time-limited. Unless renewed:

- **NAV CANADA's** letter (7 October 2024) was valid for 18 months, so it ran out on **7 April 2026**.
- **National Defence's** was valid for 24 months from its date. The assessment records it as received on **11 September 2024**, so it ran out no later than **11 September 2026**. A changed layout must be resubmitted.
- **Transport Canada:** ABO submitted its assessment and lighting plan in October 2024. A Transport Canada determination lasts 18 months from its assessment; that date isn't public. Any change needs a new submission.
- **The federal weather-radar letter** lapses if the number, height or placement of turbines changes.

A lapse on its own isn't a breach or a bid defect: the call for bids asks for a workable path to permits, not current letters. It matters at the permit stage: the county needs Transport Canada and NAV CANADA

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **NAV CANADA** the company that runs Canada's civil air navigation

authorizations, and Transport Canada needs notice at least 90 days before construction.

How much it can do: low to medium.

How to do it

1. **Ask ABO** (in the one written email, or at the liaison committee) whether the letters were renewed and cover the final turbine and layout.
2. **Look for them** in the county permit file (**C1**).
3. **After the final layout**, or sooner if a new layout or turbine model is confirmed: a federal information request to Transport Canada and National Defence (**D1**). NAV CANADA isn't under the federal access law, but its letter was copied to Transport Canada's Atlantic office, so the Transport Canada request may catch renewals.

When

Ask now; request the records after the final layout, or sooner if a new layout or turbine model is confirmed.

Who

Dan and a volunteer.

Where this comes from

EARD s.8.3.2, Tables 2.1, 6.1 and 10.2, Appendix J (NAV CANADA file 24-2766); RFP II s.2.6(a); county wind LUB s.2.7.3(a); Transport Canada Standard 621 s.2.5; approval condition 4.1; **D1** #8.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **NAV CANADA** the company that runs Canada's civil air navigation • **EARD** Environmental Assessment Registration Document • **RFP** request for proposals • **LUB** land-use bylaw • **Development permit** the county's planning permit for a large turbine • **Information request** a request for a public body's records • **Approval** a regulator's permission • **Condition** a rule attached to an approval or permit

F2

✈️ Aviation

Suggested action

Do

Make the night-lighting promise binding

♂ Work required

Low

☉ Potential difference

Medium

for night impact

💬 Public opinion

Medium-high

⊖ Chance of stopping

Very low

When

Now; final lighting after the final layout (date unknown)

Who

Dan and a volunteer

Why this opinion rating: The lighting requirements, including mid-mast lights, make the request for mitigation easy to picture. The final scheme and mitigation are not confirmed in the available public record.

What you can do

Ask ABO to commit in writing to aircraft-detection lighting (lights off unless an aircraft is near), and ask the Department to put lighting protection for birds in the wildlife plan.

Why it might help

- **What the rules require.** Anything over 150 m is an obstacle to air navigation. Each lit turbine over 150 m gets two red flashing lights on top (2,000 candela; one is a standby) **and** at least three mid-mast lights at about half that height, flashing at the same rate. Transport Canada's determination sets the final scheme.
- **The assessment understates this.** Its bird section says the turbines will be "un-lit at night" apart from a light on top. The federal environment department asked for detailed lighting mitigation for migratory birds in the project's management plans.

Words on this page

Mid-mast lights red lights halfway up the tower: required on lit turbines over 150 m, as well as the lights on top.

Also on this page: **ABO** ABO Energy, the developer

- **Two systems can reduce the lights; neither is automatic:**
 - **Aircraft detection:** the lights stay off until a sensor detects an approaching aircraft. If the sensor or its link fails, the lights come on continuously. Transport Canada must accept it, and can refuse if terrain hides aircraft from the radar.
 - **Light intensity reduction:** dims the top lights to as low as 10% when visibility is over 10 km. It doesn't dim the mid-mast lights, or work at twilight.
- **Nothing binds ABO to either system yet.** The approval has no lighting condition (nor do four other recent Nova Scotia wind approvals). The approval holds ABO to its assessment documents, but they promise only that lighting “will be minimized, as allowable by Transport Canada”. ABO “expects” a mitigation system, names only dimming, and will decide after choosing the turbine.
- **Don't rely on the county.** Aviation lighting is federal, the wind bylaw has no lighting rule, the Development Officer issues a permit that meets the bylaw, and county wind policy can't include visual impact.

How much it can do: medium, for the night-time impact. Chance of stopping the project: very low.

How to do it

1. **Ask ABO** for a written commitment to aircraft detection, with dimming as the fallback; the final lighting schedule; maintenance, fault logs and what happens on failure; and mid-mast lights in all visuals and open-house material (public information must be “accurate, current”).
2. **Ask the Department** to put lighting mitigation in the wildlife plan, as the federal department asked, and to say whether ABO's promise means detection or dimming if Transport Canada accepts them. The Department can require more mitigation.

Words on this page

Aircraft detection lighting that stays off until an aircraft is near. If the sensor or its link fails, the lights come on. Transport Canada must accept it; acceptance isn't guaranteed.

TC Transport Canada: the federal transport department; it sets the lighting and marking rules for tall structures.

Also on this page: ABO ABO Energy, the developer

3. Ask Transport Canada for the final determination and any detection or dimming decision, by federal information request after the final layout (D1).

When Now; the final lighting after the final layout.

Who Dan and a volunteer.

Where this comes from CARs s.601.23(1)(d) and s.601.24; Transport Canada Standard 621 s.12.3(2), ch.15 (Aircraft Detection Systems), ch.16 (Light Intensity Reduction); AC 601-006; EARD p.240 and p.276; ECCC comment 20; approval conditions 2.2, 3.19, 6.2; RFP II s.2.7(a)(v); Minimum Planning Requirements Regulations s.15; D1 #8.

F3

✈️ Aviation

Show what the lights would look like at night

Suggested action
Optional (volunteer)

✂️ Work required
Medium
■ ■ ■ □ □

📍 Potential difference
Low
■ ■ □ □ □

🗨️ Public opinion
Medium-high
■ ■ ■ □ □

⊖ Chance of stopping
Very low
■ □ □ □ □

When November

Who A volunteer

▼

start about 6 Jan • bids 14 Jan

Sept Oct Nov Dec Jan Feb Mar Apr May June July

2026 2027

Why this opinion rating:

A matched day and night pair makes the lighting real for people, if it's labelled honestly as illustrative.

What you can do Make honest day-and-night photo pairs showing where the turbine lights would be, for the lighting ask and the liaison committee.

Why it might help

- The assessment’s seven simulations are all daytime (8–9 September 2024, 50 mm lens), including Route 19 near Judique at 12.5 km. None shows the lights. ABO says it will update the visuals and ask the community for more viewpoints.

Words on this page

CARs Canadian Aviation Regulations: the federal aviation rules; a structure over 150 m is an obstacle to air navigation.

AC advisory circular: a Transport Canada guidance note (AC 601-006 covers aircraft-detection lighting).

Also on this page: **EARD** Environmental Assessment Registration Document • **ECCC** Environment and Climate Change Canada • **RFP** request for proposals • **ABO** ABO Energy, the developer

- The images won’t count toward the county permit (**F2**), and the bid has no visual score. But ABO can earn engagement points for showing how its proposal changed after feedback, and a lighting commitment could be one.

How much it can do: low.

How to do it

1. **Run Dan’s viewshed tool at the light heights**, not just the 200 m tip: the top of the tower (a 118 m hub in the 2024 model) and the mid-mast lights (about 50–70 m).
2. **Make matched day/night pairs** from the assessment’s viewpoints, with the same 50 mm lens and direction. Fix the positions from the photos: several stated coordinates are duplicated. Shoot a few frames either side of 30 minutes after sunset, exposed to look as the eye sees it, from public roads and places only.
3. **Record** the camera, lens, exposure, weather and time.
4. **Label honestly**. The lights must be simulated, so label them illustrative (Scottish guidance calls such images “essentially artist’s impressions”). Label them dusk views too: the lights look their brightest only once the sky is fully dark. Note that they flash. Show three versions: full lighting, dimmed (mid-mast lights unchanged), and aircraft detection (dark unless an aircraft is near).
5. Use them for the lighting ask and at the liaison committee.

When

November.

Who

A volunteer comfortable with maps or photography.

Where this comes from

EARD Drawings 10.1B–10.1H; ABO project page; NatureScot (2024), Appendix 4, paras 13 and 28; RFP II s.4.3(f).

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **EARD** Environmental Assessment Registration Document · **RFP** request for proposals · **Development permit** the county’s planning permit for a large turbine · **Hub height** the height of the rotor’s centre · **Mid-mast lights** red lights halfway up the tower · **Aircraft detection** lighting that stays off until an aircraft is near

G

Chapter G • 7 ideas

Community, messages and alternatives

How the group works in public: a seat at the liaison committee, the lead message about the project's size, honest checks on noise and flicker, tourism letters, constructive alternatives, respect for the Mi'kmaw partners, and the messages and volunteer jobs that carry all of it.

	Idea	Work	Difference	Opinion	Stopping	Page
G1	Take a seat on the community liaison committee	Very low	Medium	Low–medium	Low	128
G2	Six is what's approved: put the limit in writing	Low	Low–medium strong for messages	High	Very low	130
G3	Noise and flicker at the nearest homes	Low	Low–medium	Low	Low	132
G4	Tourism businesses: letters in their own words	Low	Low	Medium	Low	134
G5	Offer constructive alternatives	Low to propose	Low direct; high credibility	Medium–high	Low	136
G6	First Nations: respect, privately	Medium	Indirect	Not applicable	Very low	137
G7	Messages and volunteer jobs	Not rated	Not rated	High	Not rated	140

Words on this page

Mi'kmaq the Indigenous people of this region: “Mi'kmaw” is the singular and adjective form.

G1  **Community**

Suggested action

Take a seat on the community liaison committee

 Work required

Very low

■ □ □ □ □

 Potential difference

Medium

■ ■ ■ □ □

 Public opinion

Low-medium

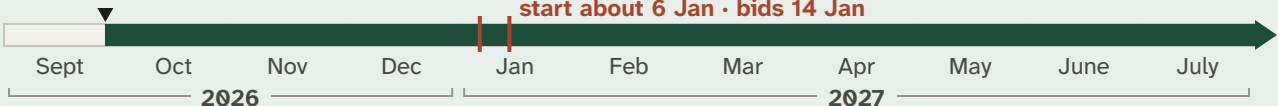
■ ■ ■ □ □

 Chance of stopping

Low

■ ■ □ □ □

When Now, and at each meeting **Who** The group



Why this opinion rating: A seat gives residents a way to ask for records and for dissent to appear in the minutes. The committee is advisory, and information sharing is not guaranteed.

What you can do

Put one or two nearby residents forward for ABO's community liaison committee, and ask for its terms of reference, members and minutes.

Why it might help

- The approval requires ABO to “continue to maintain” the committee, following the Department’s 2010 guide, “for the duration of the Project or until released in writing by the Department”.
- It met from February to May 2024. ABO’s page says it will be “up and running again” and welcomes volunteers. The guide expects nearby residents on it. **The committee is advisory only.**
- The guide lists environmental, monitoring and contingency plans among what the committee may review, and says ABO “should” share non-confidential information the committee requests. Ask for the approval’s required plans (**B2**) that way; it isn’t guaranteed.
- **The scoring angle.** A formed committee with terms of reference is worth **1 of the 10** engagement points in the bidding. How long it has existed earns nothing extra, and mere efforts to form one earn nothing. Joining may help ABO claim the point; the payoff

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Approval** a regulator's permission • **The Department** Nova Scotia Environment and Climate Change

for residents is information and a record. Check that it was really formed (**A3**).

- The May 2024 agenda sought ideas for community support for the Green Choice bid, so ask that the minutes record dissent, and that membership is not counted as support.
- The guide recommends **at least two meetings a year**; none is on record since May 2024. Ask ABO for the dates, and the Department for any written release. **Don't allege a breach.**

How much it can do: medium.

How to do it

1. Volunteer now: ABO's page already invites volunteers. Choose one or two calm, detail-minded residents who live nearby.
2. Ask ABO for the terms of reference, the member list, the minutes and an issue log.
3. Ask that the minutes record dissent, and state that membership is not support.
4. Take notes at each meeting and share them, with the minutes, with the group.
5. Ask for the required plans through the committee.

When

Now, and at each meeting.

Who

The group: one or two nearby residents.

Where this comes from

Approval condition 9.3; NSECC Community Liaison Committee Guide (2010); EARD Tables 6.3–6.4; ABO project page (spring 2026); RFP II s.4.3(f); FAQ v.02 items 12 and 15; **D1** #1 (request 1, part 8).

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **NSECC** Nova Scotia Environment and Climate Change · **EARD** Environmental Assessment Registration Document · **RFP** request for proposals · **FAQ** frequently asked questions · **Green Choice** the Province's renewable-power bidding program · **The Department** Nova Scotia Environment and Climate Change · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit

Community

Suggested action

Lead message

Six is what's approved: put the limit in writing

♂ Work required

Low

🎯 Potential difference

Low-medium

strong for messages

💬 Public opinion

High

⊖ Chance of stopping

Very low

When Now, before bids close

Who Dan and a volunteer; the group

Why this opinion rating: The plan marks it strong for comms and makes it the lead message; stick to the documented history and never say ABO plans 18.

What you can do

Make this the lead public message: the project used to be much bigger, six turbines is what's approved, and ABO, council and the Minister should put that limit in writing.

Why it might help

- **The history** (ABO's own mailouts): up to 16 turbines, about 80 MW (2021); about 18 turbines, 100 MW (March 2022); 15 turbines, 100–105 MW (2022–23), much of it on Crown land; 6 turbines, 42 MW since February 2024.
- **Why it shrank:** Green Choice limited turbines to private land, so the project “was significantly downsized”. That explains the cut; it is not a plan to grow back.
- Added turbines could share the substation, the 10 km line and the roads. **That's an inference: no document shows a plan or spare capacity.** Land north and east of the site, out to Highway 105, is in the zone where large turbines are allowed by permit.
- **Expansion would need:**
 - a review by the assessment branch, which may require a new environmental assessment (the Minister decides). Wind of 2 MW or more is a Class I project, and the Ellershouse wind expansion had its own assessment (2017);

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **MW** megawatt · **Crown land** land owned by the Province · **Green Choice** the Province's renewable-power bidding program

- a contract. Round 2's "Expansion" category needs a plant already running by 10 September 2026, so not Rhodena. That leaves a later round, or NS Power's written consent to amend Rhodena's contract;
- private land. Round 2 bars turbines on provincial Crown land, and the proposed contract has the seller promise the same. A later round could change the rule;
- grid room. Added megawatts are studied as a later request (A5).

How much it can do: low to medium, but strong for public messages. Chance of stopping the project: very low.

How to do it

1. **The message:** "Rhodena was 15–18 turbines until a procurement rule took Crown land out. Six is what's approved. Put the limit in writing." **Never say ABO plans 18.**
2. **Ask ABO,** by email or at the liaison committee so it's on record: no more than six turbines, in writing; any land rights held or sought beyond the approved layout; the size (MW) of its new grid request.
3. **Council:** put on record that added turbines should get a new environmental assessment (C4).
4. **The Minister:** ask that any extension state that it covers only the registered six-turbine project (B1).
5. **Evidence to watch:** land title (D4); whether the Crown easement sought goes beyond the registered roads and lines (D1); and a 42 MW bid can rest on a grid request of up to 105 MW (A5).

When

Now, before bids close.

Who

Dan and a volunteer (the email to ABO); the group (council).

Words on this page

Also on this page: **NS Power** Nova Scotia Power · **ABO** ABO Energy, the developer · **MW** megawatt · **Crown land** land owned by the Province · **Interconnection request** an application to connect to the grid · **Extension** extra time allowed under a particular rule · **Easement** a right to use someone else's land

Where this comes from

ABO mailouts (EARD Appendix A; March 2022 mailout); EARD s.3.1.1; wind LUB s.4.2; approval condition 3.5; EA Regulations s.11(3) and Schedule A; Ellershouse EA (2017); RFP II Appendix A, s.3.3(a), s.2.3(b)(v) and (ii)(A); proposed PPA s.2.1(b) and s.7.1(m) (M13042); GIP s.4.4.1(c).

G3Community

Noise and flicker at the nearest homes

Recheck at the final layout

Work required

Low

Potential difference

Low-medium

Public opinion

Low

Chance of stopping

Low

When

When the final layout is filed (date unknown)

Who

Dan

When triggered · date unknown

Why this opinion rating: Technical, and it protects particular households, whose homes stay out of public posts.

What you can do

When the final turbine layout is filed, recheck noise and shadow flicker at the nearest homes and camps.

Why it might help

- **The limits bind at any permanent or seasonal home or camp:** flicker 30 minutes a day or 30 hours a year; noise 40 dBA.
- **Only one modelled home is within 2 km**, about 1.25 km from the nearest turbine.
 - Worst-case flicker there is **24 hours a year and 26 minutes a day**, all from turbines 5 and 6. The daily limit is the tighter one.
 - Noise is **39.4 dBA**: 37.4 modelled from the turbines and substation, plus an assumed 35.1 background. The Department’s noise reviewer called it “just below” the limit, and said it could exceed 40 if the background is higher. Less than 1 dB more from the project would also cross 40.
- **What could push it over.** A desk screening check of the same worst-case geometry, made with a script Claude wrote for this

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **EARD** Environmental Assessment Registration Document · **LUB** land-use bylaw · **EA** environmental assessment · **RFP** request for proposals · **PPA** power purchase agreement · **GIP** Generator Interconnection Procedures · **dBa** A-weighted decibels · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit · **Shadow flicker** the flashing shadow of turning blades

research rather than ABO's software, matches ABO's result within a minute a day.

- A bigger rotor within the registered 200 m tip barely moves it (about 24–25 hours, 26–27 minutes).
- The tallest turbine in the alternative range (about 230 m; a design-change question, **B4**) reaches about **30 minutes a day**. So does moving turbine 5 about 150 m toward the home.
- It's a screening check only; the final-layout update decides.
- **A desk check of other homes** (27 September): the provincial building layer and Microsoft's building footprints show no other building within 2 km, but both use older imagery (the provincial layer here uses 2004–05 air photos). The civic-address file, updated monthly, adds one point within 2 km, flagged as an approximate spot on its lot; neither building layer shows a building there. Homes along Highway 19 start about 2 km from the nearest turbine, just beyond the model's 1,788 m flicker cutoff.
- Turbines can be fitted with flicker shutdown and quieter operating modes (Nordex offers both). This protects that household; it is unlikely to stop the project.

How much it can do: low to medium.

How to do it

1. **Get the final-layout update (D1)** when it's filed, before road construction or upgrades. Check the final turbine, the positions, the list of homes and the cutoff, the flicker method, and whether background noise was measured at the nearest home (ABO's registration recommends it). Rerun the flicker check.
2. **Confirm** the address point within 2 km, and any camps or recent builds, from the road or with the county's civic addressing. **Keep individual homes out of public posts.**
3. If the nearest home is near a limit, ask the Department for monitoring and mitigation.

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **Shadow flicker** the flashing shadow of turning blades • **The Department** Nova Scotia Environment and Climate Change

4. If the update shows a real gap, ask the Department for a third-party review at ABO’s cost. Hire a qualified reviewer yourself only if it declines.

When	When the final layout is filed; there’s no date yet.
Who	Dan.
Where this comes from	Approval conditions 3.19, 4.1, 4.2, 7.1, 7.3, 7.4; EARD Appendices K–L, s.10.5.4–10.5.5, Table 6.5; Comments Part 1, item 8; NS building layer; Microsoft building footprints; NS civic address file; desk flicker script (27 Sept 2026).



What you can do	Tourism business owners can write, in their own name, about their own business, with a specific ask.
Why it might help	Send letters to council (C4), the liaison committee (G1) and ABO; the environmental assessment was approved in January 2025. The scoring has no tourism criterion, but ABO can earn 2 points for a report showing how its proposal changed after local feedback. So a specific ask to ABO before bids close (14 January 2027), such as no hauling in peak season, has the best chance.

- The assessment says nearby communities “do not appear to be significant tourist destinations”, but admits it had no local visitor data. Owners’ booking and visitor records fill that gap.
- **Don’t claim general harm.** The often-quoted US study (2024) found about an 11% drop in home values within 1 mile after an announcement, but it came from urban counties; in rural counties the effect was near zero. A 2008 Scottish study forecast small tourism losses.
- Their most direct lever is not signing support letters, alone or through a business group (**A1**). Whether one business’s letter earns points is unclear.

How much it can do: low.

How to do it

1. Write about your own business: views you sell, bookings, construction access.
2. Attach evidence, such as booking and visitor records.
3. Make a specific ask, for example no hauling in peak season.
4. Don’t name a business as opposed without its OK. The group should not write these letters for owners.

When

November to December, before 14 January.

Who

Business owners themselves.

Where this comes from

RFP II s.4.3(f); EARD s.8.4.3; *Energy Policy* (2024) home-value study; 2008 Scottish tourism study.

Words on this page

US United States: as in a US study of home values.

Also on this page: **RFP** request for proposals · **EARD** Environmental Assessment Registration Document

G5

 Community

Offer constructive alternatives

Suggested action

Use in messages

 Work required

Low

to propose

 Potential difference

Low

direct; high credibility

 Public opinion

Medium-high

 Chance of stopping

Low

When

In every few posts

Who

The group

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

The plan rates its credibility high; “yes to clean energy, not on this ridge” blunts the anti-renewables label.

What you can do

Pair objections with constructive alternatives: community solar, and specific ways to reduce Rhodena’s impact.

Why it might help

- Nova Scotia’s Community Solar Program:** 0.5–10 MWac solar gardens owned by registered businesses (including co-ops and non-profits), community investment funds (CEDIFs), First Nations, municipalities, or universities and colleges; other groups can apply jointly with one. Rolling intake, up to a 100 MWac program cap. New Dawn’s 555 kW garden in Sydney was the first (October 2024). Ask the program how much capacity is left before planning one.
- Don’t claim a solar garden replaces Rhodena.** A 10 MWac garden makes about 10.5–15.8 GWh a year (the program’s 12–18% capacity factor); Rhodena’s assessment expects 153 GWh.
- Reduced-impact options**, each tied to its problem:
 - drop turbines 5 and 6, or move them away from the nearest home: they cause all its modelled flicker (**G3**). Natural

Words on this page

MWac megawatts of alternating current: how the solar program states capacity.

CEDIFs Community Economic Development Investment Funds. Nova Scotia's local investment funds.

GWh gigawatt-hour: a million kilowatt-hours; a measure of electricity produced over time.

136

Resources called bird-survey coverage near them “poor” (B3), so any move needs new surveys;

- bat curtailment (B6);
- a quieter turbine or operating mode for noise, not a taller turbine (G3, B4).

How much it can do: low directly, but high for credibility.

How to do it

1. Every few posts, say yes to clean energy done right (Message 4, below).
2. Point to the Community Solar Program.
3. Propose the reduced-impact options, each tied to its problem.

When

In every few posts.

Who

The group.

Where this comes from

Nova Scotia Community Solar Program (novascotia.ca/programs/community-solar); EARD (153 GWh a year).

G6

Community

First Nations: respect, privately

Suggested action

Do, privately

Work required

Medium

Potential difference

Indirect

Public opinion

Not applicable

Chance of stopping

Very low

When

Once, when there is new site evidence

Who

Not assigned; done privately

When triggered · date unknown

Why this opinion rating:

Not a public-opinion tool: it's done privately, and the group never speaks for the Mi'kmaw partners.

What you can do

Understand the difference between the Mi'kmaw partners and the Province's duty to consult; offer new site evidence once, privately; never speak for the Mi'kmaq.

Words on this page

Also on this page: EARD Environmental Assessment Registration Document · GWh gigawatt-hour · Curtailment slowing or stopping turbines · Mi'kmaq the Indigenous people of this region

Why it might help

- **Partners and consultation are separate questions.** The duty to consult is the Province's; ABO carries only “procedural aspects”.
- **Consultation.** The assessment branch wrote on 7 November 2024 to KMK, the Assembly of Nova Scotia Mi'kmaw Chiefs' consultation office. KMK's reply (3 December 2024) welcomed the partnership. It flagged Atlantic salmon and American eel, which ABO's 2022 surveys caught in brooks draining the study area, and said the Mi'kmaq hold commercial fishing licences within and around the project area. It recommended a Mi'kmaq fisheries communication plan and compensation plan, and asked for the Mi'kmaq Ecological Knowledge Study and the archaeology reports before commenting on heritage.
 - The approval requires a Mi'kmaq communication plan before work starts, available to the Department and the Mi'kmaq on request. No condition names the knowledge study or a fisheries compensation plan.
- **Partners.** We'koqma'q wrote on 18 November 2024 that it, Eskasoni, Potlotek and Wagmatcook were “the majority equity shareholder” in the round 1 bid, and it supported approval. The round 2 roster is unconfirmed.
- **The knowledge study (MEKS).** ABO's registration contradicts itself: “completed” with Membertou Geomatics, but also “currently underway”, with site visits in 2023 and May 2024 and interviews ongoing. ABO promised to send it to reviewers “under separate cover” and to review “any recommendations” for mitigation, and the approval says the project must follow its registration documents. It isn't on the project page; that proves nothing either way. The knowledge is Mi'kmaw intellectual property.

How much it can do: indirect.

Words on this page

KMK Kwilmu'kw Maw-klusuaqn: the Mi'kmaq Rights Initiative: the Assembly of Nova Scotia Mi'kmaw Chiefs' consultation office.

MEKS Mi'kmaq Ecological Knowledge Study: a study of Mi'kmaw land and resource use for a project; the knowledge belongs to the Mi'kmaq.

Also on this page: **ABO** ABO Energy, the developer

How to do it

- 1. Offer new site evidence once, privately, when there is some** (an ecology memo, verified species records). Lead with interests already on the record: streams and fish (**B7**), wetlands, bats (**B6**), turbines 5 and 6.
- 2. Ask each community, or the Unama'ki Institute of Natural Resources** (it works for the five Cape Breton Mi'kmaw communities), how it wants to receive it.
- 3. Don't ask anyone to oppose the project or the partnership, or describe their views in public.** Accept no reply. Keep Mi'kmaw matters out of the support-letter ask (**A1**) and the fact-check package (**A3**).
- 4. Ask ABO in writing about the knowledge study:** which version covers the six-turbine layout; will it be updated for the final layout; when did it reach KMK and the assessment branch; did it make recommendations, and did they lead to mitigation? Ask for dates and yes or no, not content. Dan's request asks only for the date it reached the Department.

When

Once, when there is new site evidence.

Who

Not assigned; done privately.

Where this comes from

Office of L'nu Affairs, Proponents' Guide p.2; Comments Part 2 (PDF pp.23–25); EARD s.5.1–5.2 and s.7.3.2; approval conditions 2.2 and 10.1; MEK Protocol p.20; 2010 Mi'kmaq–Nova Scotia–Canada consultation Terms of Reference; **D1** #1 (request 1, part 6, date only).

Words on this page

MEK Mi'kmaq Ecological Knowledge: as in the MEK Protocol, which governs these studies.

Also on this page: **ABO** ABO Energy, the developer • **KMK** Kwilmu'kw Maw-klusuaqn • **PDF** Portable Document Format • **EARD** Environmental Assessment Registration Document

G7

 Community

Messages and volunteer jobs

Use the corrected messages

 Work required

Not rated

 Potential difference

Not rated

 Public opinion

High

 Chance of stopping

Not rated

When

Now, once the fixes are made

Who

Dan (records); the group (legwork)

start about 6 Jan · bids 14 Jan

Sept

Oct

Nov

Dec

Jan

Feb

Mar

Apr

May

June

July

2026

2027

Why this opinion rating:

This is how the other messages reach people, once the kit's fixes are made.

What you can do

Use the four corrected messages below, follow the ground rules, pick a volunteer job, and post the recruitment message.

Why it might help

This is how the other ideas reach people. Dan keeps the records work; the group does the legwork. The messages here already include the corrections the fact-check required: for example, 18 turbines was the March 2022 plan, not the first; an extension is possible, not “common”; and the German parent company, not the approval holder, is restructuring.

Ground rules

Write everything as if it will be screenshotted and read by ABO, council and the Province.

• Say only what a document shows, and link it.

• Don’t call anyone corrupt, dishonest, insolvent or law-breaking unless a regulator or court has said so.

• Don’t speak for the Mi’kmaw partner communities.

• Don’t post exact locations of nests, dens, roosts, hibernation sites, lichens or cultural sites. Send them privately to the regulator.

• Write in your own words about your own concerns: one real paragraph is better than a form letter.

Words on this page

Also on this page:

ABO ABO Energy, the developer · Extension extra time allowed under a particular rule · Approval a regulator's permission · Hibernaculum a place where bats hibernate

140

- Stay on public roads, or get the landowner's permission. Never enter old mine openings.

Message 1 (lead)**Six is what's approved: put it in writing (G2)**

The core line: "Rhodena was 15–18 turbines until a procurement rule took Crown land out. Six is what's approved. Put the limit in writing."

Facts we can stand behind:

- September 2021: up to 16 turbines, about 80 MW, mostly on Crown land. March 2022: about 18 turbines, 100 MW (ABO's own mailout). Until February 2024: 15 turbines.
- 6 January 2025: approved for up to 6 turbines, 42 MW, up to 200 m to the blade tip.
- Added turbines could share the substation, the roughly 10 km line and the roads. That's an inference: no document shows a plan or spare capacity.
- Expansion goes to the assessment branch, which "may require" a new environmental assessment.
- ABO declined to sign its 2025 contract, citing "external economic conditions and current market realities". It never signed one.

Don't say: "ABO plans 18 turbines"; "six turbines is phase one"; "three times bigger"; or that expansion "would need" a new assessment (it "may require" one; asking council to press for one is fine).

The asks: ABO: commit in writing to no more than six turbines, and say whether it holds or seeks land rights beyond the approved layout; record the answer word for word. Council: no support letter, and put on record that any expansion should get a new environmental assessment. The Minister: any extension limited to the approved six-turbine project, with updated wildlife surveys first.

Words on this page

Also on this page: **MW** megawatt · **ABO** ABO Energy, the developer · **Crown land** land owned by the Province ·

Condition a rule attached to an approval or permit · **Support letter** a letter backing the bid · **Extension** extra time allowed under a particular rule

Draft post:**Six is what's approved. Let's get it in writing.**

The Creignish ridge project is approved for up to 6 turbines. It was bigger before: up to 16 turbines in 2021, about 18 in ABO's March 2022 mailout (aboenergy.com/media/en/range-of-activities/canada/rhodena/Rhodena_Mailout_220316.pdf), and 15 until February 2024, when a provincial bidding rule took Crown land out.

We're not saying ABO has announced an expansion; no document shows one. We're asking ABO to put it in writing: Rhodena will not grow beyond six turbines.

If you email ABO or go to an open house, please ask: (1) Will you commit in writing to no more than six turbines? (2) Do you hold or seek land rights beyond the approved layout? Post the answer you get here, word for word.

Message 2**Who will own it? (A4)**

Facts: ABO's German parent company reported a preliminary 2025 loss of about €170 million (15 January 2026). The parent, not ABO Energy Canada Ltd. (which holds the approval), is restructuring under a standstill with its lenders since January 2026, extended to 30 November 2026. ABO says Rhodena "is being advanced" with an unnamed investor and First Nations partner(s), and it must still win the bidding.

Don't say: "ABO is bankrupt" or "ABO is insolvent". Neither is established; ABO is still selling and developing projects.

Say: "ABO's German parent company is restructuring. Before anyone signs a 25-year contract, residents deserve to know who will own, build and be responsible for these turbines, and who pays to take them down."

The asks: name the investor. Council: a staff report, and a bylaw change requiring security for removal before a permit (C4, C5). Today the bylaw requires a decommissioning plan, not security.

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Crown land** land owned by the Province · **Approval** a regulator's permission · **Standstill** a temporary agreement with financing partners · **Decommissioning** taking something out of service

Message 3**The start clock (B1)****Facts:**

- The approval says work must start by about 6 January 2027, unless the Minister extends it in writing. ABO's own page estimates construction in 2028–2030.
- Natural Resources found bird coverage “poor, particularly near Turbine 5 and Turbine 6”, asked for breeding-bird surveys before construction, and noted the bat surveys missed the first 2–3 weeks of May.
- Spring radar started on 13 April 2022 and 27 April 2023; the federal department's spring window opens on 15 March.
- The bird counts are from 2022 only.

Don't say: “The approval expires on 6 January.” **Say:** “Work must start by about 6 January 2027 unless the Minister grants a written extension.” An extension is possible; don't call it “common”.

Don't say the federal department “recommended two years of monitoring”.

The ask: personal letters to the Minister: any extension should require updated wildlife surveys and be limited to the approved six-turbine layout.

Message 4**Yes to clean energy, not on this ridge (G5)**

Use it every few posts; it blunts the “anti-renewables” label. Point to the Province's Community Solar Program (co-op and non-profit solar gardens, 0.5–10 MWac). Don't claim solar replaces 42 MW of wind; it doesn't, megawatt for megawatt.

Volunteer jobs

Each job has a “report back”, so the results come to one place (a group post thread or the group's files).

Words on this page

Also on this page: **ABO** ABO Energy, the developer • **MWac** megawatts of alternating current • **MW** megawatt • **Approval** a regulator's permission • **Extension** extra time allowed under a particular rule

#	Job	Who and effort	When	How	Report back
1	Mailbox log	Anyone within about 5 km; 5 minutes	Now to 9 Oct	Keep any flyer or letter from ABO and photograph it with the date it arrived. One empty mailbox proves nothing; log ABO's other channels too (A2)	Photo, date, community
2	Website watcher	One person; 5 minutes a week	Weekly to Jan	Save ABO's Rhodena page with the Wayback Machine ("Save Page Now") and screenshot it. ABO must post project details by 26 Oct	Dated screenshots
3	Open house recorders	Two people; one evening	When announced	Photograph every board and map. Note the turbine model, hub height, blade length and number of turbines. Ask the six-turbine and investor questions	Photos, written answers
4	Liaison committee seat	One or two calm, detail-minded residents	Now	ABO's page already invites volunteers: volunteer now, take notes, ask for minutes (G1)	Minutes and notes
5	Letters to the Minister	Many; 20 minutes each	With Dan's letter; before about 6 Jan	Use Message 3's points in your own words. Say where you live and what you value about it	"Sent" and the date
6	Council ask	Two or three people	Oct-Dec	Ask your councillor and the Warden: no support letter; a staff report on security for removal before a permit; on record that any expansion should get a new assessment. Consider presenting to council (C4)	Who, and what they said

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **Wayback Machine** a free web archive · **Hub height** the height of the rotor's centre · **Support letter** a letter backing the bid

#	Job	Who and effort	When	How	Report back
7	Local groups	A few people	Oct–Dec	Politely ask community associations, the rec centre, fire departments, churches and tourism businesses to wait on any support letter until residents' questions are answered. Explain; don't pressure	Which groups, their answer
8	Site watch	Regular drivers of Hwy 105, Rhodena Road, General Line Road	Nov–Jan	Note or photograph any clearing, survey stakes, road work or heavy equipment near the site, from public roads only. Record the date, time and place	Photo, date, place
9	Wildlife records	Anyone	Ongoing	Send exact records privately to the conservation data centre and Natural Resources. iNaturalist and eBird are public, and privacy settings alone aren't enough: "Obscured" or "Private" can leak through photos, notes and nearby posts. On iNaturalist, obscure and keep landmarks out; on eBird, log a general location or wait until the birds have left (B12)	Exact locations only privately
10	Bat hibernation question	Someone with naturalist or biology contacts	Oct–Nov	The 8 candidate mine openings (Port Hood, Whiteside, Little River) come from the Province's mine-openings database. Ask whether they've been checked for bats since white-nose syndrome. Inquiries only: no site visits, no entry (B11)	Who was asked, the answer
11	Land registry	Someone with Property Online access, or near a land registration office	This fall	Look up leases, options or easements on the project lots (D4)	Lot list and documents

Words on this page

Also on this page: **Support letter** a letter backing the bid • **White-nose syndrome** a fungal disease of hibernating bats
• **Easement** a right to use someone else's land

#	Job	Who and effort	When	How	Report back
12	Company check	Anyone; 15 minutes	Monthly, and before 14 Jan	Free company-registry search for ABO Energy Canada and any Rhodena company (D3)	Screenshots
13	Tourism letters	Business owners themselves	Nov–Dec	Owners write about their own business (G4). The group should not write these for them	“Sent”
14	Night view	Someone comfortable with maps or photos	Nov	Day and night views showing top and mid-height red lights, labelled illustrative (F3)	Image and method

Recruitment post

Two deadlines, one ridge: small jobs, pick one

ABO has to start work on Rhodena by about Jan 6, 2027, or get a written extension from the Minister. Bids for the Province’s new wind contracts close Jan 14, 2027.

Petitions are done. What helps now is small, factual jobs. Comment with the number you’ll take:

1. Keep any ABO flyer that comes to your mailbox (with the date)
2. Screenshot ABO’s Rhodena web page once a week
3. Go to the next open house and photograph the boards
4. Join the community liaison committee (ABO is inviting volunteers now)
5. Write a short personal letter to the Environment Minister (points provided)
6. Talk to your councillor
7. Ask your community group not to sign a support letter yet
8. If you drive Hwy 105 / Rhodena Rd / General Line Rd: photograph any clearing or equipment near the site, from the road
9. Report wildlife sightings (privately for exact spots)
10. Ask your naturalist contacts one bat question
11. Look up land records (Property Online access needed)
12. A 15-minute company registry search

Words on this page

Also on this page: ABO ABO Energy, the developer • **Extension** extra time allowed under a particular rule • **Support letter** a letter backing the bid

13. Business owners: a letter about your own business

14. Help with a night-time view of the lights

Stick to facts we can link to. No name-calling, no guessing at motives. It makes us much harder to dismiss.

When Now, once the corrections are made; messages every few posts.

Who Dan keeps the records work; the group does the legwork.

Where this comes from The research plan's comms and volunteer kit (27 Sept 2026), as corrected by the plan (messages 1–3, tasks 1, 4, 9 and 10); the plan's don't-claim list; ABO mailout (16 Mar 2022); ABO project page (Oct 2025); ABO ad hoc announcements (15 Jan and 31 July 2026); Comments Part 1 (PDF p.34) and Part 2 (PDF p.18); EARD s.7.4.4.4 and s.7.4.5.5.

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **PDF** Portable Document Format · **EARD** Environmental Assessment Registration Document

H

Chapter H

What won't work

Ideas that come up often but are closed, out of time, or not a residents' lever. Knowing them saves effort and credibility.

Aviation as a way to stop it

NAV CANADA, National Defence, the federal weather radar and the RCMP did not object in 2024. NAV CANADA did so while noting impacts on an airway and on the approaches to Port Hawkesbury airport, about 12 km away. Keep the aviation ideas (**F1–F3**) for the letters, the lighting and the night views.

Bigger home setbacks

The county's 4× the turbine height (about 800 m) is the provincial cap. Only the distance needed to meet the 40 dBA noise and flicker limits can justify more. The closest identified home, 1.2 km away, models at 39.4 dBA against the 40 dBA limit. That margin is the live angle: watch the final-layout update (**G3, C3**).

A penalty for walking away in 2025

Closed. The administrator's published answers rejected a 5-point deduction for round 1 winners that refused to sign. Round 2's own penalties are for a round 2 winner's failures: missing the 20-business-day deadline to sign and deliver the contract, security and closing documents may cost its proposal security, and not signing may limit future eligibility.

Joining the Energy Board's contract case

Comments closed on 14 September. Late participation needs the Board to extend the time. It's about the standard contract, not Rhodena.

Words on this page

RCMP Royal Canadian Mounted Police: checked in 2024 for effects on its radio links; it has none of its own nearby.

Also on this page: **NAV CANADA** the company that runs Canada's civil air navigation · **dBA** A-weighted decibels

Challenging the 2025 approval

Out of time. The approval has no statutory appeal, and the court-review deadline passed by 6 July 2025. A judge can lengthen it, but more than a year late that's a long shot. Focus on fresh decisions (**B14**).

A Crown-land use application

An earlier application to change the use of Crown parcels west of General Line Road was reportedly rejected (not verified). Get the decision before trying anything similar. The live issue is ABO's easement: in the 2024 design, roads and lines are partly on Crown land, and easements are considered only after a contract is signed. New roads or lines on Crown land forgo 2 bid points; existing public roads don't (**D1, E1**).

More petitions

Done twice: on paper (almost 200 names) and online (started April 2022, now closed at 754). They cost ABO no points. Little is gained by another.

"Upgrade costs make it unbuildable"

NS Power is responsible for grid reliability equipment; ABO pays for its own connection. That's ABO's risk, not a residents' lever. The real tests are the new grid study and the deliverability test. Watch **A5**.

Where this comes from

EARD Table 10.2 and s.10.5.4; Minimum Planning Requirements Regulations s.14(1); approval condition 7.1; FAQ v.02 items 24, 37 and 39; RFP II s.3.10(a)(iii)–(iv), Appendix G, s.4.5(f)(i), s.2.3(b)(v)(A), s.4.3(e)(v) and (f), s.2.8(a)(i), s.4.5; Board Regulatory Rules r.5(4); Renewable Electricity Regulations s.37(1); Environment Act s.138(2); Civil Procedure Rules 7.05(1) and 2.03(1)(c); FAQ v.02 item 35; filed PPA s.2.1(d).

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **NS Power** Nova Scotia Power · **EARD** Environmental Assessment Registration Document · **FAQ** frequently asked questions · **RFP** request for proposals · **PPA** power purchase agreement · **Approval** a regulator's permission · **Easement** a right to use someone else's land · **Crown land** land owned by the Province · **Condition** a rule attached to an approval or permit

What not to say

Claims that sound right but aren't, and what to say instead. Stay with what documents show.

Don't say	Say instead
"The approval expires on 6 January 2027."	Work must start within two years (by about 6 January 2027) unless the Minister extends in writing. Neither the rule nor the approval says it lapses. Extensions have been granted, and not always posted (Bear Head's, to 2027, per CBC; it isn't on its project page). Site preparation on any part counts as a start, but it needs 30 days' written notice (by about 7 December 2026) and the items due before work starts or before road work, unless the Department allows otherwise in writing (B1).
"Opposition letters cost ABO points."	No criterion deducts points for opposition. Engagement points come only from what ABO's proposal shows. The direct lever is <i>withholding support letters</i> (0.5 each, up to 4; A1). Documented errors in ABO's claims can go to the administrator, which may verify with third parties (A3).
"ABO must hold a new open house."	Not necessarily. An in-person open house or public meeting is mandatory, but the administrator's published answers say earlier open houses, an approved assessment and no significant design change "appears to meet the requirement". Those answers don't amend the call for bids. Rhodena held five (2021, 2023, 2024), and ABO says it plans more in 2026.
"The 2025 walk-away counts against ABO."	Not in the scoring. The call for bids has no such criterion, and requests for a 5-point deduction, or a 1-point bonus for projects that hadn't failed to sign an awarded contract, were turned down.
"Council decides the permit."	The Development Officer (at the planning commission) issues it. A permit that meets the bylaw must be issued; council has no approval vote. Council does hear variance appeals.
"The agency comments are secret."	They're posted on the Province's project page (Comments Parts 1–2), with the Mi'kmaw and public comments. Ask how they were <i>resolved</i> .

Words on this page

Also on this page: CBC Canadian Broadcasting Corporation · **ABO** ABO Energy, the developer · **Approval** a regulator's permission · **Extension** extra time allowed under a particular rule · **The Department** Nova Scotia Environment and Climate Change · **Support letter** a letter backing the bid · **Bid administrator** the firm running the bidding · **Development Officer** the planning official · **Variance** a lawful, limited adjustment of a bylaw rule

Don't say	Say instead
"18 agencies opposed it."	The comment index lists 18 government entries of mixed kinds: general guidance, "no concerns" notes and technical requests. It wasn't a vote.
"ABO is bankrupt or insolvent."	The German parent is restructuring under a creditor standstill to 30 November 2026 . ABO says Rhodena has an unnamed investor (project page, spring 2026). Ask who will own and finance it.
"A new investor forces a new assessment."	Not automatically. The change rule covers changes to the project, not its owner. But selling a controlling interest, or moving the approval to an affiliate, needs the Minister's written consent .
"The hoary, eastern red and silver-haired bats are legally endangered."	COSEWIC <i>assessed</i> them Endangered (May 2023). They are not on the federal legal list (as of 3 September 2026) or Nova Scotia's. The approval still requires the locations where field work found them to go to Natural Resources before work starts.
"The county's bigger setbacks apply."	Council adopted the greater of 1,500 m or 5× the height (May 2025). The Minister replaced it with 4× the height and kept the coast setback at 100 m, not 2 km (July 2025). The bylaw allows more only to meet 40 dBA; the provincial cap would also allow a flicker test.
"The zone rule makes Rhodena ineligible."	The rule bars only connections in Zones 4–5. The line Rhodena would use is listed in Zones 1–2, so the rule doesn't exclude Rhodena if it still connects there.
"There's a <u>UARB</u> hearing on Rhodena's cost recovery."	There isn't one: Rhodena has no contract. The Energy Board's case M13042 is the application to approve the standard contract; comments closed on 14 September 2026, and the administrator's reply is due on 28 September. The Board must let NS Power recover the costs of contracts awarded in the bidding.
"The approval can still be appealed."	The Minister's approval decision has no statutory appeal. The court-review deadline passed by July 2025. A judge can lengthen it, but that is a long shot this late. Fresh decisions (an extension, amendment or permit) start new short clocks; get legal advice fast (B14).

Words on this page

UARB Utility and Review Board: the regulator's former name. The standard contract is now before the Energy Board.

Also on this page: **ABO** ABO Energy, the developer · **COSEWIC** Committee on the Status of Endangered Wildlife in Canada · **dBA** A-weighted decibels · **NS Power** Nova Scotia Power

Don't say	Say instead
"ABO plans 18 turbines."	No current plan beyond six has been found; the assessment covers up to six. Earlier layouts had up to 16 (2021), about 18 (2022) and 15 (until February 2024) turbines, partly on Crown land.
Any "corrupt" or "bribe" talk	No supporting document has been found in the searches so far (D2). Donations or lobbying alone don't show wrongdoing. Act only on documents.

Where this comes from	The research plan's don't-claim list, with its sources: EA Regulations s.27 and s.2(2); approval conditions 3.2, 3.3, 3.5, 3.9, 3.12–3.13, 6.1; RFP II s.4.3(f), s.5.5, s.5.7(c), s.2.7(a)(iv), s.2.3(b)(iii), Appendix E; FAQ v.02 items 10, 24, 37, 39; wind LUB s.2.2, s.2.4, s.4.4(a), (f), (g); MGA s.236, s.246(1); Environment Act s.41B, s.138(2); Civil Procedure Rules 2.03, 7.05; Minimum Planning Requirements Regulations s.14(1); Electricity Act s.29(2); Energy Board matter M13042; SARA Schedule 1 (as of 3 Sept 2026); CBC (Bear Head extension).
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Words on this page

SARA Species at Risk Act: the federal law for listed species. Its bans reach endangered or threatened migratory birds on any land, but listed land species on non-federal land only if Ottawa orders it.

Also on this page: **ABO** ABO Energy, the developer · **EA** environmental assessment · **RFP** request for proposals · **FAQ** frequently asked questions · **LUB** land-use bylaw · **MGA** Municipal Government Act · **CBC** Canadian Broadcasting Corporation

Project facts

As of 27 September 2026.

Item	Fact
Approval	Class I environmental assessment approved with conditions on 6 January 2025 . Holder: ABO Energy Canada Ltd. Provincial file 40100-30-350. Registered 6 November 2024; comments closed 6 December 2024. Work must start by 6 January 2027 unless the Minister gives a written extension. The Province's project page shows no extension or amendment; neither rule requires an extension to be made public.
Design	Up to 6 turbines, 42 MW; the registration notice says up to 200 m to the blade tip and up to 7 MW each. Modelled turbine: Nordex N163, 118 m hub, 163 m rotor, 199.5 m tip. ABO's registration also lists an alternative range (4.5–7 MW, 110–140 m hub, 150–180 m rotor); the largest hub with the largest rotor would be about 230 m. A model over 200 m is at least a question for the change rule; the approval requires the final model and updated modelling before road work (B4).
History	September 2021: up to 16 turbines, about 80 MW (Community Wind with ABO). March 2022: 100 MW, about 18 turbines; May 2022: 15. Not shortlisted in the 2022 Rate Base Procurement (ABO, 15 July 2022). June 2023: 15 turbines, 105 MW. February 2024: cut to 6 turbines, 42 MW (ABO cited Green Choice's private-land rule). Selected in Green Choice round 1 (27 January 2025); ABO declined to sign the contract, citing economic and market conditions (public by 25 September 2025).
Turbine positions (latitude, longitude, rounded)	T1 45.7670, –61.4418 · T2 45.7696, –61.4367 · T3 45.7713, –61.4293 · T4 45.7706, –61.4222 · T5 45.7583, –61.4235 · T6 45.7596, –61.4178 (ABO's 2024 layout).
Zoning	On an unofficial desk fit of the county's wind zoning map, all six plot in the general rural wind zone (GR-1), where large turbines need a development permit. Turbine 1 plots about 300 m from the coastal zone (UTE-1), where only small domestic turbines are allowed (well-fitting variants gave 250–320 m). Only the planning commission can confirm the boundary (C2).

Words on this page

T1–T6 the six turbine positions: numbered as in ABO's 2024 layout; T1 is the westernmost, nearest Route 19.

Also on this page: **ABO** ABO Energy, the developer · **MW** megawatt · **GR-1** the general rural wind zone · **UTE-1** the coastal wind zone

Item	Fact
Homes	The closest home is about 1.2 km away (modelled receptor A); ABO says it used a 1,000 m minimum. The county minimum from existing homes on other lots is 4× the tip height (about 800 m), more if needed to keep noise at 40 dBA. The civic-address file has one more address point within 2 km, placed approximately on its lot. It isn't among ABO's modelled homes, and its use is unknown (G3).
Noise and flicker	Worst-case flicker at the nearest home: 24 hours a year and 26 minutes a day (from turbines 5 and 6); none at the other six modelled homes. Modelled noise there: 39.4 dBA , including 35.1 dBA background. The approval's binding limits at permanent or seasonal homes: 30 hours a year and 30 minutes a day, and 40 dBA.
Grid	A new 138 kV line of about 10 km to line L-6537 (ABO: 10.2 km; NS Power: 9.3 km). The line is in grid Zones 1–2, so Rhodena passes the zone rule. NS Power's 2024 study of "Rhodena Wind" (IR713, 42 MW) found thermal overloads on four lines and the Port Hastings transformer. Round 2 allows only as-available service. The study's non-binding estimate was \$20.1 million (with a 25% contingency; about \$9.3 million of it network upgrades eligible for refund), assuming changes to existing protection schemes are approved. It doesn't replace the transformer, and in one stressed outage case the study limited output to 1.7 MW. If line upgrades are needed instead, add \$37.8 million (no contingency). Round 2 needs a new request (due 30 September). The latest posted queue (15 June 2026) has no Inverness wind request and nothing on L-6537.
Wetlands	36 wetlands, including 3 potential wetlands of special significance: one in a proposed turbine pad, one along an existing road, one along the collector line. ABO says all three can be avoided in detailed design. Up to 14 would be altered, about 1.22 ha (a conservative estimate).
Access	From Highway 105 by General Line Road and/or Rhodena Road: two new roads off General Line Road, one off Rhodena Road. About 4.75 km of new road and 5 km of existing road. Turbine 1 is about 2 km from Route 19.

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **dBA** A-weighted decibels · **kV** kilovolt · **NS Power** Nova Scotia Power · **IR713** interconnection request 713 · **MW** megawatt · **Receptor** a home or camp where the noise and flicker limits apply · **Tip height** the height to the top of a blade · **Shadow flicker** the flashing shadow of turning blades · **Approval** a regulator's permission · **Queue** a list of items waiting their turn · **Wetland of special significance** a wetland with extra protection

Item	Fact
Aviation	Port Hawkesbury airport is about 12 km from turbines 5 and 6 (ABO says about 13 km from the assessment area). 2024 replies: NAV CANADA, no objection but a higher airway minimum altitude and a new approach obstacle (7 October 2024; valid 18 months, so lapsed about 7 April 2026 unless renewed). National Defence, no objection; valid 24 months from its date, which the filed copy doesn't show; ABO logs it as received 11 September 2024 , so it ran out no later than 11 September 2026 ; resubmit if the layout changes. Federal weather radar, no objection, but no longer valid if the number, height or placement of turbines changes. RCMP: no towers or links of its own nearby. Renewals are unconfirmed.
Liaison committee	Met on 13 February (online) and 8 May 2024 (another table also lists a 6 March 2024 meeting). ABO's spring 2026 update says it will contact past members to plan a first meeting "this year", and is recruiting.
Partners (2025)	Eskasoni, Potlotek, We'koqma'q L'nue'kati and Wagmatcook (the provincial release spells it "Wagmatook"). ABO's June 2023 mailout called Eskasoni a 51% partner. In spring 2026 ABO mentions only "an investor and First Nations partner(s)". The round 2 roster is unconfirmed.
ABO's timeline	Bid in winter 2027; award in spring 2027 if selected; engineering and construction 2028–30; target operation 2030. The call for bids requires a scheduled operation date on or before 31 December 2030 .
ABO's parent company	2025 loss about €170 million (preliminary figures, 15 January 2026; no 2025 annual report on ABO's reports page as of 27 September). Creditor standstill since 23 January 2026, extended to 30 November 2026 (31 July). On 12 May 2026 ABO reported a loss equal to half its share capital from 2026 business. Its draft restructuring report's preliminary view is that the company can be restructured if financing is agreed.
Bidding round 2	Opened 10 September 2026. Registration closed 17 September; who registered isn't public (in spring 2026 ABO said it expects to bid). Grid-connection requests due 30 September 2026 ; study results targeted for 26 November. Bids due 14 January 2027, 3 pm Atlantic . Target for notifying winners: 6 May 2027. Up to 1,200 GWh a year (about 350 MW). A 25-year contract with NS Power. Power Advisory LLC administers. So far only addendum 1 (15 September) and the administrator's answers v.02 (16 September); the scheduled deadline for addenda is 29 October, but later ones are allowed.

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **NAV CANADA** the company that runs Canada's civil air navigation · **RCMP** Royal Canadian Mounted Police · **GWh** gigawatt-hour · **MW** megawatt · **NS Power** Nova Scotia Power · **LLC** limited liability company · **Standstill** a temporary agreement with financing partners · **Addendum** a formal change · **Bid administrator** the firm running the bidding

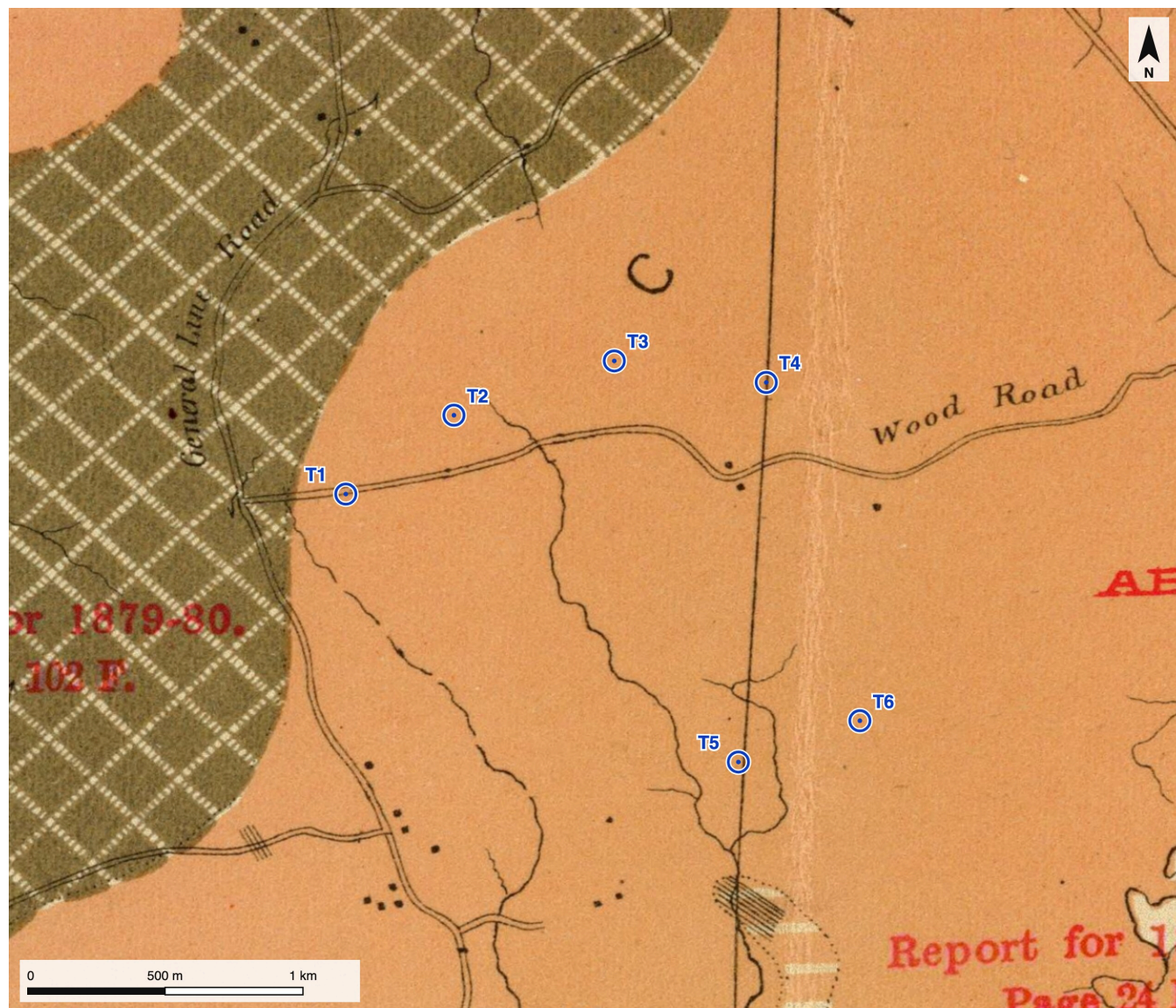
Item	Fact
Scoring (100 points)	Price 50 · Risk and maturity 24 (environmental risk 7, through an environmental approval representative of the bid design, or a 4.0 questionnaire; site 6, including a zoning letter worth 2; experience 4; financing 4; wind data 3) · Engagement 10 (feedback report 2, liaison committee 1, support letters 0.5 each to a maximum of 4, Mi'kmaq engagement 3) · Benefits 16 (Mi'kmaw ownership over 50% = 6, social programs 5, economic benefits 5).

Where this comes from	The research plan's project facts, with their sources: approval and decision letter; EA registry page; EA Regulations s.27; registration notice; EARD s.2.1, s.3.2.1–3.2.2, Table 3.4, s.6.5, s.7.3.3.5–7.3.3.6, s.8.3.2, s.10.5.4, Tables 6.1, 6.3–6.5, Appendices A, J–L; ABO mailouts and project page; Province release (27 Jan 2025); CBC; county wind zoning map (Sept 2025) and bylaw s.4.2(b), s.4.4(a), (g), s.5.2; NS civic address file; RFP II v1.4 s.1.2, s.2.3(b) (iii), s.2.4(a), s.2.8(b), s.3.3, s.3.5(c), s.3.6, s.4.3, Appendix E; IR713 feasibility study (31 May 2024) s.6 and s.11; IESO-NS queue (15 June 2026); ABO ad hoc announcements and reports page.
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Words on this page

Also on this page: **EA** environmental assessment · **EARD** Environmental Assessment Registration Document · **ABO** ABO Energy, the developer · **CBC** Canadian Broadcasting Corporation · **NS** Nova Scotia · **RFP** request for proposals · **IR713** interconnection request 713 · **IESO-NS** Independent Energy System Operator (Nova Scotia) · **Approval** a regulator's permission · **Support letter** a letter backing the bid · **Queue** a list of items waiting their turn

The turbines on the 1884 map



ABO's six turbine positions (T1 to T6, the 2024 layout; the final layout may differ) on Hugh Fletcher's Geological Survey of Canada map of Cape Breton, sheet 19 (1884), which shows roads, streams and buildings as they were then, not what remains today. The fit of the old map is provisional and approximate (tens to a few hundred metres); the scale bar is approximate. Map image: David Rumsey Map Collection, David Rumsey Map Center, Stanford University Libraries; CC BY-NC-SA 3.0; overlay added. This map may be shared with that credit. Detailed comparisons of individual map marks go privately to the heritage department (**B10**).

Words on this page

CC BY-NC-SA Creative Commons Attribution-NonCommercial-ShareAlike: the 3.0 licence of the 1884 map image: credit the source, no commercial use, and share adaptations under the same licence (creativecommons.org/licenses/by-nc-sa/3.0).

Also on this page: **ABO** ABO Energy, the developer · **T1-T6** the six turbine positions

Glossary and index of abbreviations

Every word the footers explain, with the page where it is first defined.

Abbreviations are spelled out in full.

A2022NS129 heritage research permit (2022): the permit for ABO's earlier archaeology work.	67	A2024NS150 heritage research permit (2024): the permit for ABO's 2024 archaeology fieldwork.	67
ABO ABO Energy, the developer: the German renewable-energy group behind Rhodena. Its Canadian company, ABO Energy Canada Ltd. (ABO Wind Canada Ltd. until May 2024), holds the approval; the German parent company is the one restructuring.	2	AC advisory circular: a Transport Canada guidance note (AC 601-006 covers aircraft-detection lighting).	125
ACAP Atlantic Coastal Action Program: ACAP Cape Breton; a 2018 federal recovery strategy says it has monitored known and potential bat hibernation sites since 2013.	70	Addendum a formal change: to the call for bids, issued by the administrator.	2
Aircraft detection lighting that stays off until an aircraft is near. If the sensor or its link fails, the lights come on. Transport Canada must accept it; acceptance isn't guaranteed.	124	Approval a regulator's permission. In this book "the approval" means Rhodena's environmental approval of 6 Jan 2025; other approvals, such as for a wetland, are named.	2
As-of-right allowed under the zoning rules: by permit, without a separate discretionary planning decision.	26	ATIP access to information and privacy: the federal version of an information request, made to a federal department.	51
Baseline a dated record of how things are now: so later changes can be shown.	43	Bid administrator the firm running the bidding. Power Advisory LLC for round 2. It checks and scores bids, and may verify claims with third parties.	4
Business days days banks are open: under the filed contract, so weekends and holidays don't count.	16	CARs Canadian Aviation Regulations: the federal aviation rules; a structure over 150 m is an obstacle to air navigation.	125
CBC Canadian Broadcasting Corporation: CBC News, the public broadcaster.	59	CC BY-NC-SA Creative Commons Attribution-NonCommercial-ShareAlike: the 3.0 licence of the 1884 map image: credit the source, no commercial use, and share adaptations under the same licence (creativecommons.org/licenses/by-nc-sa/3.0).	157
CEDIFs Community Economic Development Investment Funds. Nova Scotia's local investment funds.	136	CLC community liaison committee: a committee of local residents the approval requires ABO to keep; advisory only.	28

Other abbreviations on this page

Also on this page: LLC limited liability company

Clean-up bond proposed financial security for removal: that the county could call if an owner fails to take the turbines down. The current bylaw requires a plan, not a bond.	5	Commencement starting work. Site preparation on any part of the project counts. It needs 30 days' written notice, unless the Department varies the timing in writing.	15
Concordance table ABO's yearly status report: on each approval condition, due each 31 January until the Department releases ABO in writing.	15	Condition a rule attached to an approval or permit. Breaking a condition of Rhodena's environmental approval is an offence.	2
Core habitat the areas a recovery plan says a species needs most. Identified, not legally designated, for lynx in 2025.	14	COSEWIC Committee on the Status of Endangered Wildlife in Canada: the national scientific committee that assesses species. Its assessment alone doesn't make a species legally protected.	43
Crown land land owned by the Province: managed by Natural Resources. Round 2 bars turbines on it.	10	CSA Canadian Standards Association: CSA Group, which certifies equipment.	88
Curtailement slowing or stopping turbines: at set times, for example on nights in the bat season.	11	Cut-in speed the wind speed at which a turbine starts producing power. Below it, the blades can be feathered so they barely turn.	49
dBA A-weighted decibels: the usual measure of sound as the human ear hears it. The approval's limit at homes is 40 dBA.	46	Decommissioning taking something out of service. Here, usually taking the turbines down and restoring the site at the end of the project's life; for roads, closing and restoring them.	61
Development Officer the planning official: at the planning commission who issues development permits. A permit that meets the bylaw must be issued; council has no vote.	82	Development permit the county's planning permit for a large turbine: issued by the Development Officer. It lapses if work doesn't start within 12 months.	8
DFO Fisheries and Oceans Canada: the federal fisheries department; it decides whether work near fish habitat needs a federal authorization.	44	DNRR Department of Natural Resources and Renewables: the provincial department's name on its 2021 file.	103
EA environmental assessment: the Province's review of a project's likely effects before it can go ahead. Rhodena's was approved with conditions on 6 Jan 2025.	27	EARD Environmental Assessment Registration Document: ABO's 2024 filing that registered Rhodena for assessment: the project description, studies and appendices.	22
Easement a right to use someone else's land: for a road or power line, or to allow a smaller setback. Roads and lines on Crown land need one from Natural Resources.	10	ECCC Environment and Climate Change Canada: the federal environment department. Its Canadian Wildlife Service advises on birds and species at risk.	44

Other abbreviations on this page

Also on this page: ABO ABO Energy, the developer

EDPC Eastern District Planning Commission: the regional planning office that does Inverness County's planning; its Development Officer issues development permits.	85	Extension extra time allowed under a particular rule. For Rhodena's start deadline, the Minister may grant one at ABO's written request, with no public notice. Information-request deadlines have their own extension rules (D1).	3
FAQ frequently asked questions: the administrator's published answers (FAQ v.02, 16 Sept 2026); it doesn't change the RFP.	22	Feathering turning the blades edge-on: so they barely spin in low wind.	49
FOIPOP Freedom of Information and Protection of Privacy. Nova Scotia's access-to-information law. A FOIPOP request asks a public body for records it holds: a \$5 application fee, and processing fees may follow.	5	GIP Generator Interconnection Procedures: the published rules for connecting generators to the grid.	33
GIS geographic information system: mapping software and data.	85	GPS Global Positioning System: satellite positioning, as in a phone's location.	72
GR-1 the general rural wind zone: the county wind zone where large turbines are allowed with a development permit. All six turbines plot in it on an unofficial desk overlay; the planning commission must confirm.	85	Green Choice the Province's renewable-power bidding program. Round 1 selected Rhodena in Jan 2025, but ABO declined to sign; round 2 opened on 10 Sept 2026.	2
GWh gigawatt-hour: a million kilowatt-hours; a measure of electricity produced over time.	136	Hibernaculum a place where bats hibernate: often a cave or old mine (plural: hibernacula). Disturbing one occupied or habitually occupied by endangered bats is an offence.	14
Hub height the height of the rotor's centre: 118 m for the modelled turbine.	52	Hugh Fletcher the Geological Survey of Canada geologist: whose 1884 Cape Breton map sheets show roads, streams and buildings.	66
Ice throw ice shed from turning blades. The assessment estimates up to 421.5 m for its modelled turbine.	5	IESO-NS Independent Energy System Operator (Nova Scotia): the province's independent grid operator. It keeps the connection queue and tests whether bids' power can be delivered.	33
Information request a request for a public body's records: under the access law (FOIPOP in Nova Scotia); a \$5 application fee, and processing fees may follow.	5	Interconnection request an application to connect to the grid. Each gets a study of what the grid needs and what it costs.	13
IR644 interconnection request 644: an older 2022 study of 102.6 MW on L-6537; it names no developer.	33	IR713 interconnection request 713: NS Power's 31 May 2024 study of connecting "Rhodena Wind" (42 MW) to line L-6537.	15

Other abbreviations on this page

Also on this page: **ABO** ABO Energy, the developer · **RFP** request for proposals · **MW** megawatt · **NS Power** Nova Scotia Power

Judicial review asking a judge to review a decision: for reasonableness. The deadline is the earlier of 25 days after you're told (weekends and court-closed days don't count) and 6 months after the decision.	5	KMK Kwilmu'kw Maw-klusuaqn: the Mi'kmaq Rights Initiative: the Assembly of Nova Scotia Mi'kmaw Chiefs' consultation office.	138
kV kilovolt: a thousand volts. Rhodena would need a new 138 kV line.	53	Leaf-off when the leaves are down: and nests are easiest to see (the plan's nest search is Nov–Jan).	15
LLC limited liability company: as in Power Advisory LLC, the bid administrator.	4	LUB land-use bylaw: a county's zoning rules. Inverness has a separate wind-turbine LUB (2012, amended Sept 2025).	60
MEK Mi'kmaq Ecological Knowledge: as in the MEK Protocol, which governs these studies.	139	MEKS Mi'kmaq Ecological Knowledge Study: a study of Mi'kmaw land and resource use for a project; the knowledge belongs to the Mi'kmaq.	138
MGA Municipal Government Act: the provincial law that governs councils, planning, permits and municipal records.	78	Mid-mast lights red lights halfway up the tower: required on lit turbines over 150 m, as well as the lights on top.	123
Migratory bats hoary, eastern red and silver-haired bats: COSEWIC assessed them Endangered in May 2023. As of Sept 2026 they are not on the federal or Nova Scotia legal lists.	43	Mi'kmaq the Indigenous people of this region: “Mi'kmaw” is the singular and adjective form.	127
MLA member of the Legislative Assembly: your provincial representative.	13	MP member of Parliament: your federal representative.	13
MPS municipal planning strategy: a council's planning policy; bylaws must carry it out.	88	MW megawatt: a measure of generating capacity. Rhodena is up to 42 MW: six turbines of up to 7 MW.	2
MWac megawatts of alternating current: how the solar program states capacity.	136	NAV CANADA the company that runs Canada's civil air navigation. It reviews tall structures for effects on flight routes and airport approaches.	16
Neighbourhood Mail Canada Post's unaddressed flyer service: not delivered to homes with a “no flyers” sign.	24	NRCan Natural Resources Canada: the federal natural resources department.	36
NS Nova Scotia: the province.	70	N.S. Nova Scotia: used in regulation and case citations (N.S. Reg. 51/2025 is a Nova Scotia regulation).	94
NSCA Nova Scotia Court of Appeal: used in case citations.	78	NSECC Nova Scotia Environment and Climate Change: the provincial department that issued Rhodena's approval and enforces its conditions.	51

Other abbreviations on this page

Also on this page: COSEWIC Committee on the Status of Endangered Wildlife in Canada

NS Power Nova Scotia Power: the province's electric utility (legally Nova Scotia Power Inc.). Winning bidders sign 25-year contracts with it.	8	NSRAB Nova Scotia Regulatory and Appeals Board: the provincial board that hears planning appeals (cases are cited as NSRAB).	94
NSSC Supreme Court of Nova Scotia: the province's main trial court; used in case citations.	78	OIPC Office of the Information and Privacy Commissioner: the office that reviews information-request decisions in Nova Scotia; under the law in force on 27 Sept 2026 it recommends, it can't order.	103
Old growth old forest: stands that have grown for a long time without major disturbance.	4	PDF Portable Document Format: the file format; a "PDF page" is the page number in the file, not the printed one.	51
PPA power purchase agreement: the 25-year contract under which a winning bidder sells electricity to NS Power.	35	Proposal security financial security posted with a bid: \$35,000 per MW, about \$1.47M at 42 MW; it can be drawn if a winner doesn't sign.	30
Q&A questions and answers: the question-and-answer section on ABO's page.	24	Queue a list of items waiting their turn. In this book, usually the grid operator's posted list of connection requests (as of 27 Sept 2026, dated 15 June 2026). D1's queue is the list of planned information requests.	2
RCMP Royal Canadian Mounted Police: checked in 2024 for effects on its radio links; it has none of its own nearby.	148	Receptor a home or camp where the noise and flicker limits apply: permanent or seasonal. ABO modelled a list of them; the nearest, receptor A, is about 1.2 km away. The limits apply at any such place, not only those on the list.	52
RFP request for proposals: the Province's call for bids; here, Green Choice round 2 (RFP II, 10 Sept 2026).	22	RJSC Registry of Joint Stock Companies. Nova Scotia's company registry; a free search shows status, directors and dated filings.	31
SARA Species at Risk Act: the federal law for listed species. Its bans reach endangered or threatened migratory birds on any land, but listed land species on non-federal land only if Ottawa orders it.	152	Setback a minimum distance: between a turbine and something else: a home, a property line, a road or a stream.	5
Shadow flicker the flashing shadow of turning blades. The approval's limits: 30 hours a year and 30 minutes a day at any home or camp.	6	SREPs Smart Renewables and Electrification Pathways Program. Natural Resources Canada funding for clean-power projects.	36
Standing the right to bring a case: A genuine local group can get public-interest standing.	77	Standstill a temporary agreement with financing partners: during a restructuring. ABO's parent company's runs to 30 Nov 2026.	10

Other abbreviations on this page

Also on this page: **MW** megawatt · **ABO** ABO Energy, the developer

Stay a court order pausing a decision: while a case is heard. Filing a case doesn't stop work by itself.	77	Support letter a letter backing the bid: from a local government, group or community. Each is worth half a point, up to 4 of 100.	4
T1-T6 the six turbine positions: numbered as in ABO's 2024 layout; T1 is the westernmost, nearest Route 19.	153	TC Transport Canada: the federal transport department; it sets the lighting and marking rules for tall structures.	124
The Department Nova Scotia Environment and Climate Change: which issued the approval. Its environmental assessment branch handles changes.	17	Tip height the height to the top of a blade: when it points straight up; up to 200 m registered.	52
UARB Utility and Review Board: the regulator's former name. The standard contract is now before the Energy Board.	151	US United States: as in a US study of home values.	135
UTE-1 the coastal wind zone: the county wind zone along the coast where only small domestic turbines are allowed.	85	Variance a lawful, limited adjustment of a bylaw rule: such as a setback, allowed under the bylaw. Owners nearby get notice and can appeal a granted variance to council.	10
Waiver giving up or excusing a requirement. For setbacks, a neighbour's written agreement to a smaller setback (a wind lease of 19 years or more, or, at the county's discretion, a binding easement). For information requests, a fee waiver excuses processing fees.	10	Wayback Machine a free web archive: (web.archive.org) that saves dated copies of web pages.	24
Wetland of special significance a wetland with extra protection. Use by a threatened or endangered species can support that classification; the Department decides. Altering one is harder, not impossible.	53	White-nose syndrome a fungal disease of hibernating bats. Bat records from before it may be out of date.	68

Other abbreviations on this page

Also on this page: **ABO** ABO Energy, the developer

Sources

Every link below was opened on 27 September 2026 and resolved to the document named.

Green Choice, round 2

- The call for bids (RFP II v1.4, 10 September 2026): nova-scotia-gcp.com/wp-content/uploads/2026/09/green-choice-program-procurement-rfp-ii_v1.4_september-10-2026.pdf
- Addendum 1 (15 September 2026; it only changes the registration-fee address): nova-scotia-gcp.com/wp-content/uploads/2026/09/green-choice-program-procurement-rfp-ii_addendum-no.1_september-15-2026.pdf
- The administrator's answers, FAQ v.02 (16 September 2026; it says it does not amend or interpret the call for bids): nova-scotia-gcp.com/wp-content/uploads/2026/09/gcp-rfp-faq_v.02.pdf
- Where new documents appear: Program Updates, nova-scotia-gcp.com/program-updates/; addenda on Proponent Resources, nova-scotia-gcp.com/stakeholder-resources/; answers, nova-scotia-gcp.com/faqs/. Addenda are scheduled to end on 29 October 2026, but later ones are allowed. The administrator also emails updates to a mailing list.

The environmental assessment (the Province's project page):

novascotia.ca/nse/ea/rhodena-wind-project/. Nothing was posted after the January 2025 decision, as of 27 September 2026. The page links the approval and conditions, the decision letter, ABO's registration document in parts (Part 1: the main text; Part 5: wetlands, plants and bat monitoring; Part 8: radio and aviation letters, shadow flicker with the turbine coordinates, and sound), and the agency and public comments (Comments Parts 1–2).

Regulations

- Environmental Assessment Regulations (what counts as starting work; the start deadline and extensions): novascotia.ca/just/regulations/regs/envassmt.htm
- Minimum Planning Requirements Regulations (the 2025 wind rules): novascotia.ca/just/regulations/regs/mgaminimum.htm

Words on this page

Also on this page: **RFP** request for proposals · **FAQ** frequently asked questions · **ABO** ABO Energy, the developer · **Green Choice** the Province's renewable-power bidding program · **Addendum** a formal change · **Approval** a regulator's permission · **Condition** a rule attached to an approval or permit · **Shadow flicker** the flashing shadow of turning blades

- Renewable Electricity Regulations (the administrator's final report):
novascotia.ca/just/regulations/regs/elecrenew.htm
- Green Choice Program Regulations (reports and terminations):
novascotia.ca/just/regulations/regs/greenchoice.htm

Inverness County's wind rules (2012, amended September 2025; the planning commission lists them at edpc.ca/plan-documents-and-maps/ under "Wind Turbine Development"):

- the bylaw: edpc.ca/plandocs/inwind/IN_Wind_LUB.pdf
- the zoning map: edpc.ca/plandocs/inwind/IN_Wind_Zoning.pdf
- the planning strategy: edpc.ca/plandocs/inwind/IN_Wind_MPS.pdf
- the Municipal Affairs letter approving them with amendments (30 July 2025):
invernesscounty.ca/wp-content/uploads/2025/09/Municipal-Affairs_Wind_Turbine_Bylaw_2025-07-30.pdf

ABO

- Rhodena page (rhodenawind.ca redirects here):
aboenergy.com/ca/company/projects/rhodena-wind/index.php
- Ad hoc announcements (latest, 31 July 2026: the standstill extended to 30 November 2026): aboenergy.com/en/company/ad-hoc-announcements.html
- Press releases (asset sales, including the April 2026 New Brunswick sale):
aboenergy.com/en/media-center/press/index.php
- March 2022 mailout (100 MW, about 18 turbines, with Community Wind):
aboenergy.com/media/en/range-of-activities/canada/rhodena/Rhodena_Mailout_220316.pdf

The Province

- Round 1 (27 January 2025): news.novascotia.ca/en/2025/01/27/green-choice-program-greening-grid-creating-jobs-improving-energy-independence
- Round 2 (11 September 2026): news.novascotia.ca/en/2026/09/11/second-call-affordable-clean-energy-through-green-choice-program

Words on this page

Also on this page: **ABO** ABO Energy, the developer · **MW** megawatt · **Bid administrator** the firm running the bidding · **Green Choice** the Province's renewable-power bidding program · **Standstill** a temporary agreement with financing partners

The grid

- The grid-connection queue (published 15 June 2026, still current on 27 September): nspower.ca/docs/default-source/pdf-to-upload/ieso-ns-oasis-active-transmission-interconnection-requests-transmission-q.pdf, linked from nspower.ca/oasis/generation-interconnection-procedures
- NS Power's 2024 study of "Rhodena Wind" (IR713, 31 May 2024): nspower.ca/docs/default-source/pdf-to-upload/ir713-feas.pdf. Study-report index: nspower.ca/oasis/generation-interconnection-procedures/generator-interconnection-study-reports

Other

- The provincial board's 2026 decision ordering West Hants to approve a wind development agreement (26 May 2026): nserbt.ca/sites/default/files/NSRAB%20Board%20Decision%20-%20Bear%20Lake%20Wind%20Ltd%20M12505.pdf
- Transport Canada Standard 621 (obstacle marking and lighting; wind turbines chapter 12, aircraft detection chapter 15): tc.canada.ca/en/corporate-services/acts-regulations/list-regulations/canadian-aviation-regulations-sor-96-433/standards/standard-621-obstacle-marking-lighting-canadian-aviation-regulations-cars
- Transport Canada advisory circular on aircraft-detection viewsheds (2021): tc.canada.ca/en/aviation/reference-centre/advisory-circulars/advisory-circular-ac-no-601-006
- Community Solar Program: novascotia.ca/programs/community-solar/
- The Province's abandoned mine openings search: gesner.novascotia.ca/amosearch/searchpage.aspx; download page: novascotia.ca/natr/meb/download/dp010.asp
- Hugh Fletcher's 1884 Cape Breton sheets, David Rumsey Map Collection: Rhodena is on sheet 19 (davidrumsey.com/maps4562.html) and sheet 22 (davidrumsey.com/maps4559.html). Licence: creativecommons.org/licenses/by-nc-sa/3.0/

Words on this page

Also on this page: **NS Power** Nova Scotia Power · **IR713** interconnection request 713 · **Queue** a list of items waiting their turn · **Aircraft detection** lighting that stays off until an aircraft is near · **Hugh Fletcher** the Geological Survey of Canada geologist